



MACHINE TRANSCRIPT • CORAGGIO CONSULTING

Loudoun County Board of Supervisors, Business Meeting, Tuesday, December 2, 2025

Date Tuesday, December 2, 2025
Place Board Room, First Floor, Government Center, 1 Harrison Street SE, Leesburg, Virginia
Length 6h 53m (video)

- Official meeting video (county, Granicus): <https://loudoun.granicus.com/player/clip/8070>
- Meeting page (Granicus): <https://loudoun.granicus.com/player/clip/8070>

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Speech-to-text: whisper.cpp, model large-v3-turbo. Produced 2026-10-10. Each paragraph starts with its time [HH:MM:SS] in the meeting video.

[00:07:29] Jenny? Can you turn me on? Am I on? There you go. Thank you. Well, good evening, supervisors. Good evening, staff, and good evening, Loudon. I'd like to call the December 2nd, 2025, Loudon County Board of Supervisors business meeting to order.

[00:07:50] This room has a hearing loop. If you need hearing assistance, please switch your hearing aid to the telecoil mode. If you need a headset, we have those available as well. Please see the clerk to request one. Tonight, I get the honor of offering comments and leading the prayer of allegiance. So for my comments, I just want to say this.

[00:08:08] In the past couple of days, there's a good friend of so many of us in Loudoun County whose son, her young son, became severely ill. He started vomiting blood. It turns out he had an arterial bleed, and he's now in his third surgery in three days.

[00:08:24] Last week, we had a National Guard member who was shot and killed while performing legal orders. Her name was Sarah Beckstrom. She is from West Virginia. she was only 20 years old. I do wonder where the flags had half mass for Miss Beckstrom when they were down for other people. I don't see flags down for half mass for her. I think we should.

[00:08:44] I have a good friend right now who's going through a very tough divorce. I became a lady in the county who called us for some assistance. I sent her to one of our nonprofits because she has to have a double mastectomy and she didn't have the means to get it done. And yesterday we had a person that was a pedestrian that was killed. I say all this to say this. The world right now, especially our country, is coarsened. Our language is coarse. And there's a lot of tension, and there's a lot of anger, and there's a lot of things where people are just not giving one another a little bit of grace. And I would say that during these times, especially

[00:09:23] during the holidays, you just never, ever know what somebody else is going through. They may look okay. They may smile. They may have that mask on that says they're fine. But very, very often a lot of people are going through things that we just don't realize. And although there is a coarsening of language, especially coming out of the federal government, I speak this to myself as much as to anybody else to implore all of us to try to just, especially now, offer grace to one another and offer kindness to one another when we can, speak words of encouragement, speak words of honesty, make sure before you talk you

[00:09:59] know what you're going to say and why, because the world is a tough place right now, and people just need a little bit of grace. Would all of you please join me in the Pledge of Allegiance? Pledge of Allegiance to the flag of the United States of America and to the republic for which it stands, one nation, under God, indivisible, with liberty and justice for all.

[00:10:29] On a happy note, we have quite a few people in the room tonight who are going to be joining us for the resolution for Erin McClellum, and as she looks around the room she'll see a lot of familiar faces she hasn't seen in a while.

[00:10:45] We have some former supervisors, Mr. Higgins, former supervisor and current delegates walking into the room. Janet Clark is here already, former supervisor from what was the Blue Ridge District. Before I go on and read the consent agenda, I do want to say something about Ms. Clark.

[00:11:01] Here comes Supervisor Bonfields, hello, sir. When I was chair-elect, I was elected and I chaired state bodies before, but this is my, here comes Supervisor Buffington, look at that, but I wasn't quite sure of how to run this meeting, and it was Janet Clark.

[00:11:22] They called me to her house and took out a meeting agenda and went through the agenda with me, talked to me about additions and deletions, talked to me about the consent agenda. Janet Clarke and I, at the time, were in different political parties.

[00:11:39] I have no idea if that's even true anymore. And I'm sure we have some different beliefs. But there was nobody more kind to me when I won this seat than Janet Clarke. And my very first meeting that I got through, after going first in the bathroom, because I was so nervous, I went in the bathroom, puked, and then walked in the dais and shared meeting because Janet Clark had called me to her house and and told me what to do and I would just never forget that and so I just want to say publicly what I've said to you privately and that's thank you so much okay let's do um guys we have we have a really really busy agenda tonight and

[00:12:18] there have been yes sir oh we do have a member remotely participating in the meeting um okay okay we have a really really busy agenda tonight and there are a lot of motions on this day as that that came up on this dais in the last couple of hours. It is more likely than not, then when we get to the CTP

item, I'm going to send the entire item to TLUC because there is just no way we can walk out through all these motions.

[00:12:39] I think there's seven motions on the dais tonight for the Canawai Transportation Plan. It's too many to try to get to and try to do tonight. So I'll probably make a motion for all of that to go to the Transportation and Land Use Committee tonight, just so everybody knows that.

[00:12:55] Pursuant to Virginia Code section 2.2-3708-3, the Board of Supervisors' Rules of Order, Supervisor Bricksman has requested to participate in this meeting by electronic communication. A physical quorum of the Board is present, and the Board has made arrangements for the voice of Supervisor Bricksman to be heard by all persons in the Boardroom.

[00:13:13] Can you hear me, ma'am? Supervisor Bricksman, can you hear me? Yes, I can, Madam Chair. Okay, wonderful. Thank you. Hello, everybody. She made this request within the required timeframe, and the County Attorney determined the request meets the qualifications to participate remotely. The board will record in his minutes that Supervisor Bricksman to participate remotely from a private location in Brooklyn, Maine for personal reasons. We also have a lot of additions and deletions and so let's try to go through those. Hopefully I got all of them correctly.

[00:13:44] At this time, Supervisor Turner would like to, we're going to do a suspension of the rules so Supervisor Turner can add to the agenda an item on energy heritage to mostly high voltage direct current transmission line proposal for action item tonight. We're also going to reconsider the, and I'll make the motion to reconsider, a meeting to endorse the design group recommendations to modify runway transitions all for runway 30 area navigation standard. Actually, supervisor, Turner, you don't need

[00:14:22] a suspension of the rules for addition to the agenda. I can just put it on the agenda. Okay, so consider that without objection on the agenda, and we will have a reconsideration for the action of the intersection improvement program update in the November 18th meeting.

[00:14:39] I will make that reconsideration to send this to TLUC meeting for an information item for the purposes of understanding how the intersections are identified. And so I will make that motion and I will make the motion to reconsider, and Mr. Crony will make the motion. And then we're going to move the Intersection Improvement Program to TLUC. Any issues with any of those things? Everybody good with all that? Okay, having said that, I'm going to go on right now and make the motions to reconsider, not take the motions up, but just the motions

[00:15:18] to reconsider right now and take the motions up later on, okay? So first, I will make a motion to reconsider the action of the of the November 18 2025 board business meeting to endorse the design group recommendation to modify one-way transmission transitions for all one-way 30 navigation standard instrumental departures as provided an attachment one to the November 18 2025 business meeting action item second motion motion this is the motion for reconsideration only motion made and seconded any discussion on the motion

[00:15:50] for reconsideration all in favor to say aye can you oppose nay okay so those are two people supervisor you were opposing this to the bus of glass didn't you vote for this then you vote for item three for runway three okay all right that motion will pass i think that was i think i think is that i'm sorry if you're i put your hand up actually madam chair i'm going to be a nay as well just to reconsider no no there's no you can't there's this is not appropriate for point

[00:16:29] of order mr turner i'm sorry but it's not this is just a reconsider you might want to hear what the reconsideration is and then you can vote for you can vote against that if you want to but this is just a reconsideration guys that's all this is point of order you can vote it as a matter supervisor turner madam chair you're yes yes you're asking for a reconsideration yes of an item that was not approved last time parts one and two were approved and we're not reconsidering Parts 1 and 2. We're asking for a reconsideration of Part 3, which was not approved.

[00:16:59] I understand that, but we have to take the whole item. We can't just reconsider. No, we didn't, because we did them separately. We did all three items separately. I'm sorry, you're correct. We did all three items separately. So, reconsideration for that, just for three. All in favor, please say aye. Aye. All opposed? Nay. Okay, that motion will pass. 1, 2, 3, 4, 5, 6, 7, 2. I'm sorry, 6, 1, to. All right, and we'll do the item later. I'm going to the Board of Supervisors reconsider.

[00:17:32] Madam Chair, I was, excuse me, Madam Chair, sorry, I was a nay on that. You're still a nay on that, even just a reconsideration, you're still a nay. Yes, ma'am. Okay, please mark Ms. Bricksman as a nay. I'm going to the Board of Supervisors reconsider, that still passes, it's action on the 2025 intersection improvement program update at the November 18, 2025 business meeting to send this to TLUC as an information item to understand how the intersection improvement items are ranked. That's why we're doing this. Second. Second with Supervisor DeCrony. This is the

[00:18:10] reconsideration only. Discussion and reconsideration. All in favor, please say aye. Aye. Any opposed? That motion will pass. I guess that'd be 7-2. Supervisors, Sains, and the Turner off the day is for right now. All right, I will now read the Kacinogen. The Kacinogen is as follows.

[00:18:32] It's a very long Kacinogen, everybody. Item R1, resolution to celebrate the life of former Vice Chair Elaine Tao. That's for approval only. Item 1A, contract award construction engineering inspection services for Crossrail Boulevard Segment C. Item 1B, contract award construction engineering inspection services for sterling boulevard extension item 1c contract award job order contract for general construction item 1d contract renewal consult services for transportation planning and preliminary engineering item 1e contract renewal occupational health services

[00:19:10] item 1f contract renewal public safety radio system infrastructure expansion item 1g design endorsement linear parks and trails signature project item one eight proposed amendment to the chapter 860.02 of the colorblind lenses of loudon county to lower the late payment prop penalty on delinquent taxes okay item one i animal advisory committee bylaws amendment 2025 item three the administrative items report of december 2nd 2025. item six virginia erosion and and Stormwater Management Program Memorandum of Agreement between the Board of Supervisors

[00:19:48] of Loudoun County and the Towns of, Town Councils of Hamilton, Hillsboro, Loversville, Middleburg, Percival, and Round Hill. Item 8, Active Recreation Uses in the Rivers and Streams Corridor Associated with Major Floodplain.

[00:20:05] This item, this motion will be to send the item to the TLUC meeting, to a further TLUC meeting. motion on this item to go to a TLUC meeting. Item nine, proposed traffic calming measures in the Great Falls Chase community. Item 10, response to board member initiative Waxpool area traffic study. Supervisor Glass has a motion on this to direct staff to take no further action at this time on the proposed renaming of Toro Parish Drive, Route 2119, and the segment of Waxborough Road 900 as recommended in item 10,

[00:20:44] response to the board member initiative, Waxborough Area Traffic Study of the December 2nd, 2025, Waxborough Services Business Meeting, and to the rec staff to conduct the long-term recommendations of the right lane warrant analysis at Belmont Ridge Road, Route 59, Route 900 intersection is identified in item 10, response to the board member initiative.

[00:21:07] So basically, this is just to do the things that the staff said that they recommended to do. Is that correct, Ms. Glass? That's correct? Okay. So then that in that form would be the consent agenda motion. Yes? Yes. Okay. Wonderful. Item 12, Board Member Initiative Request for Federal Appropriations for Potomac Falls Post Office. I think that is all the consent agenda items. I'll make a motion to approve the consent agenda. Is there a second the motion second motion made the second by vice chair turner discussion on the consent agenda mr bricksman i believe you have discussion because in agenda i'll call on you first

[00:21:44] thank you madam chair i just want to thank my colleagues for um supporting the great falls chase safety improvements that's going to be watch for children signs and two additional crosswalks there right by the great falls chase shopping center a lot of pedestrian traffic there and this project was started under the leadership of Supervisor Sains when that was in Sterling District.

[00:22:05] So proud to bring that through. I'm also excited to see the work on the Linear Parks and Trails Signature Project move to its next stage. Thank you for that support as well and the design endorsement. And lastly, the Potomac Falls Post Office federal funding request. This is coming to the board because there is a bill that should be voted on, I think, in January, February in Congress to rename the 20165 Sterling Post Office after Firefighter Brown. I have had some concerns in addition to Chair Randall about the condition of that post office if we're going to be naming it after a fallen hero of Loudoun County. And so we are

[00:22:45] asking through a letter for some funding for maintenance and site improvements of that facility, so that it is an appropriate facility to be naming after that hero. Thank you, Madam Chair. Thank you. Mr. Crony. Thank you, Chair Reynolds. So I'm just going to speak about number eight, which is active recreation uses in the rivers and stream corridor resources. I do support staff's recommendation, which was option one, but my colleague has some questions, so we're going to send it to TLUC to get those questions answered.

[00:23:18] And again, this would delete active recreation as permitted or special exception use in the major floodplain. Passive recreation would still be allowed in both the major and minor floodplain. So I look forward to discussing the item further and getting some questions answered.

[00:23:37] Thank you. Thank you. And I would just say, on the Linear Parks and Trails Program, I always want to thank Parks and Rec. I'm not sure if Mr. Torpey's in the room. Are you in the room, Ms. Torby? No. On the Parks and Rec, there you are, program, I remember when that was first brought to me. I think it might have been my first term, in fact.

[00:23:55] And we brought it over to Parks and Rec, and at that time they were calling it the Emerald Ribbon to have that discussion. And it's just been moving along ever since. And I know that it's, you know, sometimes we put things on the consent agenda, and it looks like they're easy things to accomplish. but they're not, and people are working behind the scenes on these issues trying to get the land to do these things, to connect all the walking trails and bike trails, and I never just want to stop.

[00:24:21] One, thanks to Pro's Board, and two, thank the staff for all the work you've done on that, and everyone who bought that. I think it was Mike Loudon who bought that to me some years ago, and the people that hiked. It's funny that they bought it to me because I never want to go hiking in my life, ever.

[00:24:37] So I was really happy they bought it, and I'm really happy that you're doing it. So, Mr. Torpy, thank you, and please thank the Pro's Board, okay? Thanks. Anybody else? All right. All in favor, please say aye. Aye. Any opposed? That motion will pass 70, yes, 702. Okay. My voice for a cause tonight.

[00:24:53] So when it is the night of Giving Tuesday, my voice for a cause is always the same, and the voice for a cause is Community Foundation for Giving Tuesday. Would Nicola Costa please come to the podium? Of course, I'm Giving Tuesday in Loudoun County and across the region.

[00:25:12] The goal is to give as much as you can to our local nonprofits. A lot of our nonprofits sit in the Community Foundation. They are what I start calling the clearinghouse for nonprofits in our community. They just did a huge event a couple of nights ago, and they do such a great job.

[00:25:29] So, Ms. Acosta, thank you for being here. Thank you for all that you do at the Community Foundation. Could you just talk about Giving Tuesday, how it came to be, and what the idea behind it is? Sure. So thank you for having me. Giving Tuesday is a national and international day of giving and generosity that always takes place each year on the Tuesday after Thanksgiving.

[00:25:52] It has really become a movement since it began organically in 2012 for communities across the country and across the globe to just pause and celebrate the good work that nonprofits and volunteers who strengthen quality of life in local communities do every day.

[00:26:10] It really is meant to be, you know, after you're shopping on Black Friday and Cyber Monday, a chance to shift our attention and focus to others on Giving Tuesday. Very good. And how are we doing today so far? Well, so Giving Tuesday is a really interesting event in that it's a little different than our Give Choose event because we host that every year in March.

[00:26:31] On Giving Tuesday, every nonprofit kind of does it themselves, so we don't really have a sense yet of how well each individual nonprofit did. But I do know as someone who's on every nonprofit mailing list, they are very actively emailing and fundraising.

[00:26:47] We know from our own donors at the Community Foundation that they have been really supportive of the local organizations. And then finally, I will ask this question. As we walk into the holidays, we know that inflation is still an issue. Food prices are still an issue. And I've talked to Ms. Montgomery and other pantries that feed people.

[00:27:05] What does it look like in Loudoun County right now, just in general, as far as the nonprofit need? Because it feels like it's a little more, I won't say severe, but I'll say urgent than it is before. Can you just speak about that? Absolutely. So we're hearing from our grantees here in Loudoun that needs still continue to rise.

[00:27:21] We've heard anywhere from like 10 to 20 percent increases in people coming forward asking for services. So I would say that's across the board. That's everywhere from food, health, housing. So those are our core safety net services.

[00:27:37] But also we have lots of nonprofits that improve the quality of life for our community. And they also need our support. The arts, environment, our historic preservation nonprofits, they are an important

piece of what makes Loudon a special place.

[00:27:53] And often when needs are up with human services, people tend to shift their focus philanthropically. So we just want to remind everyone that all of these organizations need support and flexible funding during difficult times. Well, I know how hard you work.

[00:28:09] I know how hard the Community Foundation works as a clearinghouse for our nonprofits. I know just a heavy lift. And I actually don't even know, Ms. Acosta, the emotional toll that both you and all of our other nonprofits are experiencing right now. And, again, I don't allow clapping in the boardroom very much, but I do now.

[00:28:25] So thank you for all of your work right now, Ms. Acosta. We appreciate you. Thank you. Thank you. And good luck for the rest of the day. Thank you. All right. I want to have a couple comments for my actions on Friday the 21st. I attended the Greater Washington Board of Trade Annual Meeting.

[00:28:41] They voted on their new board officers. gave an update on the market and the economy and the region overall. I will note that Jack McDougall, who's head of the Greater Washington Board of Trade, did say that our Board of Trade in this region continues to support and lean into the importance and the value of diversity, equity, and inclusion. So I really did appreciate him saying that, and I appreciated all the updates we received.

[00:29:05] Tomorrow, I'm attending the Commission on Local Government Health from the Beaumont If you remember about three years ago, the Beaumont Foundation, in partnership with the Nonpartisan Policy Center, started discussing what offerings should be given for local health departments to give.

[00:29:28] And when that came up, I actually made the suggestion that we could consider doing some mental health offerings through our local health departments. I did that both through my office, through the county, but through NACO also. And I was very surprised when the Beaumont Foundation took that up and agreed to it.

[00:29:47] And so because of that, as we are meeting about local health, they have asked me to come on and talk about my perspective, both as a mental health therapist and as an elected official, as it pertains to mental health as a public health offering. I also want to say that tomorrow evening, the Council of Governments will hold our annual meeting and award ceremony.

[00:30:12] It will be held in Washington, D.C. Mr. Crony and I are going. I will be coming in from Maryland, so I can't carpool with anyone. Mr. Crony, I think, will be coming from here. And so if you want to really have a great event, understand a little bit more what the Council of Governments is all about, amazing food, and meet some of your colleagues from around the region.

[00:30:35] I would ask you to join us at the COG annual meeting. And then on Thursday will be my fourth leadership grade in Washington. That will be, happens to be actually on mental health this time, and it will be held in D.C.

[00:30:51] I do wish they were held in Virginia more. I think we should hold them in Loudoun, in fact. But it will be held in D.C. again. And then on Thursday evening, I'll be speaking to the Percival Town Council. I'll be speaking as Chair Randall on behalf of the board. And I will talk about the importance of Loudoun County's importance of believing that we want all of our towns to succeed and offering assistance in different areas to help the Percival Town Council if they'd like to take us up on that assistance.

[00:31:22] And so, Mr. Kirsten, if you'd like to join me at the Percival Town Council meeting again, I think we're a good one-two punch at that meeting. So if you'd like to join me, I'd love to have you there. No come to blows. No punching has happened. We get in, we get out, we're good. So I'll be doing that. Mr. Hemstreet, can my staff bring me what I'm requesting?

[00:31:41] And Mr. Hemstreet, do you have any comments this evening, please? Yes, Madam Chair, I have four comments for this evening. The first is that Ask Loudoun County is now live on our website. The new online tool is designed to enhance the county's engagement with the community by leveraging artificial intelligence and the expertise of our professional staff to efficiently respond to the public's need for information 24-7.

[00:32:03] Once a question is submitted, the AI capability within the system quickly provides a response, typically linking the requester to more information on our website. The answer could also come in the form of a video from a subject matter expert or an email. The Ask Loudoun County icon is prominently featured in the lower left corner of loudoun.gov.

[00:32:21] Just click on the icon and submit an inquiry. Second, as the county continues to work on developing a natural resources strategy, members of the public are being asked to share their thoughts on how to protect and enhance the county's land, water, and wildlife resources. An online survey intended for people who live, work in, or otherwise have a relationship to Loudoun County will be open through December 31st.

[00:32:45] More information and a link to the survey may be found at loudoun.gov slash natural resources strategy. Third is a follow-up to an item from the board's previous business meeting. The application process for the fiscal year 2027 Human Services Nonprofit Grants is underway.

[00:33:01] A pre-application webinar is scheduled for December 9th. More information, including a link to the application, is available at loudon.gov slash nonprofitgrants. And finally, for those of you watching this meeting on Comcast, welcome to Government Access Channel 1075.

[00:33:18] Comcast is discontinued. Loudoun County government programming on channel 23 and moved it to channel 1075 a high definition channel under terms of the county's cable tv franchise agreement Comcast provides a channel to televise meetings of the board its standing committees and the planning commission as well as announcements about county programs and services the county also has a cable tv franchise agreement with Verizon which televises county government programming on Verizon FiOS channel 40 a standard definition channel and those are my comments uh this evening ma'am chair thank you

[00:33:53] um okay we have um a resolution that we're doing tonight for Erin McClellan for 24 21 years of service in Loudoun County I would like the entire dais to join me down front um and when I get down front I'm going to call some other people up to the room up to the front of the room as well

[00:34:34] well I made I made uh some phone calls I've sent out some texts this week because there were a few other people that I wanted to join us today so could any past supervisors in the room come down

[00:35:06] as well could any other elected officials in the room come down as well yes I do and miss McClellan

[00:35:52] could you please come up with your family oh i need the gifts i need the gifts um yeah they're By my chair. By my chair. Wow, that happened.

[00:36:08] Oh, my gosh. So of all the resolutions I've done, this is the one that is the most meaningful, in some ways the hardest, and the one I'm most proud of because I'm so proud of you.

[00:36:27] When I called other supervisors, Mr. York is in Scotland, so he couldn't make it, but he sent his best regards. And Mr. Bona is in North Carolina. Mr. Williams is going to try to make it.

[00:36:44] He actually may get here on time this evening. I called him, and he was very excited. And Ms. Fopey said to tell you that she's in D.C., so she won't be able to make it, but she sent her best regards. Ms. Clark, supervisor Clark, got back to me within seconds and said, I will be there.

[00:37:01] Mr. Higgins said, hold off till 4.30. Don't do it before I get here. Mr. Meyer and Mr. Buffington said, great idea, we'll be there. And Mr. Bonfield has told me right away as well. And I think, you know, I don't think you get supervisors coming in now from other counties and even other states for too many people.

[00:37:21] I think this is really, really about you. So this is going to take a little minute for us to do that. So we're not going to rush through this one. I'm going to read it, and I'm going to let anyone who wants to speak, including Mr. Hemstreet, speak. And then I'm going to talk to you for a little while.

[00:37:38] and then you're going to say whatever you want to say, okay? As long as you want to say it. In celebration of Erin McClellan for 21 years of public service, whereas we honor and commend Erin McClellan, Senior Deputy County Administrator for 21 years of professional public service in Loudoun County government, and whereas Ms. McClellan began her career with Loudoun County in 2005 as a Management Fellow and advanced through the organization to the position of Senior Deputy County Administrator.

[00:38:09] And whereas during her professional career in Loudoun County, Ms. McClellan has served in key roles in finance and budget, leading the county out of the Great Recession, and funding critical projects, including the Silver Line extension to Loudoun County. And whereas Ms. McClellan has led critical departments, including, and listen to this, the Office of Emergency Management, which were instrumental to the county's success during the COVID-19 pandemic, And that was no small feat.

[00:38:37] And whereas Ms. McClellan has a standard of excellence, Ms. McClellan has a standard of excellence. Ms. McClellan has a standard of excellence as a senior executive leader, mentor, and consummate public servant.

[00:38:53] And her tireless efforts have well positioned Loudoun County for continued success. Now, therefore, be it resolved that the Loudoun County Board of Supervisors, both present and past, does hereby recognize and commend Erin McClellan for her dedicated public service to Loudoun County and her leadership and tenure as Senior Deputy County Administrator, and wishes her all the best in her future endeavors.

[00:39:19] I'd like to, well, who would like, not anyone, who would like to speak first?

[00:39:42] Who would like to speak? We need people on this side, but start at one end and go to the other. Okay. Aaron, it's been truly a pleasure working with you in the many different roles that you've had at Loudoun County.

[00:40:01] I've learned a lot working with you, and we've gotten to tackle many big projects. Best of luck in all your future endeavors. Aaron, I told you this before, but whenever Aaron, whenever I was up here and the item came before us and I saw Aaron at the table to brief us or answer questions, it always kind of calmed me a little bit, And I just had this feeling that I know that we're going to get a very clear and concise and accurate answer.

[00:40:29] And if you didn't have the answer to our question or some piece of information, you wouldn't just say that you did make something up. You would say, I don't have that, but I will get back to you. And usually the next day or the next couple days later, we'll get an email with an update to the answer to that question.

[00:40:47] So it was always just really, really great to have you. And also really great to watch you move up and just change positions and thrive in each of those positions and to watch other, mainly women within the organization, just look up to you and be so inspired by you and want to pick your brain on how you did it, how they can do it, want to learn from you.

[00:41:15] And so just thank you for being just a great part of Loudoun County staff. Thank you. Erin, you're just such a calm, cool, and collected person. You really are. Whenever we had questions, as Tony just said, you had the answers.

[00:41:33] And I've had a number of really hard decisions in my district, and you were able to help and just smooth things out, you know, in that calm voice that you have. And you're like, ah. So we just wanted to wish you the best because you deserve it.

[00:41:53] Thank you. For those of you who don't know how crazy and chaotic the fifth floor can get on board meeting days, when things like COVID happen, when schedules go to hell and everybody's running around and thinking, what are we going to do?

[00:42:12] How are we going to respond? You could always count on Aaron's office. you could walk by the office and metaphorically what you would hear is oh you could you could just get in her neighborhood and the tension just dropped immediately palpably in whatever was going on and you could always count on her for for a really thoughtful and deliberative answer and i just can't overemphasize how important that element of her leadership has been uh certainly since i've been on the board and i'm sure going back way beyond that miss brixman thank you madam

[00:42:49] chair um aaron i apologize again for not being there but i look forward to seeing you in the next week or so um when i first came to office aaron was um in charge of finance and budget and i remember my first budget briefing with you and how impressed i was with your knowledge and the way that you explained everything to me and to watch you grow from that position on up um has been really a joy to watch and we're going to miss you so much and i'm really proud of

[00:43:25] you i'm glad that you're you're able to take a little bit of a break now but i'm going to miss having you in those um land purchase uh conversations and negotiations that have started and hopefully i'll be able to share some good news with you on those um in the in the coming months but again best of luck to you and I look forward to getting together outside of the office and we are going to miss you so much. Thank you. I guess that's next. So Aaron we're going to miss you. We all know how great Mr. Hemstreet is but he has a team behind him and my wife always says

[00:44:04] behind every great man is a well she says a surprised woman but actually a great woman. So I want to tell you that we know what helps make Mr. Hemstreet great are people like you And the job that you have done here, in any organization, there's always that person that you can go to and say, that person will get it done.

[00:44:24] And when Mr. Yed left, I'm like, who's that person going to be? And you have just kind of stepped into those shoes, filled and overflowed those shoes. And the truth of the matter is, I'm not sure who's going to step into your shoes, but we're sorely going to miss you. You've done an incredible job, your leadership. But I'm sure your family's very happy.

[00:44:40] They're going to probably see a little bit more. And for that, I'm very, very happy for you. And thank you for all your years of service. Aaron, I'm kind of the old guy on the board now, going back to the days when you were actually my constituents, which I used to be excited about.

[00:44:57] I was looking for a little help in the county staff to push some of the stuff forward in South Riding, but obviously others have captured it. I've been on the board 14 years next year, but the first time not having you on the staff, and that scares me a little bit, which I think speaks to just all the different roles you've had and all the different problems you've solved.

[00:45:19] Just taking a step back from it, just the work alone to organize and execute the vaccination program that this county had, I mean, and which I truly believed was the best in the entire region, that alone, I mean, that's a whole career for a lot of people.

[00:45:35] but for you it was just one of many things so we're we're really going to miss you but i really applaud you for understanding what's important and the step in your life and deciding to spend time there because that's always the right decision thank you and thank you aaron so i'm the newest member of the board i only got to work with you for two years but i want to thank you for all your help with oak hill you did a lot of the heavy lifting uh regarding oak hill and i'm i'm confident we're going to have a state park next year, and I hope you'll come celebrate with us when that becomes a reality.

[00:46:10] But I wish you all the best with your family. You are doing the right thing. Family comes first. And I thank you for your kindness and your grace. I think Chair Randall, she started the meeting talking about that, and I think that describes you pretty well. So thank you so much, Erin.

[00:46:26] Erin, it must be somewhat rewarding to stand here and listen to all this wonderful speak about you. And no way in the words that are being said can we capture how wonderful you have been as an asset to the county being on staff.

[00:46:47] You exemplify professionalism. You're a very humble woman. And while you will be replaced, I'll be surprised if they're able to get one person to replace your job. But I really enjoyed having you to work with on staff, and you're going to be sorely missed.

[00:47:08] Aaron, I just want to say thank you, and it's been great to work with you. Most of the time I was on the other side pleading to the board to get things done, and your advice was always very good, and I wish you the best in the future. Thank you.

[00:47:26] Aaron, it is certainly my pleasure to be here to honor you, And I thank Chair Randall for giving me a holler so I would know about this. I don't know where 21 years went because you must have been having fun because we were all having fun when time flies like that.

[00:47:44] But thank you for all your work for the county. In my experience, you were one of the hardest working people I ever saw. I never saw you complain. I never saw you flustered. I think as someone said before once in a while, I said, I don't know, but I'll go get it, whatever that answer was.

[00:48:01] So thank you for all that hard work and your time for the county. You are certainly one of the people that didn't go out and get all the photographs, but did all the work. Thank you. Aaron, congratulations on your new job and life, being home with the family.

[00:48:21] I want to thank you for the transition. I followed Roger Zern, who had been in there for 28 years, and you made it very, very easy for me. and I want to thank you for answering all of my dumb questions. So good luck to you and to your family going forward.

[00:48:42] Aaron, thinking back at our time together, it's, I think, one of those things where I enjoy having four kids and no more night meetings, and I think you'll enjoy not having night meetings. But when you drive around here, it's impossible not to see your legacy and this county's legacy and how, you know, when we first appeared on the scene, right, the county was had no infrastructure we're trying to catch up is playing catch up and the county had to figure out a strategy and a budget to catch up to do that and you were a pivotal if not the pivotal member of staff that helped craft that budget to make that happen so when you drive down

[00:49:22] route 7 between here and route 28 and you see no traffic signals when you go to the ashburn rec center opening when you go to you know the when you see the future western loudon community center open. When you see all these projects that you had a pivotal part in making sure we had a financial mechanism to do that, that's your legacy. That's our legacy. And it's something that you can be proud of. And it's something that I wanted to be here to make sure that you recognize that when you drive around and see that you helped make that happen. You were a big part of this board's effort and this county's effort to make that happen. None of it would have, I don't think a lot of it would have happened without you. And so very proud of the work. I know we didn't necessarily even have a

[00:50:00] lot of personal interactions, you know, besides sort of the official ones, but we all knew, and I knew, and thank you for all that you did. Thanks. I want to talk to Alex and Tobias. So you've heard everybody say wonderful things about your mom because she's a wonderful person, and we love and respect her, and we are going to miss her, but she is someone we think is very important. She thinks

[00:50:32] year more important and that's why she's taking this time off and I hope you enjoy this time and I hope that you know how proud we are of her and then because you let her spend time with us how proud we are of you as well thank you for letting her spend that time with us it made the county better it made our lives better and we're giving her back to you now

[00:51:03] thank you i don't have too much to add aaron i think everything by now has been said uh i i will take a moment to kind of echo what uh supervisor umstott just said and uh to todd and alex and tobias thank you for allowing aaron to do all of the things that everybody has really articulated because um for someone who's in who has been in a similar role uh you can't spend the hours that you have to spend here and take the time that you have to take to put all of these things together

[00:51:41] without your support and so uh you know aaron you've been fantastic uh there's so many things that i could not have done here without you and your help uh but you know as well as i do you can't do it without your family behind you so uh i do want to say thank you to to your family for that um and

then thank you to you for all your years of service um forgot the science center Virginia which is also your project right which is which is being built so and many others and I

[00:52:17] think Mr. Higgins also kind of hit on it too when you spend a lot of your career in internal services you make so many things happen that but you're not the person out there that is is the operation that you know puts the work out there but your work makes those things possible and then a lot I agree with everything that was said about you.

[00:52:41] The other thing that I will thank you for is buying into my concept here around an organization that is one of many teams, right? Because when you have an organization this size, no individual can do anything. Everything here in Loudoun County to get something done requires a team, and you really bought into that and was very successful in putting together the teams that needed to be put together on an ad hoc basis and on sometimes on a permanent basis to drive the things that the board of supervisors over the years has wanted to see happen so thank you for that as well appreciate

[00:53:17] your service and uh turn it over to cherry well i was going to say thank you to the family but you guys have been thanked and but we really do mean that because so so often i look out in the out in the audience and it's 11 o'clock at night and you're still here and um i think oh my gosh she missed a soccer game or a volleyball game or she missed putting him to bed or something like that and that doesn't go past us all of us have families and we realize that this is service and sometimes service means somebody's not there for something that's important

[00:53:51] and so we we realize that i also want to say that that of all the things that i we've done one day i was in the in the boardroom saying my prayer remember that and and you were the only one that noticed it and and i said you can go on without me i'm just saying my prayers and you said no ma'am not in the middle of prayers and so it was such it was such a i just thought wow i mean like wow did you notice that because i'm because i'm not like you know building an altar i'm like

[00:54:31] saying a prayer quietly as possible and i just thought this young woman is so phenomenal i think what's great about what's different about the world that that you get to live in maybe that's a little different because you're a little younger than me is that women can step out right now and then step back in and that hasn't always been that way there's been a time where women stepped out we were just out you know when it became well you gotta go raise your family again but right now this is a world where you can make choices and say I'm going to be in I'm going to step out I'm going to step in and you and that's the world you're living in now I'm so excited about that because when you told me this my response to you was you could not be making a better decision

[00:55:09] You could not be making a, I am so happy for you that this is a decision you get to make. And then when he's in, when he's 19 years old, you can step back in if you want to, which would be, you know, if you want to do that. I, I actually, it's interesting because I told you I had been here for about six months because I'm always looking for someone's tail.

[00:55:31] You know, and I said to you one time, I found her tail because you are always so calm. But you remember what I said your tail was? Exactly, that's your tail. When you start doing that like a lot, it's like that's your tail. But you never would notice it because you really are calm and calming.

[00:55:48] I think that what hasn't been said, and what's more important to say, that there are a lot of people who can function well and do a job well and do many jobs well. There are very few people that can

do it with the grace that you've done it.

[00:56:05] Do it while encouraging others. Do it while trying to calm other people down. Doing a job well is one thing. doing a job well, um, with grace and dignity that encourages other people. And I said this all the time. I am older than you, but you, I have looked up to you. And sometimes we have to know who to look up to, no matter what age they are. I'm not that much older than you, just a little bit, but I've still looked up to you. Um, I, I will miss you, but I'm also kind of excited what we can, what we can do next, right? Cause now I can like go out to coffee with you and maybe go shopping and

[00:56:43] And we can go DSW. We can go DSW together. So I'm excited about what was. I'm also excited about what can be from here on out. So I'll miss you, but I'm excited about what we're about to do together in different ways just as much.

[00:57:03] So I absolutely adore you. I think you're wonderful. You're smart. You're brilliant. You're funny. You're kind. You're graceful. You're faithful. And I am extremely happy for you right now. That's the one thing I feel more than anything else. It's such joy for what you get ready to do right now with your life.

[00:57:27] Well, this is such a very great honor. And all of you being here, I had no idea that our past board members were going to be here. That's so special. Thank you all for coming.

[00:57:44] One of the greatest things about this job is that we have such a wonderful board, and we have had wonderful boards my entire career, that are dedicated, kind human beings who treat staff with respect, and because of that, we get so much done, and it's an incredible job, and most of that is due to you all, past and present.

[00:58:14] It's just amazing that I've gotten to see so many elected officials do so many great things and been a part of what Loudoun has done. So thank you all. Thank you for always treating me and staff with respect, even when we may have been disagreeing with you or telling you something that perhaps you didn't want to hear.

[00:58:38] You all are so kind, and I'm so grateful for each of you. So thank you very much. um and to Mr. Hemstreet um you're the you're the best boss mentor that I could have ever asked for um you gave me so many opportunities even when I doubted myself and my abilities you did not and sometimes you even gave me a push to do things that I didn't think I could do um but you thought

[00:59:11] I could. And I've had the most amazing experiences that I never dreamed I could have. I think I've packed an entire, I don't know, 40-year career in these 21 years. That's what it feels like. And so I just thank you for the support. Thank you for always believing in me and letting me respectfully disagree with you whenever I wanted to. That was always helpful. So thank you

[00:59:47] and to all my colleagues. I've so just cherished every one of the interactions we've had and all the wonderful things that we've experienced and they will be part of my story forever. So thank

[01:00:17] you very much. Gifts are from board members, the board members. I'm going to hand them so they're not in the picture when you start opening and you're going to see a theme and I just want you to go with the theme and follow the theme you'll understand that when you start opening them I'll just follow the theme of the gifts but I'm going to take them out the picture right now okay so we can figure out how to take a picture and Mr. M did you want some other people to come down for

[01:00:54] the pictures or pictures or how you want to do this or how do you want to do this Glenn I mean

[01:03:11] that could happen Erin sit here Erin no Erin can sit because it's the you'll see her sitting if Erin is sitting. Can you see her sitting? Oh, she's coming. I don't know what we're doing now. I'm not sure what you're doing. Oh, only board members on the dais. Oh, okay. I didn't understand what Glenn was saying to me. Okay. Okay. Oh, all the board. Oh, I got you. I'm feeling you. I'm feeling

[01:03:35] you. Okay. On both sides. On both sides, Mr. Sains. I mean, Mr. Buckingham. There we go.

[01:03:53] Double layer, double layer guys, crunch in, turn sideways, turn sideways, do the kneel in the front.

[01:04:27] We're not doing the cheerleading kneel. We're not doing the cheerleading kneel. Supervisors, can you guys stay so we can get a picture? Glenn, can I get a picture of the supervisors and Aaron? Sorry everybody.

[01:05:02] We're going to hold it like this. No, no. We're going to be up here. Do you want all past and present, right?

[01:05:19] Yes. She's coming up.

[01:06:41] Supervisors, I'm going to go ahead and do the DMV moves item, which is item number four.

[01:09:56] It's the endorsement of the DMV moves resolution. Let's try this a second. Here we go. I'm going to go on ahead and do the DMV move item for a couple of reasons.

[01:10:13] I can get Mr. Mercer out the door. He has a pretty big day tomorrow, and if we keep him here all night, it's going to be tough for him. And it's not, in my opinion, it's not a hard item, and we can get it done and then have an action item down before we move on.

[01:10:31] So DMV moves item is number four. Thank you for being at the desk. Thank you, Mr. Gross. Thank you, Mr. Brown. Mr. Mercer, welcome to the county boardroom in Loudoun County. Best county in the country. Best county in the region. They're all good, but we're the best one. If you've never heard me say that before, he has got the memo.

[01:10:58] I say it all the time. Welcome to Loudoun County, seriously, sir. And many board members have received a kind of initial briefing. Of course, Mr. Letourneau was on the Yamada board, you know, since for years and years. And I have briefed many of the members already. So it shouldn't be as long as it might have otherwise been. But we're ready when you are.

[01:11:16] Excellent. Well, thank you for having me. And timing-wise, this is perfect. I was at the city of Bowie last night, and they start their council meetings at 8 p.m. So, and as I discovered, there's no limit to public comment. So I was there for a little bit. So I appreciate being here. I will not trespass too much on your time. I do a COG 101 for each of our 24 members. I'm happy to come back to do that. I think you all are familiar with the council of governments we represent and work with 24 local governments in Northern Virginia, suburban Maryland, and the district.

[01:11:45] We've got legislative representation, so Delegate Sickles sits on our board, Senator Feldman and the mayor in D.C. and the chair, the council there, Mr. Mendelsohn. We work on issues that don't stop at a boundary on a map and that you can't solve in a vacuum.

[01:12:01] So we run 28 different public safety programs for the region. We have a clean air, clean water program. We do joint procurement for the region, saving our members money. we do a lot with

transportation out of our 140 staff about half of our staff are transportation professionals we house the transportation planning board and the federal government actually mandates that if you have over 50 000 people in a region you have a transportation planning board they will not put a dollar on a road or transit project unless it sits in a the transportation planning board's long-term plan so most notably tpb a few weeks ago for example the the proposal by Virginia to extend the hot lanes over the Wilson Bridge and into Prince

[01:12:41] George's County is a perfect example of the kind of issue that our TPB takes up and ultimately that project for now is not included in the long-term plan. So DMV moves oftentimes when the district knows an issue needs to be addressed but doesn't want Virginia to have a lead or Virginia knows something needs to be addressed and Maryland's not going to have the lead they look to COG to take the lead on an issue. This will be year three as the director of COG and when I I came on board, was told that Metro wanted to partner with COG to look at long-term funding issues, particularly on the capital side, and also coordination issues amongst all of

[01:13:19] the transit providers, of which there's over 10 bus providers. We have VRE, we have MARC, and we have Metro. Level said a little bit about Metro and just the value of Metro to the region. So within half a mile of Metro stations and bus stops, 60% of the population in this region lives, 2.8 million people, 70% of the jobs, 1.7 million. There's 134,000 businesses. That's half of the employers in the region within half a mile of a metro stop. Generates \$9.4 billion in business output, \$330 billion in property value tied to metro stations, and 3.2 annual tax revenue generated

[01:13:56] in and around metro stops. And I don't have to remind this board, but the footprint that we represent for COGS about 5% of the land mass in the Commonwealth of Virginia. It represents nearly half of the state's GDP. So Metro has a significant boon to the state economy. In terms of how Metro is doing, you mentioned Mr. Letourneau serving on your board, who's probably forgotten more about Metro than I will ever learn. Metro's been on a pretty good streak recently, 54 months. He misses it. He misses the Metro board so much. Well, hey, you know, careful what you wish for. 54 months of consecutive growth of ridership, nine years of successful audits, APTAs, the National Trade

[01:14:35] Association for Transit, just named Metro the number one rated transit agency in the country, a 55% decline in crime, it's a 10-year low, and with the new fare gates up at stations, an 82% decrease in fare evasion. So DMV moves sought out to do two things. One, to look at how we can better coordinate between all of our transit providers and provide better efficiencies.

[01:14:59] uh and and service to the the riders and to look at funding and that funding will get into looks at all transit in the region but it's it's largely focused on on metro and there's two sides to that coin when we look at what's going to be manageable funding moving forward for metro one what does metro need for a safe and reliable system a system where they can put money into bonds on the capital side pay those bonds off and issue new bonds a revolving bond program so i'm not back here in five years having the same presentation to this board and two what's manageable for the folks paying the bills for metro making sure that it's not a cost a year-over-year cost increase it's

[01:15:36] simply unmanageable for the taxpayers let's see here oh maybe i do need you to go oh there we go so this is a summary page here on the left is is that number 460 million started out closer to 1 billion was the ask for metro for a safe and reliable and state of good repair working with folks like Mr. Hemstreet and Chair Randall. We had a task force made up of elected officials from COG Board and from the Metro

Board. We had two workgroups. One workgroup was the Government Partners Workgroup. So it was Mr. Hemstreet and all of the CAOs from the region, the CFO from the

[01:16:16] District of Columbia, the Northern Virginia Transportation Authority, the Transportation Commission. And that was led by Brian Hill, the CAO in Fairfax County. So I just came from a similar briefing with the Fairfax County Board of Supervisors. And Brian did want me to mention that, Tim, that he had the first briefing. The second group was led by Jack McDougall and the Board of Trade, and that included just about every business group, chamber group, Greater Washington Partnership. It also included labor. It included environmental groups and rider advocates, and it was a pretty, both groups were large, and the point of that was we wanted to be

[01:16:53] as transparent and inclusive as possible. At the end of the day, we said we may not find consensus between all of those groups, but we didn't want anyone in the region raising their hands and saying they didn't have an opportunity to offer their opinions and thoughts and be engaged in the project. So that \$460 million is split between the three states, and the three states pay their metro bills differently. In Maryland, the bill goes to Annapolis, and their share of the bill is 100% paid out of state tax dollars. Obviously, D.C., it goes to the district they paid in full. And here in Virginia, typically that bill is split 50% between the state and 50% between the

[01:17:29] localities. So Virginia's share of this proposed new money on the capital side for Metro would be \$142 million. I will say we started out this process 18 months ago, and there was an operating shortfall for Metro that due to their own belt tightening, that fare evasion that's come down sharply, and increased ridership, they have all but eliminated the need for more additional money on the operating side.

[01:17:55] That three percent increase per year is a really important piece of this slide. Metro's money that goes to it has been flat. So in '18, I was down in Richmond when new money was put in to Metro. That money was flat year over year, and I don't have to tell anyone that pays bills for the county or your own business that costs have increased since 2018.

[01:18:17] So the buying power for Metro and those capital dollars is sharply curtailed since 2018. So that 3% year-over-year increase, Metro would have to live within that from one year to the next. And I will say in 2018 that if you ask Virginia, Maryland, and D.C. what that new money would provide and what that 3% cost cap meant, you would get three very different answers.

[01:18:40] And that's a problem. And that's something that we seek to solve when new money is put into the system is what are the expectations and assumptions for metro in terms of ridership and then and then two what does that three percent cap mean and let's have a common definition between Maryland and Virginia because without that you see cost increases that are much higher than three percent year over year the middle there was a was a big piece of discussion on bus rapid transit and essentially bus corridors in the region recognizing that buses leave Loudoun County they go into Fairfax and going to D.C., and a commitment from the different providers to work together

[01:19:20] to treat those roads, work with the VDOTs and MDOTs of the world to get dedicated lanes where appropriate, and to make sure that the buses are moving a bit faster than they do now. We worked really closely with SJ28, which is the Senate committee here in Virginia, and the numbers on the right are largely identical to what SJ28 came up with, and Kate Mathise and the NVTC board did a great job of shepherding that process.

[01:19:48] But there is an additional amount that is needed to sustain local transit as well, and you see that articulated there in the top right corner. And the bottom right is commuter rail. If you look at other major metro areas and even ones that are a lot smaller than the D.C. region, their ridership on commuter passenger rail is much higher.

[01:20:09] And so with the rebuilding of Longbridge across the Potomac, It's a multi-billion dollar investment on behalf of the Commonwealth. We have a once-in-a-many lifetime opportunity to increase the number of VRE trains that are going across the river. We have an ability to send them into Maryland, and for those MARC trains, we have an ability to send them into Virginia.

[01:20:33] Oh, okay. I'm not going to read this, but what I'm going to say is the recommendations on this slide, you have seen, if you have read any study on Metro in the last 30 years, you have seen all these recommendations be made before. And the charge to my staff when I came on board was, one, let's evaluate recommendations that have already been made, see if they've been implemented, and then ask ourselves if they haven't been implemented, are they still relevant, do we still believe they should be implemented, and let's answer the question, why haven't they been implemented in the past?

[01:21:02] And I think the answer largely is because groups like COG are the board, or you get a former Secretary of Transportation to come in and do a high-level report and say it'd be good to have consistent fare policy. Then the group dissolves, and we all look at each other in the region and say, what exactly does this mean?

[01:21:19] Who has ownership of this recommendation? And we all kind of go on our way. So the report includes assignments for who's responsible for these recommendations. and the Transportation Planning Board will be taking up many of them. Many of these recommendations will be parked at TPB, and my deputy, Conti Srikant, is committed to making sure that we see many of these recommendations through.

[01:21:42] Some of these are like transfer policies. If someone's taking the Loudon commuter bus and gets on a metro, to have a transfer policy where there's a discount on the ride when you get on a metro. Do we treat children across the region the same way? So in some jurisdictions, kids ride free. In other jurisdictions, they don't.

[01:21:59] what's our senior policy for fares. That's a little bit all over the map. What's our policy for fare discounts for those who might qualify? As you look at signage, you have to have a PhD in transportation at the Pentagon, and you look at 13 different signs for buses. They're numbered differently. The numbers to call for services are different. So a commitment to not getting rid of a logo that you have in Loudoun County, but having that logo be on a sign that's clean and neat, Just like when you go into National Airport, all the logos are there, but they're organized in a way that's thoughtful.

[01:22:34] Numbering of bus routes, things that get really wonky quickly. But we have bus stops that are serviced by four different bus providers, and on the back end they're numbered differently. And that doesn't allow you to go to one app and check to see when buses are coming to and from that bus stop.

[01:22:50] And so a commitment, and this will be COG and TPB working with your transit staff to make many of these policies a reality. And that articulates a couple specifics here. The commuter bus transfer policy, the discount policy to Metrorail Metro bus.

[01:23:10] We'll have it de minimis financial impact, but we'll have a small impact to the county. We've talked to Mr. Hempstreet about this. And then the customer info and signage recommendations, the bus

stop design. Performance metrics is really making sure across this region that we're comparing apples to apples when we look at bus routes.

[01:23:30] And then the last one there, cooperative purchasing. So we buy everything from diesel gas to bottled water for the region. Loudoun County buys the same diesel gas that Fairfax does, that Montgomery County does. When you buy that together, we can leverage cost savings. The same for our transit companies. So we got all of your procurement folks together talking about everything from bus soap to tires to buses recently and a recognition that if we can do more cooperative purchasing, we can save the taxpayers more money.

[01:23:59] And so now we're at the point where I'm wrapping up this presentation, but we are handing off our recommendations. We had a joint board meeting between the entire COG board and WMATA board a couple weeks ago and voted on a resolution that you have in your packets. And we are working with our delegates and senators in Annapolis and Richmond and in the district to try to effectuate this funding.

[01:24:23] And a recognition that all three states are probably going to move at a different time, that budgets are in a different place in Maryland from the district to Virginia. But you've got to have a plan, and you've got to have consensus and work that plan sometimes for multiple sessions to see things through. Great.

[01:24:40] Happy to take any questions you might have. Any, Scott, you want to add anything? No? So, supervisors, again, most of you have had the briefing already, so you've seen it. But if we have, and then I will make, I'll make the motion. ready to make the motion. If you have any questions, put your light on and do it at this time. Ms. Bricksman, do you have any questions? I do not at this time, Madam Chair. Happy to support the motion. Thank you. Mr. No, you're good. Ms. Um, stop. Thank you, Madam Chair.

[01:25:14] Is it, if you feel you can respond to this, is it your perception that currently the city council in dc is opposing the allocation that has been attached to to them the financial requirement yeah not at all no um a couple issues coming out of the district one the mayor's in the process of putting her budget together uh and uh and communicated that largely supportive of what dmV moves came up with but doesn't commit to anything in her budget until it's publicly

[01:25:50] released in her budget so that's um kind of coming from from the mayor's office which certainly we respect that process. And then there was some discussion. Chairman Mendelsohn supported all the recommendations in this presentation, but has some fundamental issues with the Metro funding formula, which was not within the scope of DMV moves, and understands that and respects that. I will say DC raised the sales tax 1% last year to pay for additional monies going to Metro and is ready to kind of program or put that money to their additional, this additional amount, you know, when the partners step up in Maryland and Virginia.

[01:26:29] Thank you. Yeah. Mr. Sainz. Thank you, Madam Chair. Yeah, I just quickly want to say thank you to the Chair, to Mr. Hemstreet, and all the other partners that were part of DMV move to bring this initiative forward, and to you, Mr. Mercer, and thank you for the presentation today, and good to see you again as well.

[01:26:47] You know, I understand, obviously, you know, some of the issues from the D. C. side of it, because, you know, of course, you have the whole D. C. funding it, then you have the state of Maryland, everybody, the state of Maryland's funding it, and then Virginia, we're a little bit different than the

Commonwealth, where it's just the localities that are participating in funding Metro are the only ones really funding Metro, doing the lion's share.

[01:27:11] So that's why there's some, I guess you could say, heartburn from their side, so I can understand it. But overall, I think you guys did a great job with coming up with some alternatives, coming up with the funding, coming up with proposals, working together as a collective, as a Metro rider, just about, I would say, almost four to five days a week for the last year and some change.

[01:27:34] The metro was definitely approved from a few years ago with efficiency, cleanliness, security, everything. So look forward to the improvements and definitely look forward to part two when there's more discussion regarding how we can get all of our different bus systems in sync and working a little bit better together.

[01:27:52] But overall, I think it's a great job and we'll be happy to support this and add it into our legislative program when we go down to Richmond. Thank you, sir. Mr. Turner, Vice Chair Turner. Thank you, Madam Chair. Great work. I'm really impressed with this whole DMV Moves project. I think it's fantastic. And it really elevates, I think, the entire D. C. metro area in a way that it's very unusual in this country. It really set us along. It will be the exemplar, I think, for a lot of communities.

[01:28:23] One thing that gave me pause in the item itself was this sentence in the purpose section. Staff recommends conceptual endorsement of the plan while deferring any financial commitment until the county of Loudoun's potential obligations and related legislative actions are clarified.

[01:28:39] I kind of read that as just cautionary. We don't want to make any firm commitments on finances until we see the finances. Is there something else in that sentence that I'm missing about? Superficially, it's less than a full-throated endorsement of the DMV Moves Project, which is what caught my attention, and then I reread it, and I thought, well, maybe not.

[01:28:59] Maybe it's just prudence. Madam Chair, that was for Mr. Hamstreet. Oh, Mr. Hamstreet, yes. I think you're interpreted it correctly. We're, you know, staff, we're able to recommend what's been proposed. I think part of it is the language and the specific proposal still needs to be solidified, and so there are things that we're going to want to see in the legislation, And so until we see it, we would want to be reserved about giving a full-throated endorsement until we see it.

[01:29:31] Thank you. Okay. I'm going to make a motion. I move the board of supervisors to endorse the conceptual findings component of the DMV move strategy so that is to be introduced to legislation during the 2026 June of the Assembly session. Motion made seconded by Supervisor LeTerno. Okay, a couple things.

[01:29:47] I do want to remind everyone that I railed for since 2018 about the fact that in 2018 when Metro was made, quote, whole, unquote, for that time, it was money that came out of NVTa. It was not bondable, not sustainable, and really shouldn't have happened, and there's still a \$32 million outstanding bill from that money.

[01:30:08] I think one reason that happened was because one of our NVTa members at the time, who was a state legislator, suggested it. I will say that we really do have and we really have had on COG, on DMV moves, on NVTa, we've had good state representation.

[01:30:27] And so I don't think that would happen again anyway because it's important that it doesn't. But we also have people who probably wouldn't allow that to happen again. To Ms. Umstead's question, there was, I thought, Mr. Mercer, quite a bit of talk from Chairman Mendelsohn about the allocations of who's paying what.

[01:30:45] They, in the end, abstained on the vote. They did not vote no because they didn't want to vote no on all the recommendations. They did believe it should be one-third, one-third, one-third. That's how the money should come down. Phil Menderson and I sat next to him almost through the whole process. I did remind him that the funding is done differently in each locality.

[01:31:08] I think that they needed to make that point in the DMV moves meetings, and that's fine. I believe that when it gets to the council, they're going to be fine with this vote. It's going to be okay when the mayor presents her budget. But I do think that he was trying to make a point.

[01:31:25] And the fact that he didn't vote no on it, I thought was him making the point that he wanted to see a one-third allocation. I do want to say that this was a very, very heavy lift and a very arduous process. But as hard as it was for the, quote, elected official groups, as is often true, the groups that really have, you know, worked very hard were the community groups and the administrative groups led by Brian Hill and Jack McDougall.

[01:31:54] And they did just such phenomenal and fantastic work in DMV moves. The goal is, of course, that this 460 will have a 3% increase year over year. And so this is sustainable, bondable money, which is, you know, if we don't find sustainable bondable money. We're going to be back here in five years and eight years and ten years doing this again. And when we think about how important the Metro is to the entire region, it is important to get this done now once and for all and to get it done right once and for all. And so that's why this whole effort was put together. Mr. Mercer, you did

[01:32:29] a phenomenal job in this effort, as did Nick, did a great job as well. You all just did such heavy lifting. And when we started this, I thought, where are we going? And then we got there. And then we got there. And so I'm very pleased. Mr. Letourneau.

[01:32:49] Thank you, Madam Chair. And I'll certainly support the motion. And thank you, Clark and Nick and everybody who were part of this effort. Obviously, I was on the Metro Board when we first kind of conceived of this. And there was a lot of discussions about the right partner and the Council of Governments stepped up and has been an outstanding partner for Metro, along with the Greater Washington Board of Trade and others, to really help everybody understand this.

[01:33:16] The most important part of this process, honestly, and Chair Randall kind of referenced it, was, I think, the technical committee, so to speak, that Mr. Hemstree and others sat on, because I grew increasingly confident in Metro's finances and our sort of institutional framework coming out of a tough period, but others didn't see and didn't have access to the information that I did and the conversations with staff and things like that.

[01:33:43] And so it really was important to have a group that came in and validated what Metro was saying in terms of what the needs are and in terms of how the money is being spent. The capital delivery program, for instance, even from the time that I was on the board, dramatically improved in terms of efficiency, delivering projects on time, under budget in some cases.

[01:34:02] So those things were happening, but we needed a group to come in and really verify it. So it wasn't just Metro saying that that was happening. And that's what this effort did, as well as kind of coalescing around the strategy. 2018 money is not the same as 2025 money.

[01:34:19] And fundamentally, that's Metro's capital problem. It's not because of mismanagement. It's not because of anything going wrong. It's simply that the amount of money that it takes to run something now is not the same. And when you look at Metro's future needs, particularly with the signaling system and the ability to really build a world-class automated system eventually, like some of our peers around the world, we're gonna have to invest in order to do that or the system can't operate.

[01:34:48] I think, as Mr. Hempstreet said, it will be critical as the specific language gets worked out to understand how it affects us. We are fundamentally different than every other Metro partner. For one thing, we don't have any bus service here, But also, quite frankly, we're in a more favorable fiscal situation than most of our partners are.

[01:35:06] For some of them, this is gonna be a very, very heavy list. I think for us, we're gonna wanna make sure that we have the type of optionality needed to be able to actually come up with the funding and do it in a way that makes sense for us in our budget. And so I think that that will be part of the discussion with the General Assembly as they move forward.

[01:35:23] But this has been a good culmination of this effort And I think it's a good story that Metro has to tell. You've obviously all heard me tell it, but it's great to have such wonderful partners that have worked on this for so long and come up with a very comprehensive report that the region can have confidence in.

[01:35:42] - Thanks. - Thank you, Ms. Glass. - Thank you, Madam Chair. Good transit provides a reliable alternative to personal vehicles and helps to alleviate road congestion. If we want our residents to get out of their cars and onto the Metro and local transit, We have to work with our regional partners to make commuting predictable, pleasant, and affordable.

[01:36:04] I'm very pleased to see a coordinated effort to do just that, and I'm more than happy to support this motion. Thank you, Madam Chair. - Thank you, Ms. Umstead. - Thank you, Madam Chair. I will be supporting this. I think it's important to note that although we are financially in a stronger position than some of the other jurisdictions in the region, It's because of decisions the board has made to encourage data center development in the

[01:36:38] county, something other counties haven't done, but theoretically could. And one of the statements I've heard from a member of the General Assembly is that if If localities have the option of bringing in more revenue, even if it is something like data centers, which aren't popular with everybody else, they should take advantage of that.

[01:37:09] And so I do think that, I mean, for me, when we get to a final vote on how much Loudoun is willing to commit, I want to make sure that we are not committing more than our fair share. I don't want to take on any burden from, for example, D.C.

[01:37:31] If D.C. were to insist that they should only pay one-third, they benefit far more than Loudoun County does. So that's something I absolutely support this in concept, and then we'll have to see what the financial implications for the county are.

[01:37:48] Thank you. Okay, so for my closing comments, I'll say a couple things. One, if we look at the actual presentation, I just want to kind of go back because one of the things the call for action going forward is to increase PRIA funding, which is federal funding.

[01:38:05] I've been talking about increasing PRIA funding from the time I stepped onto the COG board and I was told that it's never going to happen and we couldn't even ask because we're wasting the time and now we're talking about increasing PRIA funding or at least having the discussion and I am so glad because the federal government, the Metro moves to federal government workforce And that money does not adjust for inflation.

[01:38:25] It's been the same thing since 2010. So finally, we're going to have that conversation. Secondly, there is no way, Ms. Umstead, that we're going to be paying DC's share. The resolution has been made already. DC will vote on it. If they don't vote on it, this kind of all goes away anyway.

[01:38:40] So we never pay their share. And the way that this would work, the money that Loudoun pays in for that, we'll probably actually get a little more back and we can use on other transit issues. So that's actually not going to happen.

[01:38:56] But I would remind everybody that Metro's a regional service. And so when people leave our area to go to work in Fairfax, they're on the same metro. And so lifts one boat lifts us all. And regionalism means we don't try to pit ourselves against one another at any time.

[01:39:15] So that's important to know. And finally, I will say that every-- Every local body, every local compact body in DC and Maryland are putting this in their alleged program. And so we're all going down to our state reps in Annapolis and in Richmond with the same talking points for the same reason. I haven't verified this number, but I have been told, and if somebody knows this is correct, they can say it, that just having a metro in Northern Virginia gives Richmond about \$1.5 billion a year, somewhere around there. And so the fact that we're going to go down there and say, hey, let us tax ourselves so we can keep giving you money.

[01:39:53] I can't imagine that they would say, which is exactly what we're asking for. I can't imagine that they're going to say no to that. So I think we're going to be good, but it is important that everyone's going down and singing out the same hymnal and saying the same thing for the same region. This is, you know, DMV moves, COG, the Metro Board, MBTA.

[01:40:12] These are regional bodies for the good of the region, and so it's important that when we talk about this, we talk about the good of the region, because when people leave Loudoun County, they're going to D.C. to work, and they're on the same system, and they've got to come back on that same system.

[01:40:28] So let's just try to remember all that. So again, thank you to everyone who made this work, 18 months of tough work. I think we should have more meetings here, but otherwise I thought it was a really, really good process otherwise. So the motion was made. I made the motion, Mr. Letourneau.

[01:40:46] Second the motion. in favor, please say aye. Aye. Any opposed? That motion will pass 9-0 and will now go in our legislative package. Thank you, Mr. Mercer. Thank you, Mr. Gross. Thank you, Mr. Brown. Mr. Brown, you're so talkative this evening. It's rare. I've never heard you talk this much. I've never heard you talk this much before. I would like to say that while Fairfax may have received a briefing for us, I believe you all are the first body that has approved this resolution. Amen. And I'm calling Jeff tonight.

Thank you for saying that. Yes, ma'am. See, Clark, that's why you got to say this, that kind of stuff yeah so now jeff okay gets a call for me later on this evening thank you very

[01:41:22] much we do have time before public comments to do um an information item so that's a good thing so why don't we go on and do the adult oh i'm so excited about this the item one um i won adult behavioral health docket and allowed in juvenile domestic relations district court it's an informational item that i am really excited about how are you all doing this evening we're doing well chair randall and it's always good to start out a presentation by hearing that that you're

[01:41:57] excited about i am excited about this and we are ready when you are all right well good evening chair randall and board members i'm chip selvin the director of community corrections i'm joined at the table by miss margaret graham director of mental health substance abuse and developmental

[01:42:36] services. So with the interest and support of the juvenile and domestic relations district court and based on data trends, staff are here tonight to introduce the possibility of convening a behavioral health docket in our juvenile and domestic relations court. On behalf of the court, Chief Judge Pamela Brooks and Judge Charles Kohler are seated in the audience. Sorry, somebody's saying we have more than two judges here. You want them to come to the table? I think If we have judges in the room, they should always come to the table if they would like to.

[01:43:14] And because they're judges. I know. Would you like to come to the table? Both of you? Yes, please. Absolutely. Thank you for being here. You ready? I'll start over.

[01:43:34] With the interest and support of the Juvenile and Domestic Relations District Court, and based on data trends, staff are here tonight to introduce the possibility of convening a behavioral health docket program in our Juvenile and Domestic Relations Court. on behalf of the court chief judge pamela brooks and judge charles kohler are here with us we are grateful to the board for its long history of programs supporting diversion for those with behavioral health diagnosis including the adoption of a resolution to support the national stepping up initiative in 2018 as referenced in the item you may recall that this initiative led by the

[01:44:14] the National Association of Counties sought to safely reduce the jail population of those suffering from mental illness. In FY 2019, the Adult Drug Court, now more appropriately called Recovery Court, was launched to serve offender's sentence in the Loudoun County Circuit Court.

[01:44:34] Additionally, the Mental Health Docket, now known as the Behavioral Health Docket, was also launched to serve offenders in the Loudoun County General District Court. In FY 23, The Loudoun County Veterans Treatment Docket was launched to serve offenders in the General District Court.

[01:44:54] I'm very proud to say that referrals and enrollment to these programs are strong. That's great. There is, however, one court that is not served by a specialty docket, the Loudoun County Juvenile and Domestic Relations Court.

[01:45:12] Staff in Community Corrections and MHSADS have been working with this court to review data for more than a year to assess the benefit of a behavioral health docket for this court. This docket would offer a sentencing alternative to the court that provides rapid intake into treatment and specialized probation supervision to address significant needs and produce better outcomes on probation, enhancing public and family safety.

[01:45:39] The target population is adults 18 years or older with a serious mental illness or co-occurring disorder. Our data shows that this potential docket can offer several benefits. Often offenders with behavioral health diagnosis struggle to satisfy the terms and conditions of their supervision. In addition to intensive treatment and supervision, if approved, this docket will provide qualifying offenders with a host of wraparound services, thereby promoting the best

[01:46:14] legal and clinical outcome of their case. Because this option is not currently available to the court, cases may be dismissed, null prost, or placed on probation without addressing the defendant's behavioral health needs. A jail sentence may also be imposed in some cases. Our participants who successfully complete the program will have their cases disposed of according to an accepted plea agreement, which may reduce or dismiss the charge. Finally, this docket can add an additional level of support for the loved ones of those involved in the criminal justice system who are struggling

[01:46:54] with a serious mental illness. This docket would create the first adult behavioral health program in Virginia that serves a juvenile and domestic relations court. Staff have determined that this docket can be piloted using existing resources with an initial capacity of 10 participants.

[01:47:15] If launched, our department's data collection team will monitor participation and trends to inform whether additional resources should be requested during a future budget process. If the board approves, staff in collaboration with the Juvenile and Domestic Relations Court will move forward with submitting an application to the Supreme Court of Virginia for approval of the docket and for its development and implementation.

[01:47:46] If our application is approved, we will work internally on the necessary steps for a target launch time frame of July 2026. Thank you for your consideration of this request, and we're happy to take any questions that the board may have. This is phenomenal, but I will take questions from anyone who may have questions.

[01:48:08] Ms. Umstead. Thank you, Madam Chair. How would this program, if at all, work with the Crisis Intervention Center?

[01:48:27] And when you are trying to get people out of jail and into treatment, are you looking for the county to fund another longer-term center for these people?

[01:48:42] No, the Crisis Receiving and Stabilization Center would be a resource available. The support from the Department of Mental Health, Substance Abuse, and Developmental Services to this docket would be outpatient therapy and case management within the team of folks working from community corrections and law enforcement and the judges, of course.

[01:49:04] So these folks would be sent home? Yes. But hopefully not if they were a danger to themselves or other members of the public? If they need to be hospitalized based on mental illness, that would occur either voluntarily or involuntarily, and if the crisis receiving center is open and available, as an alternative, they can go there.

[01:49:32] Okay. Do we have hard numbers on how successful our other specialty courts have been? We do. I do not have the successful completion rate of recovery court.

[01:49:53] I want to say it's in the mid-60s, but the behavioral health docket in general district court has an 83% successful completion rate, and I believe in the last couple years, they've had a 100% successful

completion rate.

[01:50:09] And the judges appear to believe these programs are successful. Okay, thank you. Thank you. Ms. Brixman, do you have any questions? I do. Thank you, Madam Chair. I agree with you, Madam Chair, that this is a great step for the county, and I have been impressed with our specialty dockets in the past.

[01:50:32] I do have a couple questions. It says there would be no new fiscal impact to setting up the behavioral health docket. I find that hard to believe. And are you sure that we won't need new resources?

[01:50:48] I mean, I would be supportive of new resources, but it seems to me like we might need some. So speaking from our perspective, Ryan Moody, who's here with us, is the presumptive coordinator of that docket. He's also the coordinator of the Behavioral Health and the Veterans Docket.

[01:51:08] In FY 2025, Community Corrections realized that there needed to be a mental health PO to serve the J&DR court. So we proposed that in our budget. Okay. Mr. Hemstreet was kind enough to include it in his budget and the board was kind enough to approve it. So for us that that position is in place and it's ready. Okay. And then it mentions in that last slide, you just showed an advisory committee. Would this be a new advisory committee? Where would it sit? Is it not possible to use an existing advisory committee to take on this role?

[01:51:46] role. My concern is, you know, advisory committees, boards and commissions do take up a lot of staff time. And so I'm curious about what you're thinking about that setup. So the advisory committee would be community stakeholders that serve the docket. So it would be the commonwealth's attorney, community corrections, mental health. It wouldn't be anything that would require any action from the board um and and we've already so no county staff uh uh to run it mh

[01:52:18] sads community corrections uh the the the folks who actually work on the docket okay okay so it might it might take up some county staff time in that department to have a new advisory committee correct it okay it would just be part and parcel of of our job okay do you think it would also create some efficiencies in departments? So the purpose of the advisory group is to really look at the operations of that. Oh sorry I meant the program in general. Yes okay because we talk about

[01:52:56] how it works in the success rate and approaches if there's issues within the team. Okay okay well I'm very happy to support and I look forward to the success. Thank you. Thank you. Thank you. Mr. Sainz. Thank you Madam Chair. Thank you for the presentation. I like the updates on the on the docket name changes. I think that's great. Can you clarify for me, elaborate, what does co-occurring diagnosis, like what does that cover, what does that mean? If you have a serious mental illness in addition to an addiction, they're co-occurring. If you have depression and alcoholism, they're

[01:53:34] co-occurring. If you have a developmental disability diagnosis, like intellectual disability and a mental illness, they're co-occurring. They're happening at the same time. Okay, thank you for that um and then you're targeting it says 18 and above so would there be any requirements for like a number like say you want to get a couple of 18 19 year olds and then maybe some older folks is there how does that work it would be based on on the referrals that that are received for that program um and there's no uh the only requirement would be that they would have to be 18 years or

[01:54:13] older okay all right and then uh i don't think it was in the well it's not in the presentation but i'll double check in the packet but if not can you email us your your information about you said your your um your numbers for the other dockets the uh success rate yes absolutely yes and then you mentioned one

was that what were the numbers again for the three dockets that we currently have As far as the success rate, I don't have the Veterans Docket success rate.

[01:54:44] It's 83% for the Behavioral Health Docket success rate. Okay. And what would be some of the reasons for somebody not to complete the program? If you have some examples off the top of your head. So, you know, what we talk about is disengagement with the program.

[01:55:01] So, I mean, potentially multiple positive screens, you know, refusal to attend treatment, refusal basically to cooperate with the program. And what happens to somebody who doesn't, like, showing those behaviors, what happens to them?

[01:55:18] So then at that point, a KPIS would be issued and there would be a violation hearing scheduled. Okay. And then they kind of just go back to the regular program and say, hey, we gave you an opportunity for this alternative. Things are not working out, so we're going to go the old-fashioned way, I guess.

[01:55:38] I'm definitely in support. Thank you. Thank you, Mr. Sains. Mr. Letourneau. The one thing I wasn't quite getting is what is the actual program capacity today, the adult behavioral docket, and then how big is this potential expansion? So the current adult behavioral health docket in General District has a capacity of 20.

[01:56:00] We're at 15. This docket, we believe we can pilot it with 10. So it has a capacity of 20, but we have 15 enrolled? Correct. Okay. So are there any new resources needed anywhere for this?

[01:56:18] I don't believe so. Okay. Not even on that side. Okay. Not even on the judge's side. Okay. Well, great. Thank you. Sounds like an easy win. Mr. Kirsten. Thank you, Madam Chair.

[01:56:34] Thank you for being here, Judge Brooks and Judge Kohler. I know you get up early, you start your dockets, so being at a board meeting is probably not something you look forward to every morning, but thank you for being here. First of all, I'm a big fan of the alternative dockets. Sadly, I think one of the breakdowns we often have, especially as attorneys who work in the court system, Commonwealth attorneys, that sort of thing, is just getting that information to us, who's the right kind of candidate, making sure they get evaluated, that sort of thing.

[01:57:01] And so as you move forward in this, I would strongly encourage you for ways to really expand knowledge to those who can help identify that because I just know from personal experience it's not always there a lot of times I'll be working with a prosecutor on a case and case will come up and say oh well this this will be good for this doc it's like never even occurred to me just because you know you just that that information isn't always out there so um and I appreciate you being willing to take this on because it's a lot of extra work for the judges are we going to split it all four ways or is it going to be we're going to have a dedicated docket

[01:57:35] and initially i will handle that docket but as i'm approaching retirement judge kohler's going to take it okay so you're handing it off to the young whippersnapper right yes sir so thank you for doing that um i guess in terms of who will qualify and who will not will be largely modeled after what currently exists in general district court are there certain types of crimes or offenses that maybe are more appropriate can any anybody speak to that so um what i would say first is obviously we're here tonight to get permission and the blessing to start the uh start the docket

[01:58:11] and then we'll start having more of those robust uh conversations about eligibility um because we do need to pull in our advisory committee uh to define that okay but we go yeah if judge brooks could weigh in on that one thing that that came to that made me want to push for this is over the 20 plus years I've been sitting in the same chair. I see adult children who are charged with domestic violence against family members and while the crisis center is certainly helpful these parents

[01:58:47] will call they'll ask for help for their children but they're adults so their legal rights with these adult children who are charged with crimes are not the same as when they were minors. So the whole point of this docket is to try to provide a resource to someone who is suffering a behavioral health issue without handling it in the criminal justice system to the extent that we can.

[01:59:13] Because when these parents are calling the police, they're asking for help. They're not asking to have their child put in jail. So I suspect, and I think Judge Kohler can agree or disagree, but anecdotally, most of the folks that I anticipate would be eligible for this would be adult children who have committed assault and battery on a family or household member.

[01:59:36] Super helpful. That's exactly what I was looking for. Thank you very much. Thank you. Well, first of all, I am excited, and thank you. A couple things. One, we moved into the Stepping Up initiative in NACO. In fact, I was on the first Stepping Up board when we came, And so that was kind of a sea change for Loudoun County to become part of the Stepping Up initiative.

[01:59:58] It is almost always more expensive to incarcerate than to treat. Incarceration in Virginia averages about \$57,000 to \$60,000 per adult. Treatment averages usually about \$15,000. And so you're always going to save just flat money, not to mention all the other benefits of treatment versus incarceration.

[02:00:18] So if you have the choice, you want to try to do treatment first. You're safe, literal money, but you also keep families together and a whole lot of other things. And, of course, all of these safeguards are put in place that you do not. Somebody who is of danger to themselves and to their family, you look for those things all the time anyway.

[02:00:37] Margaret, a couple of questions to you. We do have co-occurring disorders. Of course, we all know that when you diagnose a co-occurring disorder, substance abuse is diagnosed first. How would you choose which court they go into, the recovery court or this court, Is it because that maybe they've been in recovery?

[02:00:55] It's co-occurring, but they've been in recovery for six months already, and so they would go in the behavioral health court, whereas if they're very newly in recovery, they would go to the recovery court. How would you choose that, which court they go in?

[02:01:11] So my department and my staff would not choose which court. That would lend with the judge. Okay. Chair Randall, that would fall under the jurisdiction of the courts So the recovery court right now is in the circuit court. Obviously, the statute determines which court a particular person charged with a crime would land.

[02:01:35] For example... With so much respect, I don't want to interrupt you, but I have one minute. And I stick us pretty hard to our time, so I apologize. So then a person with a co-occurring disorder may get the same type of treatment, depending on what court they go to, depending on what the need is at the time.

[02:01:51] Yes, ma'am, depending on where the jurisdiction falls. Okay, but it's the same treatment model. Are you doing evidence-based curriculum? That would be our plan. That's your plan. Wonderful, wonderful. And is the therapy all group therapy, or is there any individual therapy? It includes individual and individual.

[02:02:10] I don't know why I'm having a hard time with that word. And we follow the phases models. Ah, youch. Okay, well, I like that model for incarcerated and these types of settings. like it for other stands, but I do like that. That's the model that's out of Memphis. It's a very strict model to use. So that's good actually. Yeah. This is phenomenal. Thank you. Thank you.

[02:02:35] Thank you so much. Let us know how it's going. Come back to us. Stop me on the street and tell me. We're very excited. Hopefully you won't be retiring too soon because we want you to stay stay around for a little bit longer. I'm in my last term. June 30, 2029. You have a date. You have a date. That's when the term ends. But thank you for your support. Well, thank you all. I appreciate it. Okay, supervisors. It is 5.59, so we can go on and go to public comments, and then we'll try

[02:03:09] to do a couple more information items before we take a break. So let's do public comments, and Give me one second. I want to make sure that I call people whose items are on the agenda first.

[02:03:29] And I think I can see that pretty well. Because we have reconsidered an item, the Runway 30 is an item considered on the agenda. So we're going to go first with Robbie Ballaram, who's remote, and then we'll go to Charles Lamb.

[02:03:50] And then we'll go to Theo Stamatis. So is Robbie online? You there, Robbie?

[02:04:07] Yes, ma'am. I'm here. Can you hear me? We can hear you. We're ready when you are. Okay. Thank you. Thank you. Thank you, Chair Randall and the Board of Supervisors for your continued focus on the Runway 30 project. Truly appreciate all the attention that you've done for this.

[02:04:24] As you know, I'm a pilot that flies routinely here, representing the 7,000 homes and 28,000 residents of the Brambleton Community Association. And perhaps most importantly, a member of your design group, a design group composed of members, representatives designated by the Loudoun County Board of Supervisors and those specific 10 communities.

[02:04:52] We have an opportunity today to move forward the remaining third recommendation that came out of this design group. And as part of this, we don't expect the Board of Supervisors to be experts on this matter. I've had over 25 years in the aviation industry, and I am not an expert on this matter.

[02:05:11] What we look for with the Board of Supervisors is to make tough decisions without perfect information, but most importantly, to trust in the process and to trust the experts. Those experts were part of the design group, and we had a design group that was inclusive of the community that came to consensus.

[02:05:35] So just as there are not specific, for example, Board of Supervisors that represent every single community individually, it's a representative process. So, ultimately, what we're looking for is to move forward and let the aviation experts make the final decisions on the specific recommendations as they've been through consensus.

[02:06:02] Thank you, ma'am. Thank you, sir. Thank you. Charles Lamb, you'll be followed by Theo Stamatis. Good evening, sir. Good evening, Madam Chair and Supervisors.

[02:06:21] Charles Lamb from Brambleton, Virginia. I stand or come before you tonight in support of a reconsideration of recommendation number three. I never expected recommendation number three, the way it was presented to your last business meeting, to pass.

[02:06:44] Not so much because of what you said that night, but what you didn't say. I believe there may have been some perceived conflict of interest. that may have prevented you from voting in affirmative for that particular recommendation.

[02:07:06] The core essence of recommendation number three is about bringing some sort of order to airplane departures from one-way through zero. Overflights are primarily the result of communication between the ATC and pilots upon departure while they're taking off.

[02:07:29] Recommendation number three is an attempt to bring order and consistency to departures by requiring pilots to use airplane flight computers programmed with predetermined departure navigation instructions to include direction, speed, and altitude.

[02:07:50] Leaving the direction and altitude of how airplanes fly over our communities up to air traffic controllers would be like leaving the location and construction of data centers up to Amazon and Microsoft and Google. That doesn't happen, right?

[02:08:12] Or leaving the route of high-powered voltage lines and the location of power substations up to Dominion and the SCC. Or leaving the speed limit in traffic-like locations on primary and secondary roads going through our communities, leaving that up to VDOT. That doesn't happen. The distribution of airplane flights throughout the AILD is not fair, it's not equitable the way it's now done.

[02:08:49] Recommendation number three would bring some sort of order to that process. The fact is, all the planes that leave off of Runway 30, there are thousands of them, also arrive at the airport, the same number. They do so for the much narrower approach path. I know there's differences between the aviations and landing as opposed to departures. Mr. Lamb, I'm going to have to stop you because your time is up. Thank you. Thank you, sir. Appreciate it. The Ostomatis, followed by Donna

[02:09:28] Wadowski. Good evening, sir. Good evening, Madam Chair, members of the board. My name is The Ostomatis, Loudoun County Chamber of Commerce. On behalf of the Loudoun County Chamber of Commerce in the nearly 1,050 Latin County employers we represent, I'm here today to express our strong support for the residences at Dulles Plaza and the project applicant's plan to build approximately 290 attainable housing units.

[02:10:01] This residential development would provide a meaningful contribution toward addressing our region's housing affordability challenges. This project is especially significant as it represents the first planned unit development, or PUD of its kind in Loudoun County and would allow for 100% attainable housing as it is being pursued by Fairfield.

[02:10:22] This unprecedented commitment from the private sector aligns directly with the needs of our essential workforce, including educators, first responders, service industry employees who struggle to find attainable homes close to their jobs. Beyond providing immediate housing relief, the strategic location of this development help further grow this area of the county and is essential to bolstering the future success of landmark mixed-use development projects rovana and waterside by ensuring a diverse and stable housing supply this project secures the necessary workforce foundation for these major economic

[02:11:01] fat economic anchors we commend the county's leadership and staff as well as the developers for advancing this exemplary project which is designed to provide a high quality amenity featured project which is designed to provide a high quality environment for all to those who will call this development for the residents of dulles plaza home the loudon chamber believes this project is crucial to maintaining our regional talent pipeline and ensuring land remains a thriving and inclusive place to live work and play thank you madam chair

[02:11:37] for your time thank you it's live work learn and play mr tomazica got fixed got fix it man we rather that learn man um donna wadowski you'll be followed by martha pokey and lisa um trite shield and both of those are uh citizens are on um virtually miss wadowski okay Good evening. I'm proud to have graduated from the 54th Loudoun County Sheriff's Office Citizen Police Academy on November 20th.

[02:12:10] It was an excellent program and is open to Loudoun County residents. It covers 11 straight weeks for two and a half hours every Thursday. Some of the sessions include homicide, domestic violence, forensic services, fraud and abuse, and the emergency management.

[02:12:31] It also included the SRRO program, which received the National Association of School Research Officers Award a few years ago, making it one of the best programs in the nation. My husband and I have a combined law enforcement background of over 60 years on a state and federal level.

[02:12:55] We have worked individually with our local, state, and federal law enforcement partners across the United States and in foreign countries for presidential and cabinet secretary visits. My husband and I can say that the Loudoun County Sheriff's Office is the most professional law enforcement agency in the nation we have ever seen and should be praised by county officials.

[02:13:23] As far as ICE goes, Supervisor Briskman and her activists continue to mislead the public regarding the Sheriff's Office agreement with ICE. Only after a person is arrested, processed, and run through a mirage of law enforcement databases and only if identifies as an inmate they have a detainer on them for serious criminal offense.

[02:13:47] The sheriff's office will hold them until ICE picks them up. The sheriff's office gives ICE 48 hours to retrieve the inmate they have on hold. They do not engage in field enforcement with ICE, and Supervisor Briskman knows this and continues to report inaccuracies and misinformation to the public.

[02:14:11] Kevin Dunlop of the band Whiskey Valor wrote a song, Praise in the Loudoun County Sheriff's Office. They have no affiliation with the Sheriff's Office. It is an excellent song, and I encourage everyone to listen to it. Merry Christmas and Happy Hanukkah.

[02:14:30] Thank you, Ms. Wadowski. Martha Polky and Lisa Trichill, followed by Beth McLean. And you and Ms. McLean is in the building, I do believe. But we have the next two are virtual. Good evening.

[02:14:48] Good evening. Supervisors, I'd like to thank the board and especially Chair Randall for initiating the new commuter bus route from Frederick to 1 Loudon. It started in October. Several years ago, our member Chair Randall noting when on Route 15, she noticed that most of the cars she saw just had a single occupant.

[02:15:09] It's great to see that a transit route is being put in place to urge those commuters to let somebody else do the driving and help relieve congestion on Loudon's National Scenic Byway. I have two

suggestions. First, I understand that more than 1,000 county government employees live out of state, with another 1,000 out-of-staters working at Loudoun County Public Schools.

[02:15:32] I wonder if you could further incentivize county employees to use transit, and if you're not already, can Loudoun take further steps to encourage Loudoun businesses to incentivize their employees to use commuter buses? Second suggestion, I spoke with a transit office staff member about promoting the service with signs along Route 15, where the commuters now stack up waiting for lights to change at Whites Ferry and Luckett's Road.

[02:15:59] He said there's very limited funding for the promotion of the route. Might you be able to allocate some funds to reach this especially captive audience? I know of residents along the corridor who would welcome posting signs, and perhaps a QR code could link them to the bus schedule webpage.

[02:16:17] How about a version of the old Burma Shave signs, which were rolled out a century ago this year? Initially, they were just advertisements, but then a public service campaign about road safety took hold. One of my favorites from back then is, don't lose your head to save a minute.

[02:16:33] You need your head. Your brains are in it. I'm no poet, and I will prove that to you right now with my suggestion for a Burma Shave-style ditty to promote the new Frederick Transit route. Alone in your car, you curse the commute.

[02:16:50] Now there's a bus. It's a great substitute. I feel very confident that Loudon Creative staff can do much better than that. Thank you. Well, Ms. Polky, I have to go look up the Burma Shade campaign.

[02:17:08] I don't remember that. I have to go find it. It sounds great. Lisa Treichel, followed by Beth McLean, followed by Melanie Tagg. She's online. She's supposed to be in person?

[02:17:23] I don't. Oh, she's supposed to be in person. are you here? You are here in person. Beth McCain, and you'll be followed. Thank you. And then you'll be followed by Beth McClain. Good evening. Good evening. Hi, my name is Lisa Treichel. I'm a 32-year resident of Loudoun County, and I'm here today to talk about Route 15.

[02:17:45] I am a Luckett's resident, and I live with Route 15 every day. But I want to say that the alternatives for Route 15 project. I don't support any of them. I would appreciate if the Board of Supervisors would look broader into what the Luckett's community actually wants and needs for our corridor. I believe that the \$300 million price tag for the current expensive alignments

[02:18:18] is under budgeted. I believe the price is going to be much higher. Since these documents were researched and studied, a lot of new things have come to light, especially the increasing water crisis that is in northern Loudoun County. Many of us residents are worried about our wells and how much water there is going to be in it. Already speculation has hit the northern Virginia region and one of the biggest farms in the area has recently been sold for development.

[02:18:50] The idea of a larger road is increasing ideas for development in our corridor. We believe that the road won't really benefit Luckett's residents, but will mainly take a few minutes off the commute time for all the Maryland commuters who use the road in the morning and really won't do much for all the commuters who use the road to get back into Maryland at night because the Point of Rocks Bridge is a major concern.

[02:19:19] My personal opinion is that we should not fund this project until we work with Maryland to get a firm idea of when the Point of Rocks Bridge can be expanded, and we work in tandem with Maryland to come up with a good traffic solution.

[02:19:35] In my opinion, as an environmental professional, it would make more sense to invest in working with Maryland to take Route 28 across the river and eventually tie in with Route 270 to alleviate traffic issues in northern Loudoun.

[02:19:54] Again, I'm willing to work or talk with anybody afterwards to give my professional opinion on routes and specifics. But please make the environmentally and fiscally sensible solution and no bypass for northern Loudoun. Thank you.

[02:20:10] Thank you very much. Beth McLean, followed by Melanie Tagg. Good evening. good evening madam chair and board members thank you for this chance to speak on issues relating to the route 15 north corridor this is not just a catocton district issue it's a county-wide issue most of your constituents constituents rely in one way or another on this corridor either for their own travel or for goods and services that reach them through this corridor and i'm here

[02:20:43] tonight with two requests for this board first i ask you to reject three development proposals in the pipeline that would significantly increase traffic on Route 15, the Lane Farm development, which would add 67 parcels and two Spinks Ferry Road projects with a total of 57 parcels.

[02:21:02] I understand that when new households are added, they produce about 10 trips per day on local roads, so we're looking at 1,200 more trips each day from these three developments. This is a completely discretionary burden on an already burdened roadway that you have the power to prevent.

[02:21:19] Second, I urge you to implement projects that will provide near-term relief for residents on the Route 15 corridor. The long-term proposals that are being considered mostly benefit interstate traffic, but you can do things immediately that will improve road access and safety for your constituents.

[02:21:36] For example, you can beef up traffic enforcement in this corridor. Where Route 15 narrows from four lanes to two, just north of Battlefield Parkway, that stretch between Edwards Ferry Road and Battlefield is like an airport runway. most people ignore the speed limit and they're often flying just as the road goes down from four lanes to two. There's plenty of shoulder space for enforcement in this section of the road and the county's speed camera initiatives have proven enforcement makes a difference. I'm also asking the board to implement projects that were, as I understand, approved in a 2022 finance committee

[02:22:12] meeting that include stabilizing shoulders, enhancing rumble strips, and improving signage so we can keep the traffic that we have moving smoothly and safely. From the community's perspective, there's been no visible progress on these initiatives in the three years since I understand they were approved.

[02:22:30] So I'm respectfully asking you to focus on this low-hanging fruit, things that can be done now to provide relief for residents living in the 15 North Corridor. Thank you so much. - Thank you. Thank you, thank you. Melanie Tagg, followed by Sally Travis.

[02:22:52] Good evening, ma'am. - Hi, Chair Randall, hi everybody. my name is melanie tag i'm here also to speak about route 15. i'm a 50-year resident of loudon county a 32-year resident of luekett's the mother of seven and a teacher in loudon county public schools i'm thinking looking around that my family has

logged more miles on route 15 than anybody here maybe more than the board combined i'd like to focus on our children and the young people specifically that reside in Luckets. Citizens of Luckets have been advised by some of you here on

[02:23:28] this board that the improvements proposed to the bypass will take an additional eight to ten years to complete. It's already been eight years since the beginning of some of these projects, making the total time of improvement 16 to 18 years. That's longer than a child spends in Loudoun County Public Schools. It might be someone's whole lifetime that this is their transportation situation. So a few points. As a teacher, a mother, a longtime resident of Luckett's, it shouldn't take that long. It shouldn't take a child's whole lifetime. But that is at a minimum what it will take. Second point, it appears from the solutions that we see before us that the focus

[02:24:07] has been primarily on helping commuters get from point A to point B more quickly. And I don't see anything that shows me that the specific needs of the specific residents of the community being affected are being taken into account. Nobody seems to be prioritizing the transit times of our children to and from school. They're either chronically late or they're on the bus for ungodly amounts of time. There are children in Luckett's that don't get home from high school, not counting extracurricular activities until after 6 p.m. in the evening. These problems aren't

[02:24:42] only because of congestion on Route 15. Thanks to apps like Waze and other GPS, our side roads are entirely congested now montresor road is as busy as route 15 and not designed for it by any measure and that's with construction not even having started yet it honestly it has crossed my mind that i might be dead before route 15 is finished being improved the expenses to our children are not only in the expense of time or not only the expenses are not only in dollars but also in time

[02:25:19] That amount of time transiting to and from school affects their homework time, their friend time, their family time. It is a waste. It is a straight waste. So now is the time to reconsider our goals. Thank you so much. I appreciate your time is up.

[02:25:36] I think I might be making a few phone calls to some of you, just kind of have you maybe come in the office and kind of have a discussion. because some of the things that have been said, I just want more than the time would allow to have a further discussion. We would welcome that so wholeheartedly. Thank you.

[02:25:54] Thank you. Sally Travis, followed by Caleb McCary. Good evening, ma'am. Good evening, Chair Randall and members of the board. My name is Sally Travis, and I live at New Valley Church Road in Luckett's. I'm here today because the proposed Route 15 Luckett bypass is being presented as a solution to congestion.

[02:26:16] But when we look at it closely, the timing, the cost, and the impact of induced demand, it becomes clear that this project will not deliver the relief the community has been promised. First, the timeline.

[02:26:33] Even by the county's own materials, this bypass is at least 10 years away from being built. That is a full decade of continued congestion, continued safety issues, and continue to lay for the residents, communers, and the emergency services.

[02:26:53] For a project that's been pitched as urgently needed, the reality is that we would be waiting a very long time before we see any benefits, if we see any at all. Second, the cost.

[02:27:09] The county is funded to date \$47 million, but everyone involved in the transportation planning knows this number is unrealistic. Costs for right-of-way acquisition, environmental impacts, utilities, stormwater, and construction have dramatically increased across the region.

[02:27:29] Similar projects in northern Virginia routinely come up to eight to nine times higher than the original estimates. Finally, the induced demand. The bypass is being marketed as a congestion reduction tool.

[02:27:48] But we know from countless transportation studies that new highways do not eliminate traffic, they generate more of it. A new four-lane bypass will attract additional trips, encourage more development pressure north of Leesburg, and ultimately funnel even more cars towards the two-lane bridge of Point of Rocks.

[02:28:09] That choke point does not change. Maryland has no plans to widen the bridge, and without coordination across the state line, We are simply building faster ways to reach the same bottleneck. I urge the board to consider the bypass proposal and instead invest in solutions that address today's problems rather than creating tomorrows.

[02:28:31] Thank you. Thank you. Thank you very much. Yeah, just give me a second. I'm taking notes. Okay, I'm sorry.

[02:28:50] I'm sorry. Mr. Murray, followed by Patricia Lausch. Good evening. Mr. Murray? Harry or Murray? I'm sorry. Mr. McCary. Caleb McCary. Thank you. Thank you so much, Madam Chair and members of the Board of Supervisors.

[02:29:05] I'm here with my wife tonight who grew up on Montezuma Farm in the Luckett area, and I, like others, I want to speak to that. Thank you for this opportunity to speak about the proposed bypass around the village of Luckett. My wife and I live near the proposed alignment for the bypass on the western side of Luckett.

[02:29:23] And I want to clarify that while I'm involved with the Luckett's Voice Route 15 Committee, I'm not here to speak for them. I'm here speaking for myself you are listening to our community at this meeting and individually as supervisors and that is really deeply appreciated the proposed bypass you need to know has deeply divided the Luckett's community we are a mixed community with some in subdivisions and others and individual within who have individual land holdings and other residents this includes families with very deep roots in the Luckett's area and you'll hear for at least one I know tonight

[02:29:58] There's a question I hope you will consider. Have you fully explored alternatives to the proposed bypass around Luckett's? Route 50 between Gilbert's Corner to the beginning to beyond Middleburg is also a heavily traveled highway, but the county found a different solution for that corridor that responded to community concerns. Your decision to build a bypass on the western side of 15 creates problems for citizens and for you as supervisors. You will have to take private property to build it. Some residents might even lose their homes. The scale of the construction schedule of the proposed bypass could negatively affect property values. There is a

[02:30:37] nature reserve with unique biology and unaddressed legal constraints. Building on interline harsh topography could affect drinking water and public health. More generally, the Luckett's area has retained our fidelity to our rural heritage and history dating to colonial times. The project as proposed will change that irrevocably. The cost of this also is something that bears looking at.

[02:31:04] Your budget and the improvement plan is approximately 46 million, whereas the Virginia Department of Transportation project estimate survey estimates this is between 319 and 322 million dollars. The proposed four-lane highway speaks to a scale that is inconsistent with the bridge at the Potomac and byway with roundabouts north of the river. Bill, thank you very much for your time. Thank you, Mr. McCary. Patricia Logue, followed by William Travis. Good evening, Mel.

[02:31:42] Good evening, Madam Chair and members of the board. Thank you for this opportunity. I'm a concerned citizen, not a traffic engineer, but I've been watching the progress of the Route 15 North project since it began in 2018. I live in Selma Estates. Let me read you the closing paragraph from a two-page executive summary of a report prepared by Norman Marshall, president of Smart Mobility, who is, by the way, a traffic engineer. A copy of this executive summary will

[02:32:16] be available for your reference. Decision makers, business owners, and residents alike would be wise to engage in the debate over widening Route 15 with their eyes wide open. Once a portion is widened to four lanes. The new bottlenecks it generates upstream will generate pressure to widen the next segment. This pushes the county into a wasteful and repetitive cycle of successive and expensive widening projects that lead to unsatisfactory results. Route 15 becomes a larger

[02:32:56] and more dangerous highway, primarily designed for regional travelers. While the historic character of the corridor is destroyed, local access is limited, and congestion remains. It is best to stop the cycle before it gets started. The far more prudent and responsible approach is to forego the widening alternatives and instead intentionally manage traffic flow on Route 15 with calming improvements in roundabouts. The title of the report, commissioned in 2018, is a Route 15

[02:33:35] North Leesburg a closer look at the effects of widening. It was commissioned by local citizens concerned about the impacts of what the county was considering back then. In a few weeks it will be 2026. As you are hearing tonight, citizen concerns remain and may have increased. The Lockett's bypass will induce demand. Now is the time to revisit the impact of such a project on the

[02:34:07] overall corridor before it's too late thank you thank you thank you william travis you'll be followed by robert griffin good evening mr travis good evening thank you chair randall and the board for giving me this opportunity to speak um i'm here to speak about the 15 bypass around luckets perhaps a little more emotional than the folks that have come before me um my name is bill

[02:34:47] travis and i live on new valley church road this is a road that will be ripped up and used for the bypass um the um we've lived there for 21 years um proposals um uh entitled number one and

[02:35:12] number 1A, both will potentially take the homes of 13 families and two businesses in the current design, as well as altering forever the many, many more properties that are adjacent to these properties. Ironically, these two proposals are the most expensive of all the concepts that have

[02:35:47] been considered yet they are politically the path of least resistance it appears and they tie neatly in with land develop land developers plans for the area that are slowly coming to light for Lockett's residents. We're finding out about these big building projects as we go here. The Lockett's Voice which is a group that was rolled out on social media after the county's first Lockett's

[02:36:23] bypass public input meeting was billed as a grassroots effort to build community and form a consensus on the bypass issues. It appears to have become more of a steering committee guided to the consensus of these western bypasses. And the Lockett's voice is not really our voice.

[02:36:55] we just want to want i just want to say that and i think the people that you heard tonight already have made that clear um citizen opposition to mr travis your time is up sir thank you so much um robert griffin followed by what would be our last speakers anybody else down there to speak any other come any other slips okay robert griffin will be followed by our last speaker Andrew Wright. Mr. Griffin, are you here? Robert Griffin, going once, going twice. All right, we're going to call our last speaker and that would be Andrew Wright. Mr. Wright, are you here?

[02:37:34] Hey, how are you? Come on up, sir. Good evening, Mr. Wright. Good evening. Good evening, Board of Supervisors. Okay. Let me just pull up my notes here. Let me stop this time so his notes get pulled up. Okay. All right. Well, dear members of Loudoun County Board of Supervisors, i'm here to demand immediate corrective action on the long delayed approval of my property

[02:38:13] right field estates by right subdivision and associated emergency access egress serving my property and raspberry falls this is a by right project it was submitted in full compliance with loudon county zoning ordinance nothing more nothing less the by right process exists precisely to ensure that projects meeting the ordinance are approved as a matter of legal right not political discretion or endless negotiation. What should have been a straightforward administrative approval has instead been abandoned by the county leaving my property in limbo for far too long. Because of this inaction my property carries the stigma of an unresolved status preventing me from conducting

[02:38:50] normal business or development. Ongoing and threatened lawsuits now jeopardize my family's welfare and the property's future viability. Most critically the absence of an approved emergency access egress continues to put the safety and welfare of my family and the Raspberry Falls community at unnecessary risk.

[02:39:08] This situation should never have become a legal issue. Had the developer's original entrance simply been addressed by staff as an issue, the builder would have adjusted to an emergency access egress at the beginning. None of this would have occurred. That failure is in the past. What matters now is fixing it without further delay or excuse.

[02:39:26] There's nothing less to negotiate. We tried. At this point, it seems like the county would be asking me to give up my rights for my family's safety returned to us. From what I understand, there's no reason for additional conditions, further studies or deferrals. The application is complete, compliant, and entitled to approval under the zoning ordinance.

[02:39:45] I personally should never be forced to retain legal counsel to compel the county to follow its own laws on a by-right project. I will not, as long as this remains within the by-right category. However, make no mistake, if this board continues to block or delay what is legally owed to me, I will have no choice but to pursue every available remedy.

[02:40:06] Please, I respect FLEPP but firmly insist that you place this item on the next available board docket for immediate approval of the Buy Rights of Division and the Emergency Access egress serving my property in the Razzaray Falls. Approve it without further conditions or discussion. Approve this project now so my family can finally have the peace of mind that comes with knowing our safety is secured, our property rights are respected, and we can once again feel optimism and affection and affection for loudon county the timer discussion has ended the time for action is now thank you very much thank you mr wright thank you that is our last speaker just give me one second

[02:40:40] that's our last speaker thank you we're going to try supervisors to do some more information because we have a we have a we have a very long night ahead of us and i don't want to go to break quite yet maybe around seven o'clock but let's get let's try to get through some more of the information lines before we go to break. So let's go on and do the Tiny Homes White Paper.

[02:41:06] All the things I'm excited about are on tonight's agenda. Can staff come forward please? And while we are staff are coming forward for the Tiny Homes White Paper, can we just say a word to the media that the pictures in the papers of the tiny homes are not tiny homes. They're like sheds that you buy at the back of Home Depot. Those are not tiny homes.

[02:41:29] so people like saying like I don't want to live near that that's not tiny homes I've even seen some that look like yeah the little things you just buy to stick your lawnmower in it's not tiny homes so just gonna say that to the wonderful media of Loudoun County thank you very much but we are ready whenever you all are thank you chair Randall and the board for the opportunity to present the information about tiny homes and there's some good pictures in the report you can look at as examples. This project was brought forward by a work with the Planning and

[02:42:06] Zoning and Housing with the Affordable Dwelling Unit Advisory Board, and I'm going to hand it over to Brian to go through a presentation. Wonderful, thank you. Thank you, sir. Good evening, chair and members of the board. Before we get started on the presentation, I do want to recognize the staff at the table. Obviously, Mr. Keeler, director of DHCD, Mr. Dan Galindo, director of planning and zoning. We also have Rebecca King, who is senior planner with DPZ. Also she serves as the DPZ liaison to the AIDWAB. And then if that was not enough, Ms. King also serves as the chair or served as the chair of the Tiny Homes White Paper Ad Hoc Committee. So just a little

[02:42:45] bit busy. And thank you for that. Also behind us we have Mr. Ben Miller, who serves as the vice chair of the full AIDWAB and also served on the ad hoc committee. Mr. Miller, can you come to the table. Thank you, sir. You're good. You're fine. Good to see you. So to provide a brief background, the average 2025 year-to-date sales price for a one-bedroom in Loudoun County is \$348,650, and a two-bedroom home comes in at just short of half a million dollars at \$464,335.

[02:43:22] This year, the AIDWAB identified interest in researching tiny home development as a potential option to provide attainable housing in the county. Iterations of this item have been before the board twice this year. On May 6th, the board authorized the development of a tiny homes white paper, the establishment of an ad hoc committee within AIDWAB to develop the scope of the white paper and clear guidance that the scope not include the rural policy area.

[02:43:49] Subsequently, on July 1st, the board approved the scope of the tiny homes white paper, which will appear on the next slide. Components of this white paper include how tiny homes are defined, tenure options, such as how tiny homes are used for purchase or rental or transitional housing, etc.

[02:44:05] How tiny homes are financed, the land use considerations needed for this type of development, case studies using examples from around the country, and a specific model based in Loudoun County that will serve as an example of a hypothetical development in the county and include land use zoning and other practical considerations.

[02:44:26] The Tiny Homes white paper is in alignment with the county's unmet housing strategic plan, specifically Objective 4, which is to provide incentives, establish priorities, and increase access to

affordable housing. The AIDWAB wants to make it clear that this paper is for informational purposes only.

[02:44:43] It is not a position paper or an action plan. The goal is to provide a foundation of understanding for tiny homes as part of the county's overall housing strategy. All programmatic, financial, and land-use concepts described in the white paper are illustrative only.

[02:45:00] So now on to tiny homes. Tiny homes do not have a universal definition, but generally fall into two categories. Mobile, also on wheels, and permanent, on a foundation. Permanent homes must meet building and residential codes.

[02:45:15] Styles include modular, shipping containers, 3D printed, or custom built. Sizes of tiny homes can range from 80 square feet up to 800 square feet, but the International Residential Code defines a tiny home as 400 square feet or less.

[02:45:32] Prices can vary based on the type and style of tiny home, but they range from \$10,000, which is a basic space used to sleep at night, up to \$250,000 with your various upgrades and includes several amenities such as indoor plumbing, full kitchen, and laundry facilities.

[02:45:49] Brian, just stop you for a second and talk to the co-chair and the vice chair of this effort. If my memory serves me, when I first went to Adawab and had this discussion, I thought we had said that we would not consider mobile homes as tiny homes in this discussion.

[02:46:08] So is this page just to talk about what can be, not what, is that what this is? Is it just like, because we had said that we wouldn't consider anything on wheels. So this is to provide that kind of, as Brian just said, a basic understanding of the universe of tiny homes. All right, thank you.

[02:46:28] Tiny homes have been used across the country for a variety of purposes. Transitional homes offer a quicker way to respond to homelessness and typically involve philanthropic, private, and governmental funding. Many tiny home rental communities exist around the country, primarily designed as vacation options or short-term living options.

[02:46:49] Permanent units on foundations may be used for home ownership, if code compliant and permitted by local zoning. AIDWOP found that for tiny homes to be feasible as an attainable home ownership option in Loudoun County, based on cost research, land would need to be available at reduced or no cost.

[02:47:07] If land were available at no cost, construction and site work could be completed for approximately \$150,000 per unit. If land costs were included, the price would increase. Financing tiny homes poses unique challenges due to their classification and their size.

[02:47:26] However, several options do exist. These options range from personal loans, traditional mortgages, cash options for households that decide to downsize, and even credit cards. For the land trust model, if a government entity or non-profit organization retains land ownership, homeowners can lease the land, reducing overall costs and maintaining long-term affordability.

[02:47:52] A-DWAB is fully aware that there are trade-offs that would need to be made in order to realize tiny home communities. Tiny homes must be placed on owned or leased land with infrastructure for utilities. They must be compliant with applicable building standards to ensure structural integrity and zoning compliance is key. The A-DWAB identified suburban compact neighborhood and planned unit development zoning districts that may provide opportunities for high-density tiny home communities

with shared amenities. Potential modifications will be requested such as yard minimums, setbacks, density, open space requirements, and parking requirements.

[02:48:29] The AIDWAB identified several examples around the country that have been successful in implementing a tiny homes development model. The first case study takes us to Austin, Texas, and involves the use of tiny homes for transitional housing.

[02:48:46] So this is the community-first village in Austin, and it is used for permanent supportive housing, which houses chronically homeless. Overall, the site is 51 acres, serves approximately 370 people. Average rents in the community are around \$385 a month, and it really includes a collection of recreational vehicles, tiny homes, and manufactured homes.

[02:49:13] The community was first formulated in the late 1990s and has taken hundreds of millions of dollars, mostly from private and philanthropic funding, to come to fruition. Community First is currently looking to expand an additional 127 acres for 1,400 more homes at a cost of \$300 million.

[02:49:32] Doing so will be able to theoretically house half of Austin's homeless population. The second case study takes us to Jacksonville, Florida, and involves the use of tiny homes for rental housing. This was designed and developed by the Habitat for Humanity, an affiliate in Jacksonville, Habajax, at a cost of \$5.5 million. It is a 50-unit project, all of the units facing on a central green.

[02:49:59] It serves households from 30 to 80 percent of the area median income. Homes are approximately 600 square feet, and rents range from around \$500 to \$700 per month. And this development was launched with a \$5 million grant, and the grant came from the former owner of the NFL's Jacksonville Jaguars, a pretty good connect to have. The third and final case study takes us to Tempe, Arizona and involves the use of tiny homes for home ownership. This was Tempe Micro Estates, like I said, in Arizona.

[02:50:34] It also includes community facilities and amenities. 13 units were developed, each at 600 square feet, and sales prices were anywhere from \$170,000 to \$210,000. While looking at the case studies was useful. AIDWAB wanted to know what a tiny home community could theoretically look like here in our own county. The decision was made to use the former Ashburn North Park and Ride property in which the board approved a development agreement in March of this year. The paper includes examples of what this development could look like with four options to show different

[02:51:10] densities and layouts ranging from 57 units to 84 units and density ranging from 18 to 26 units per acre. Additionally, the homes are illustrated at 416 square feet. Using the park and ride agreement and development proposal as a model and assuming a cost to build and make improvements of \$125,000 a unit with a \$1 million ground lease payment, the development of 45 tiny homes for homeownership could cost approximately \$6.7 million. Under the current agreement, the cost as proposed for the

[02:51:47] eight home ownership units for the park and ride development is \$4.5 million. On the screen is just one example of what a layout could look like utilizing tiny homes. And the next slide is just an axiomatic view of the property with Russell Branch Parkway to the north and the broad run to the south. In conclusion, tiny homes could be a helpful tool as part of the county's housing toolbox. Reduced cost or free land with a land trust model would be ideal and offers a strong approach for attainable home ownership in Loudoun County. However, if tiny homes are pursued for

[02:52:26] tamble homeownership, it requires thoughtful site selection, creative units and community design, sufficient density, and the assumed potential zoning modifications. AWOB continues to proudly serve the board and its mission to support the full continuum of housing in the county, and at this time we'll gladly take any questions. Well, first of all, thank you so much. When I first came to have this discussion there was a lot of like how do we get this done and and you did and this is I'm not sure where we're gonna go from here but the information we have was certainly good a good starting point for us so thank you very much Ben man you came through it's like I knew I knew you had it in you I

[02:53:04] did I believed in you I know I folks sitting next to me you guys did a great job they did the heavy left yeah did a great job thank you and thank you for chairing the committee it's a great job all right supervisors let's have a tiny home discussion. I will go to Mr. Sains who's been talking about this as long as I have.

[02:53:23] Yes thank you Madam Chair and thank you for everybody involved bringing this presentation to us today. Really appreciate it and I would agree with the Chair's comments earlier about making sure we use the proper images when we're reporting on this item because there's as you can see a lot of case studies that are that are out there where you can get the proper images.

[02:53:44] First question, I guess, is what is your suggestion? How do we move forward? And then secondly, you know, one of the case studies mentioned Habitat for Humanity, and I would assume like a third-party private developer. Are we aware of, say, for example, Habitat for Humanity doing anything like that in our region or any developers that we know of that might be looking to possibly do something like this?

[02:54:09] I don't think we have any in front of us right now, but we're hoping that this starts the discussion that will then, you know, get the idea out there so that when they do come forward and when we're looking at the use of county land and other pieces that this is a concept that we can we can work with the development community on.

[02:54:29] There are some other projects like this that are happening in Virginia. So that is a good way that we can follow, you know, their example and how they're actually working here locally with, you know, all the rules and regulations that our state has that we can follow.

[02:54:45] anybody else? Well, in terms of next steps, you have kind of, in my mind, two avenues. So if you want to go rental or home ownership, that takes land and that takes money. If you want to go transitional housing, that's going to need some strong nonprofit service providers and partners to come in and help put that together. That is transitional housing using tiny homes can be a really efficient way to house a lot of people quickly, but to be successful, you need a lot of thoughtful planning and long-term partnership to make that work. So it's just how you want to go about it and what needs to come to the table. Right and similar to what was presented with

[02:55:23] Community First in Austin which I did get the tour when we went to NACO a few years back which was a great complex and had a mixture of fixed units that were actually 3D printed which was amazing to see in person because I've seen the 60 Minutes article that they did a few years back on that company and it was amazing to see in person. So I challenge any developer, any non-profit entity out there, everybody's always talking about affordability, affordable housing.

[02:55:50] This is an avenue that we can take. I know I'm up for the challenge. I know the chair is up for the challenge and a few of my other colleagues on this board are up for the challenge. So please reach out. Let's try to connect and get this thing done as economic development coined loud impossible. So let's make it happen. Thank you. Buddy, yay. We all use buddy words. Mr. Letourneau.

[02:56:17] All right. I don't want to be the skunk at the party, but I will be a little bit. Somebody's got to be. No, thank you so much for the work here. It really is a good report. But what I didn't see was really anything about actual demand for this type of product in Loudoun County. I'm skeptical that there is a lot of it. The board has recognized for a long time that we have an issue with the size of units and so in the comprehensive plan we put in provisions particularly in the transition area to try to limit lot sizes, limit unit sizes

[02:56:52] and I think that would create smaller units. Is there any evidence that we were actually getting any of that? Probably more of a Dan question to be honest with you. Well I can tell you that I review legislative applications and have a sense of unit size, and the differential policy, I think, is helpful.

[02:57:14] It's slow. I don't see the average unit size for a single-family detached home is over 3,400 square feet, 3,500 square feet. I think it's actually 3,900. That's really large. It is. That's the average. So I don't think we're there yet. We need more incentives to come down.

[02:57:31] Isn't it also true, though, that the board has repeatedly set aside, granted modifications to lot size and unit size on different applications? So I will defer to Dan on that question. You have, but a lot of those, I couldn't tell you a number, but a number of those are still under active development if they have any units on the ground at all.

[02:57:52] Yeah, but Fleetwood North, Fleetwood South, Bramilton, the board, I voted against, I think, all of them, because the board ignored our own policy, and ignored our own comprehensive plan, and decided to allow for those larger units, because the argument was we need units and so on.

[02:58:08] So if we're serious about getting smaller units, shouldn't we just look at our own policies and then actually hold developers to them when they come in for rezoning applications? Wouldn't that get us smaller units? That's what we're trying to achieve. - So staff advocates for that, but we've advocated for that in the plan under a concept of being flexible I'm working with developers to allow it to work under the market since we're not providing funding directly to it, I think, right now.

[02:58:35] The problem is if we're not talking about this in the west, which I understand we're not, we're only talking about it in the east, there's only so much actually developable area in the suburban neighborhood place type, for instance. So to me, the best use of that very valuable limited space is probably not tiny homes.

[02:58:51] It's probably to actually get, you know, right size development that is, you know, not excessive in size, not 4,000 square feet townhomes and really try to maximize what we have and stick to our policies instead of this kind of thing, which to me is a little bit more of a gimmick that ultimately is not going to be repeatable.

[02:59:11] And I doubt there's going to be much market interest. Thank you, Mr. Kirshner. Thank you, Madam Chair. I would echo a lot of the concerns that Mr. Letourneau has put forward. I'm not necessarily completely against it, but I do think there may be better ways if the goal is to provide smaller units.

[02:59:32] But I want to come more to the affordability side of this. I mean, obviously, a smaller unit theoretically is more affordable. I am curious in these other case studies that have been mentioned both on this dais and during the presentation, what has helped?

[02:59:48] First of all, any of those for ownership that we know about, which is one of the alternatives here. And two, what other aspects is the subsidy of the land by either the nonprofit or by the county that is helping to make them more affordable?

[03:00:04] Obviously, any house in Loudoun County is not really that affordable, but more affordable may be the better terminology, so to speak. What is making them ultimately more affordable? And then my third question, I'll just ask them all now, and you guys can take up the remaining two minutes if you desire.

[03:00:21] I would assume this is all, and I know that our policy is not to develop these in the West, but I would assume that water and sewer are always needed for these units. They are not built on any sort of septic system. That would obviously be completely incompatible, I would assume, but I'm kind of curious what is said here.

[03:00:40] Thank you. I'm going to go first, but anyone else can jump in. A couple points. One, when A-DWAB was working on this and thinking about site considerations, we were absolutely thinking about water and sewer and the costs of all of the necessary infrastructure and utilities. So yes, for homeownership and rental housing on foundation, water and sewer, public water and sewer would be part of that formula.

[03:01:04] One thing to point out is there are companies doing homeownership housing with a tiny home product, just market rate. Lennar is doing it in Texas. They're about 660 square feet. They're being sold for \$140,000. Now, that's in Texas.

[03:01:21] Yeah, I was going to say, what is that in Loudoun terms? That would be very interesting. But there's no subsidy there that I'm aware of. So there are models where it's just a product for market rate housing. In other cases, subsidy has been land. Subsidy has been private philanthropic dollars.

[03:01:40] It has taken different forms. I think that answered all the questions. i'm trying to remember so i will i will leave i yield 30 seconds of my time madam chair thank you mr gersner miss bruxman thank you madam chair um thank you for this uh white paper i appreciate it i do um i like the pilots that have been going on around the country i wouldn't hesitate to look at a pilot somewhere in loud and um i believe when i approached staff recently

[03:02:19] about potentially that there's an area in my district that I think would be a great area for a tiny homes pilot. And the message I believe I got was we need to update our zoning ordinance to allow for tiny homes. So what do we need to do in our zoning ordinance to either encourage this or even permit it? So I don't know if it's necessarily updating the ordinance. It's that any land to do a tiny home community at scale would require rezoning and potentially as a

[03:02:55] planned unit development district with very specific criteria for a tiny home community because it's not going to easily fit in most zoning districts in terms of setbacks and yard and open space depending on the size of the units and how you want to design the community. So it's that it probably would...

[03:03:12] Well, what about a radical idea of making them like buy right in our suburban policy area? so accessory units are by right in any residential area in the zoning ordinance and that could be a tiny home if you can meet the zoning requirements we did not look at that in this white paper we looked at a tiny home community so that's kind of a separate way to provide attainable housing as tiny homes as accessory units but we can talk offline about that glad to follow up yeah because i think i'm still a little bit confused about how you accomplish a tiny home as an accessory

[03:03:45] dwelling unit and how liberal we really are about excessive uh sorry accessory dwelling units um but yeah i'd love to talk about it offline the other thing that um and maybe this would come about as we work on what we think the criteria would be to meet the the need but um i think that we wouldn't want to build anything like this unless there's transit nearby um i i don't know that our metro stations or urban policy area would be an appropriate area for a tiny home

[03:04:20] development. So then did the committee contemplate at all what type of transit would be needed because they're tiny homes. I mean, obviously, they're not going to have garages. Folks may not have the financial means to own a car, to maintain a car, to pay for car insurance. So did the committee contemplate transportation and transit at all? I think generally we considered it, but we didn't get into detail because we weren't looking at specific sites. We do recognize that to put a

[03:04:56] tiny home community, especially for homeownership somewhere in the county, well, rental too, honestly. Location would really matter and be critical, and that would be the most challenging piece. Okay. All right. Thank you. Thank you. Ms. Umstead. Thank you, Madam Chair. I mean, I think this is this is a worthwhile endeavor but i look at what happens to prices in this county and we have a couple neighborhoods in leesburg uh one a modest townhouse community one of our

[03:05:31] older communities um where very small townhouses are now going for 300 000 dollars um and they that's two to three bedrooms two paths so we have that model we also have a single-family detached model in Leesburg where the homes are most of them about the size of mobile homes and those properties are now going for four hundred and sixty six thousand dollars a piece so I just wonder whether if we

[03:06:08] were to create a tiny home community whether it would soon just join most of the market price housing in the county and go much higher in value and sales prices than than what we had hoped to accomplish so I guess one of my questions is what need would these meet that is not already met by the two

[03:06:35] communities i mentioned in leesburg um or by affordable dwelling unit units i mean what what can we accomplish with this that we're not already accomplishing if the market is going to take over the pricing and valuation of these well i would say by using the community land trust model we would actually control the cost over time for the whole community and through our lending mechanisms where we would be able to put restrictive covenants on the properties.

[03:07:13] Anything that we were involved with as a county, if we were to give county land, we would put those restrictions on it that would control the cost over time, over the next decades. So that would be a component that definitely would not allow the market to control it, and we as a government entity would be able to control it.

[03:07:29] Okay, thank you. Thank you. Ms. DeCrony. Thank you, Chair Randall, and thank you for this presentation. So with land being so expensive in Loudoun County, was there any contemplation of looking at attached units?

[03:07:49] Because I saw that you mainly looked at detached tiny homes, but I'm wondering, I mean, is there such a thing as a duplex, a triplex for tiny homes? I mean, land is so expensive, that's why I'm asking, because it is going to be an issue.

[03:08:06] The county's going to have to subsidize the land for sure. And if we can get more units, it's better. It didn't come up in our research that multi-unit tiny homes was really prevalent. You do get two-story tiny homes sometimes because they'll have a loft component to add kind of a sleeping space.

[03:08:25] And you do see some interesting configurations in terms of back-to-back or to maximize density. The only thing I can think of is that when a community decides to utilize shipping containers, then you might have a mechanism to go multi-story in that way.

[03:08:43] And then they're functioning more like efficiency apartments in that scenario. Have you seen those? You've seen those, the shipping containers? That's interesting. Okay, yeah, I think those are pretty cool. So I heard what Supervisor Letourneau said, and I would agree I'd like to see more naturally occurring affordable, which would be these smaller units, and I don't think we've gotten there, And I don't think we have the policies necessarily that we need or the incentives because I would agree that, you know, we still have these large units, you know, some of the townhomes that I've seen are going for \$800,000 a townhome.

[03:09:23] So I do think we have more work to do and this could be a part of the toolbox, but I do think probably subsidizing the land is a must because I don't really see how it could be viable otherwise, and maybe looking at, you know, a unique model that maybe we haven't seen here where they're, you know, the shipping containers or something unique where we can maximize the density on the land would be great.

[03:09:55] So thank you so much. I appreciate it. Mr. Turner. Thank you, Madam Chair. I'm interested in Supervisor Turner's comments. I have to believe if there was a market incentive organically to build a tiny home community, we would have seen a tiny home community application.

[03:10:15] Did I hear correctly the cost of the development on the park and ride lot would be \$6 million without county owning the land and \$4 million if the county owned the land? So those two numbers were a \$6 million price tag if we did 50 tiny homes and had a million dollar ground lease, so a subsidy to the land.

[03:10:35] The \$4 million price tag is the cost of the eight single-family attached units that are proposed as part of Enterprises' development. Those are single-family attached homeownership units. So not small in nature, at least not a tiny home. So different scenarios.

[03:10:51] I think I would want to postulate something to developers, to the development community, saying if the county entered a land lease and provided the land, would you be interested in this kind of a project?

[03:11:06] so that we had some sense of market demand if we put enough skin in the game. Because I think the key is going to be us having skin in the game and what that is. But other than that, I think it's a great concept. It just presumes that there's an empty space in the demand model right now in the

community that this would automatically fill, and I'm not sure that's a given until we talk to the development community.

[03:11:32] Thank you. So, Mr. Kirshner and Mr. Letourneau, I was the one that took this to 8WAB in the beginning, and it was my BMI, and I can tell you, you guys are rewriting or saying things that were never said. The goal was never to provide smaller units. The goal is to provide the full spectrums of units at the full AMI.

[03:11:50] So the ideal is only to provide smaller units is something you all have just made up on the spot, and it's just not the goal. And to answer the question of the discussion of what's the demand, well, look at the demand. of new teachers who can live in Loudoun county they can't they can't live here look at the demand of firefighters who could live in Loudoun county they may be young they may be new they may be finishing fire school at age 22 23 they can't live here look at the people who are coming home from college in the first just couple of years out of college they can't live here look at the senior

[03:12:24] who may be an empty nester and living by herself now she can't live here and so the idea that we don't see the demands because they've already moved because there's no way for them to live in our county and this is starting to feel a little like a lot of great words of that that actually fill in not in my backyard that's what this feels like to me and so we're saying nicer words than that but it's feeling a little bit of we just some people just don't want to have we not in our backyard stuff we can do this and you know what else we've never done before we've never done land banking so we're doing land banking and we can have this discussion and to say

[03:13:00] that they can, you know, that we don't have enough, you know, enough smaller. We can do all of it. We don't have to decide one thing or the other. There are people who need transitional homes. There are people whose AMI in Loudoun County is 30% or 20% of AMI, and they need to live somewhere, and they can't live anywhere.

[03:13:21] There are people who are spending a good bulk of their money and commuting in Loudoun County just to get back and forth to their job in Loudoun County. So the idea that we don't see demand, sometimes you see what you want to see, but if you look around, who's not living in Loudoun County and who would like to live in Loudoun County and who would not like to spend half their time on the road, I think you would find the demand.

[03:13:46] I will also say that when I saw the tiny home community in Utah, it was the Mormon church that had actually bought that community. So we lean into our nonprofits, we lean into our faith community, and we have these discussions. But I don't think we have these discussions starting out at a premise that was never meant to be the premise for this discussion overall.

[03:14:08] So that's why I took it to you all. There were a couple things that weren't answered. I wanted to have some of the social discussions of how many people can live in a tiny home legally and that type of thing. We can have those later. I do want to, I would talk to staff, talk to you, Dan, talk to staff to find out how to continue this conversation since we are now actually doing land banking in Loudoun County.

[03:14:30] So thank you so much to be continued. Okay, let's slip one more. I know we're tired. Let's stick one more. I know. I know. Let's stick one more item in here. And I think we have a good deal of staff in the room who are here for item I-3, the strategic initiative biannual update.

[03:14:54] And after we get this done, a lot of staff who are in the room can go on home. So let's get that item done.

[03:15:02] Good evening.

[03:16:04] Good evening, Madam Chair. Good evening, good evening. And members of the board. We are here for our biannual update on staff's progress on the board's 2024 through 2027 strategic initiatives. As you know, every four years, the board develops a strategic plan that puts into action the vision and goals of the board during your term historically the strategic plan has served as a work program providing direction to staff on initiatives of importance accomplishments and status updates on the work plan are provided to the board on a regular basis through our reports and our biannual updates the item in your packet outlines

[03:16:42] our progress on the 49 various initiatives since our last update this past June this work plan is grounded in the vision and goals of the board but changes as initiatives are completed and new initiatives are added in your item staff notes that there are three distinct status designations on the initiatives. First is completed, which are initiatives that are complete. Ongoing are initiatives that will remain as a continuous effort. And then lastly, in progress are initiatives that have a defined endpoint.

[03:17:07] Each of the respective department directors responsible for the initiatives are here this evening to answer your questions that you may have on their progress. So I will yield to any questions you all may have. All right, supervisors. Does anyone have any questions on the strategic uh our strategic plan update if you do please put your light on miss bixwell i can't see you do you have any questions yes okay you can go okay um on initiative five one doubling our annual goals for

[03:17:46] bus shelters per year from 20 to 40. um i was curious what the term recommended viable location means um on initiative 5.12 um i guess you know the the revitalization redevelopment um to accommodate new bike lanes my question is why isn't doing the county-wide transportation plan community engagement like vdot says they don't want to do it when they're repaving because they want community engagement but in my mind the ctp includes community engagement so if they're

[03:18:25] identified for bike lanes then we shouldn't have to have further community engagement on it um on the exploring of i've gotten great update recently on the child care um uh fee reduction program i was just wondering on initiative 6.3 if there was any projected timeline um and uh i also had one more question no sorry that was just a comment so so those those were my

[03:18:57] questions. Doesn't matter who answers that for me. Okay. So Supervisor Brissman with regards to the child care we have completed putting together the employee survey after working with human resources and SEIU and IFFA to put that together. That should be going out sometime here shortly. We were just finalizing the language of the email or the memo to go out and so that should be going out and we'll gather that information and then come back with an update.

[03:19:34] Okay. Anybody else for her question? We're good? Okay. No, I meant Mr. Brickson's questions. Anyone else want to answer that question? I think Shireen will have for DTCR's questions. Supervisor Brickson, do you mind restating your questions about the bus shelters?

[03:19:55] Can you restate the bus shelter question? Sure. My question is that it said something in the item about identifying viable locations for the bus shelters, and I wasn't quite sure what that meant. I thought that all of our bus stops would be viable locations for bus shelters.

[03:20:19] Ma'am, I'm going to have to look at the bus shelters and how we're identifying the locations for the bus shelters. Okay, all right. All right, we can talk about it offline, I guess. Okay.

[03:20:34] Mr. Crony? Thank you, Chair Randall. So I have a question about the sports, the sports commission. I brought that forward during our strategic meeting.

[03:20:50] I'm wondering, I see that PRCS is the lead on this, but I'm wondering, is Visit Loudoun, the Loudoun Sports Tourism, are they a co-lead on this? because, you know, they, I believe it kind of should sit in that group versus PRCS because, you know, they bring these tourism or tournament events in to get, you know, heads in bed.

[03:21:16] So I'm just questioning kind of the roles for that. Sure. So we have historically worked with Visit Loudoun all the way back to when they were two different names ago before it was Visit Loudoun.

[03:21:33] And one of the reasons why we work so close together in accomplishing that goal is without the facilities to bring tournaments and things like that into the county, which we are responsible for managing that, they can't do that without us as a partner.

[03:21:50] And we historically have been the ones that have gone after that recently. Visit Loudoun expanded into the sports tourism. And we actually have a written partnership, an MOU, with them to go after certain levels of tournaments together.

[03:22:06] So I do think it's good that it sits with us. But I can tell you that they have been at the table with these discussions, helping with us with the survey. They are we are using them to put together the stakeholder list of who is going to be in that engagement process That's going to be after the survey. So we have been in communication with them quite a lot Okay, and so I'm going to quickly go through two things So I brought up a park foundation the formation of a park foundation, and so it wasn't included in this document So I will be bringing a board member initiative on a park foundation

[03:22:44] fairfax county has a very successful park foundation and fairfax city just established a park foundation so i just want to give you that heads up i did bring it up at the strategic planning meeting but it wasn't included in the document the third thing is that regarding new farmers and um and um you know kind of spurring uh young farmers to helping them have we looked at a a land access program with leasing um because I know you're doing a census but I'm wondering because that would really help young uh farmers and new farmers if they could lease land because

[03:23:23] land access is an issue yeah we uh we have an ongoing program that is a matching program where we match people who have land with those who are just hiring it um we uh it's it's been an ongoing program we haven't had a ton of interest but we do continue to do that maybe that this is an opportunity for us to go back and and look at how we do that maybe work with the Farm Bureau okay thank you this is an information item that Mr. Turner has a motion on

[03:23:57] so it's now an action item it's a you have the motion in front of you on a yellow and a blue piece of paper I think it's a fairly minor motion it's it's it's a naming motion I think so if there are no other questions I don't have any questions I just want to say thank you all for all the work we're doing we're halfway through our term and things are going pretty well I think so thank you it's a turn of your motion thank madam chair I move the Board of Supervisors amend the title of initiative 5.15 currently rank road improvements for smart scale as we currently rank intersections to quote rank Loudoun County road projects using

[03:24:34] a criteria and format similar to the SmartScale statewide prioritization process for project selection. I'll second it. Thank you, Madam Chair. This is, we can dispense with this very quickly, this is, we believe the title is incorrect.

[03:24:51] Right now the way the title reads is we want to rank road improvements for SmartScale. SmartScale already rank orders its improvements. That's already done. So it makes the title not appropriate. So all I'm suggesting is change the title so that it correctly describes what we're trying to do, which is rank order Loudoun County Road projects using the criterion format similar to smart scale statewide prioritization process for project selection.

[03:25:17] Of the many hundreds of votes I've taken on this day, this is the one I probably care the least about ever. I am happy to support this. I'm happy to support this. No problem with it. It's just literally a title change. It's just a title change, everyone.

[03:25:34] So, you know, Ms. Briggs, will you have anything? Okay. I don't see the motion in my email. Would you like to say it again so she can hear it?

[03:25:51] It is there. It did come. Okay. All right. I guess I'm fine with it. It's good. Okay. All in favor, please say aye. Aye. Any opposed? Okay. Great. All right. Any abstentions? There are no abstentions. Thank you very much.

[03:26:08] supervisors can we get can we do one more item yeah we can we can because we're good we're going to get through all of the all of the information items today before we go to break and so we're going to do the ledge item which is pretty pretty short because it's just actually no it might not be that short because mr crony has you you don't have one motion she has one very long well jonathan is on his way down now, so we got to, he's coming down here with all deliberate speed,

[03:26:43] so we got to do it. He's like, yeah, let's get this done. We have not changed anything or added anything from last meeting. All we did, of course, was add the DMV moves, which is now completely done and now in the item. So, Jonathan, all I would like for you, before we go to Mr. Crony's motions and Ms. Brickman's motion is to just give a quick update on the new administration's incoming, like when will the General Assembly start, when will she start, all that kind of stuff. Just give me the dates so we can have those.

[03:27:19] Absolutely. Good evening, Madam Chair, members of the board. So this legislative session starts January 14th. On January 17th, the governor-elect Spamberger and statewide will be inaugurated and tentatively, we believe the state of the Commonwealth will be given January 19th, that may be subject to change, but after that, VACO Local Government Day is February 5th this year, and I will also honorable mention, National Association of

[03:27:58] Counties Legislative Conference is during session, it's February 21st through 24th, And then session ends March 14th. It's a long session, 60 days, due to them doing a new biennial budget. Okay. All right.

[03:28:14] Any questions for Jonathan? When will the current governor give his budget? So Governor Youngkin gives his last introduced budget to the House of Senate money committees on December 17th in Richmond. And so he gives that budget to the money committees, and then when the governor-elect is sworn in, and everybody is re-sworn in or sworn in if they're newly elected, that's their starting point?

[03:28:43] So, yes, the governor gives their introduced budget first to the joint money committees, and then the House and the Senate each develop their own individual budgets. Then crossover happens, so crossovers should be about. But it's their own individual budgets based on the current governors.

[03:29:00] Is that a starting point, or they just kind of look at it and go, well, that was nice, and move it on? Yeah, it's up to the appropriators and so once it crosses over, once the House finishes their budget and the Senate finishes their budget, they then cross the budgets over to the other chamber to begin the budget negotiations for what is called the conference report.

[03:29:23] That is the joint agreement between the House and the Senate on what they will send to the governor for their action deadline, which is in March. It's a 30-day action deadline for them to give recommendations. Let me ask it differently.

[03:29:41] Do we expect with the House and the Senate to do and then cross over to look anything at all like what the current governor presents? I do not want to speak for the appropriators, but I would have to guess that they will develop their budgets based on what their priorities are that they outline at the retreats wonder that makes that makes sense to me too sir all right thank you mr crony you have two motions um just because it's on one piece of paper don't mean it's not two motions you have two motions and and because they're not i further move it's two two separate motions and then miss bricksman you have a motion

[03:30:18] um yeah so mr crony i will go to your emotions for and i'm i believe your emotions are motions were table from last time correct yeah yeah yeah okay and you've given a little more information on them this time all right uh supervisor sains asked for information about solarized nova for the first one how about you go on and make the motion make the first motion yep um i move to add a policy statement to the 2026 legislative program to provide support for state level tax credits credits incentivizing residential and commercial accessories solar and battery storage second

[03:30:55] motion made and seconded by Supervisor Bricksman. Discussion on that motion, Mr. Crony. Okay, I think it makes common sense to increase incentives for rooftop solar when power is so critically needed and energy costs are increasing. With the passage of the one big beautiful bill, residential solar systems must be installed by December 31st to qualify this year, sorry, December 31st, 2025, to qualify for the federal solar tax credit. In 2026 and beyond, there will

[03:31:27] be no federal solar tax credit for residential solar energy systems. South Carolina has a solar tax credit that allows taxpayers to deduct 25% of the cost of solar energy systems from their state income tax. This is a dollar for dollar reduction in the amount of tax owed, not just a deduction from taxable income. If South Carolina can do it, I believe Virginia can do it. So that is my motion and I hope that you'll support it. It's a policy statement. Okay. Does anyone else have any

[03:32:02] discussion on this motion? Mr. Sains, you had asked a question. Did Mr. Crony answer your question significantly um yes for solar uh yes regarding the first one yes this motion here i was gonna ask the mr freeman a question sure um mr freeman do you recall if anybody brought a bill for and i'll just if the chair allow both of these items by any chance that you can recall sorry to put you on the spot i cannot recall and then another question for you do you feel if these were added, would these overtax your team

[03:32:39] to follow along and do what you need to do? Staff is happy to lobby on anything that the board tells us to do. Of course you're going to get me. Why would you give me that answer? All right. All right.

Thank you.

[03:32:58] Ms. Brixman? Happy to support, Madam Chair. Thank you. So I do want to follow up. Mr. Sains asked a great question, And I was happy to support, and I probably still will be, but Mr. Freeman, so if this bill, if this language to suggest something like this is not already before the General Assembly, if somebody has not put this bill in, we do a policy statement on the bill that doesn't exist anyway?

[03:33:28] I mean, why would we say a policy statement to talk about something that's not going to be before the General Assembly? Where does that go? Well, so what I'll start with is that it is a long session, and so about 3,000 bills will be filed this year by— So it could come.

[03:33:46] —between the House and the Senate. Okay. And so I can't speak to what will be put forward and will not be put forward, but I will say that this will be a very difficult year for anything that is before the budget due to the federal impacts.

[03:34:04] So I guess it's not that I oppose this, because I certainly don't. I think your second answer to Mr. Sainz's question, will it tax you? Well, you gave the answer you gave, that you all do whatever you do. But I don't want you to do work on something that doesn't have a bill before it already.

[03:34:23] I mean, yes, it might come. It might not come. But let me ask it differently. Would you do any work on this until you saw a bill get dropped? If it is a policy statement, no. If it's a policy statement, no. The initiatives within the program, which you all have adopted for, is what we would directly seek action on the policy.

[03:34:42] Okay, so you will do nothing on this, because it's a policy statement, unless somebody drops a bill, and then we have a policy statement in place. Correct. Okay, that's fine then. No issue. That's fine. That's fine with me. Would you like a closing? Yay.

[03:34:58] That's good. I know we want dinner. It's a good thing. Motion is made by Supervisor LeCrony, second by Supervisor Brixman. All people who say aye. Aye. - Aye. - Any opposed? That motion will pass 9-0. Mr. Crony, you have a second motion.

[03:35:14] - One, I did research on two because there were some questions and it's attached here. I move to add a policy statement to the 2026 legislative program to support net metering for site-specific solar facilities and support participation in Dominion Energy's petition to revise its net metering program.

[03:35:35] - Second. - Okay, thank you. I'm going to give that second to Ms. Glass discussion on the motion, Mr. Crony. So Dominion Energy filed its petition to the SEC on May 1st to change its net metering program.

[03:35:51] The change would have significant impacts on solar and distributed energy generation in Virginia. The proposed change would reduce compensation given to customer generators, which would disincentivize solar adoption and undermine our Virginia Clean Economy Act.

[03:36:10] I will tell you what it is. They are proposing to decrease the one-to-one retail rate by 32 percent from 14 cents per kilowatt hour to 9.553 cents per kilowatt hour. Reducing this retail rate will have a drastic effect on rates of return on a solar system which could go from 10 years getting a rate of return to 30 years if Dominion succeeds in reducing the retail rate.

[03:36:39] I will state that the current law, the current bill that's in Virginia code requires a one-to-one, a one-to-one retail credit and it also requires a 12-month annual billing.

[03:36:55] So that is our current law. And Appalachian Power tried to weaken its net metering program in the summer, but failed when the SEC rejected their proposal last summer. SEC quoted Virginia Code that calls for, again, that one-to-one credit and defines the net metering period as 12 months.

[03:37:16] So I believe at a time when energy independence is something that would be really positive for our residents and with rising utility bills, it's really critical that we try and support clean energy independence with solar.

[03:37:37] And again, these would be accessory solar units that are site-specific for businesses and residential. And I think we should take a position that supports net metering and does not support Dominion's change in that program.

[03:37:58] Net metering is enough to... All right, thank you. Mr. Letourneau. Thank you. Yeah, I don't support this change as I indicated last time. The question is whether the county should intervene. So that requires a level of work from staff to actually intervene with a particular point of view.

[03:38:18] It requires technical analysis, all those kinds of things to intervene. Otherwise, our comments would be worthless because the SEC are experts. They know far more. Dominion has experts. Others in the industry are intervening on both sides of this. So the question is whether the county should expend resources to intervene.

[03:38:35] This is a complicated topic. I'm not here to defend Dominion. I don't know the details of this case, nor do I need to know. I do know that there's a whole bunch of components to this. One of them is changing to a 30-minute interval for the billing period. They're saying that the reason for the rate reduction has to do with power purchase agreements.

[03:38:55] Essentially, they don't get the retail rate. They're entering into utility-grade, utility-scale agreements that come at a discount, And so, therefore, it's difficult for them to compensate at a retail rate when they're not actually getting a retail rate in return. Dominion is a regulated energy provider.

[03:39:14] They're only allowed a certain amount of profit under the code. So, by definition, if they're subsidizing something a certain way, then the rest of the rate payers are paying for it more to make up for that. I don't know who's right. I don't know who's wrong. Neither is anybody else up here, to be quite frank.

[03:39:31] Like, this is a pretty technical thing. And I don't think the county needs to get involved in a case that is not specific to the county. That is a highly technical thing that there are two sides on that does have the potential, potentially, to raise rates for everybody who's a non-solar user.

[03:39:48] I'm all for solar energy. I've supported the last item for a reason. I think it's a great thing. I suspect that if the SEC believes Dominion is wrong, they're going to rule that way, just as they did in the other case. I don't know if they're parallels or not. But that's not the question.

[03:40:04] The question is whether the Board of Supervisors should intervene in the case on a subject that's, quite frankly, exceeds our technical expertise, to be honest with you. So that's my argument. Thank you. Ms. Bricksman? I'm good, Madam Chair.

[03:40:21] Thank you. Thank you. Mr. Kirshner? Yeah, thank you. I thought I understood this, but after hearing Mr. Letourneau speak, obviously I don't. I'm going to be honest with you. So I'm not sure I know enough about this, honestly, to fully support it this time.

[03:40:36] I very well could be supportive of this, but I think I'm going to need to do a little research. So before I vote to add it to our legislative program, I'm going to have to do some more research. So I could not support it at this time. But that doesn't mean I couldn't change it later if it doesn't pass. Mr. Sainz. Thank you, Madam Chair.

[03:40:52] In Mr. Coney's notes, as she provided to us, it says Loudoun County filed a notice of participation in the case by the September 30th deadline. The SEC has scheduled a hearing for January 20th, 20th, 26th. So I just wanted to get clarification on that. Is that true that we actually filed to participate in this case?

[03:41:11] Yes, so far that's the only action we've taken is a notice of participation. What else comes with that as being a participant? At this point, there's no other action that has happened in the case. It's just a placeholder. And how many other localities have filed to participate?

[03:41:28] So far, one other locality has agreed to participate. and who is that it's either alexandria or arlington i'd have to i'd have to double check it out of the 90 plus counties were correct two interesting there were one of the two okay and did we vote to participate or are you no did you you have not this was a placeholder that we will bring to you yes so we have not actually filed to be a participant in the case we have we filed a notice the notice is easy to do it keeps the option open for the county to do okay

[03:42:07] Okay. And did we give that direction or do you did that with your... There has been no discussion at the board about this issue. No, I'm asking like when you filed to say we wanted to participate in the case, did the board of supervisors give that direction or you just did that as a county attorney on your own? I just did that as the county attorney so that we'd have the ability to discuss it.

[03:42:25] Gotcha. Okay. All right. Thank you. Mr. Turner. Thank you, Madam Chair. This is a policy statement that says we support net metering without getting down into the granular details of net metering. It encourages the use of solar facilities in private homes.

[03:42:43] I mean, why would we not want to do that? I completely disagree that we're trying to anticipate the granular aspects of net metering, particularly if it's going to, quote, raise the rates of other consumers, unquote. The impact of data centers in this county on rates and stranded costs for Dominion is staggeringly high.

[03:43:04] Any change in those rates as a result of our support in a policy statement, We're not even sure what that support will entail. Just to simply state we support net metering, that somehow down the road that that's going to incrementally increase other residents' power bills, I think it's inconsequential compared to the impact on stranded costs potentially and rates for consumers down the road because of data center consumption.

[03:43:30] The bottom line is I think it's good to have a policy statement that says this board supports net metering because it advances our solar initiatives in the county. I just don't think it's that complicated. I think as a statement of policy, our support for this kind of a policy makes perfect sense.

[03:43:48] Thank you. Yeah, I think Mr. Turner just talked me into it. I was actually going to abstain because I don't know what I don't know about this. It seems to be a little more, I don't know what I don't know. And that's my fault, Mr. Crony, because you did table this And over the past two weeks, I could have done more studying on it than I have.

[03:44:09] And so I will say that I should have done more studying on it over the past two weeks. So the reason I will support it is because it's only a policy statement. And to the things Jonathan said before, for a policy statement, nothing happens unless there's a bill that's brought up.

[03:44:32] At that point, and I will go study it more. At that point, you know, the board can then discuss what the actual bill says and discuss what we want to do. But this is a fairly simple statement right now. And so sometimes I'm very careful about supporting and not supporting.

[03:44:53] Sometimes I have a full grasp on it. But since it's only a policy statement, I think I understand enough to know what we're looking to support. And I don't, yeah, I don't see a reason not to support it right now.

[03:45:10] Now, that might change. I'm like the opposite of Mr. Kirsten. But that might change. But right now, I can't see a reason not to support it right now. So I will support the motion. Would you like a closing? Yeah, thank you, Chair Randall. So as far as shifting the cost to other consumers, Dominion has 3.6 million customers.

[03:45:31] And solar, just so everybody knows, the solar penetration rate is less than 3%. So net metering is less than 3%. So it's really not going to, you know, I think the argument that they don't want to increase rates for other consumers really falls flat because it's not because of net metering that the rates are going up.

[03:45:54] It's because of data centers. I support what Vice Chair Turner said. The benefits of net metering solar are clear. It grows energy independence. It protects residents from rising utility rates, which is really relevant as Dominion's new integrated resource plan predicts nearly a doubling of electricity bills in the coming years. And data center-driven demand has pushed our grid to the breaking point. Rooftop solar, when paired with battery storage,

[03:46:27] can supply backup power during outages, and I think that's really important. I think it's important that we as a county support solar as much as we can, because it does provide a way for residents and businesses to be energy independent, and the net metering allows them to have a rate of return, and it gives them some credit on the back end. So that's all it is. It's really not that complicated. I put a picture in here about what net boonering is about, but I think the the argument that they're going to increase rates is just

[03:47:04] ridiculous when it's only three percent of their customer base. So I hope the board will support it. As Chair Randall said, it is a policy statement. Thank you. Thank you. Motion was made by Supervisor Decoigne, seconded by Supervisor Glass. I'm going to say aye. Aye. Opposed. Aye. So that will be, that will pass with Ms. Umstead opposing, Mr. Letourneau opposing, and Mr. Kirchner abstaining.

[03:47:33] We have one more for the legislative agenda, and it is, I'm a little confused as to what it is, because it's not a policy statement. It's an addition to the, to the priority statement that's already there. I think that's what this is.

[03:47:48] and it's from miss briggsman so would you like to make the motion yes i would thank you madam chair i'm sorry it's on the purple it's on the pink piece of paper on your on your face okay we're ready thank you madam chair i move to amend the first sentence in paragraph one of the transportation policy statement to include the italicized and underlined text to now read the county supports increased

state funding for road construction road maintenance transit operations and capital costs and multimodal improvements to support a connected system of bicycle and

[03:48:24] pedestrian road pedestrian pathways including providing adequate funding to pave higher volume unpaved roads and adequately maintain rural roads second fine second this is the second thing that i'm like it is fairly simple madam chair oh sorry should i do an opening i'm really not i'm really not i'm just i'm just like would you like an opening yes ma'am i'll be quick um this was part of the recommendations for our legislative agenda from our own environmental commission

[03:48:59] and given the work that this board has done so far on multimodal improvements transit expansion it just makes sense for us to include this this in the statement in our transportation section um we actually searched the ledge agenda my staff and i and found that multimodal the term multimodal was not used was not in it once um so i hope to include more verbiage like this in the future um i this was the only thing from the environmental commission that i felt comfortable bringing forward um and but hopefully i think the environmental commission knows that they should bring their um suggestions a little bit earlier in the process so i hope that it's very simple

[03:49:38] madam chair and i hope that the rest of the board can support it thank you okay anybody else want to speak on this item i'm happy to support this item i mean i i don't i think it's i think it's i think i feel like we're doing a little bit of busy work up here to be quite honest i also think that especially for this year i i would want to see the generous will be focused more on health care costs and feeding people and that type of thing but um i also think our environmental commission is phenomenal and they've done such great work and if we want to keep people healthy there's lots of ways to keep people healthy let's feed them and let them go ride a bike sure so sure

[03:50:16] all right motion is made by supervisor brixman i second the motion any further discussion none hopefully say aye aye that motion will that motion will pass unanimously i think that's all the motions for the ledge agenda is that correct no one else has motions for the ledge agenda Okay. All right. Mr. Hemstreet. Okay. Yeah. Stop whining about eating. You'll be all right.

[03:50:59] We will because you guys have a lot of things on this dais right now. So I'm just trying to figure it out. Mr. Hemstreet, the item that the runway 30 item, we have staff in the room for that item, do we not? They'd like to not be in the room anymore, correct? So we've already made the motion to reconsider the motion. What we would do right now is just have Mr. Turner do the actual

[03:51:27] motion. And so for the runway 30 item. Was that sent out, Mr. That wasn't sent that we can't do it if it's not sent out. It was, but you know what, Mr. Turner, how about we how about we hold that? I'm sorry, because we'll have the motion up here and have your staff get that to us while we take a break it's a pretty easy item but with number five that's not going to be fast that's

[03:52:03] not fast that's not fast that's definitely not fast chair randall if if item seven is going to be sent to tuck that's going to say i was going to say item seven two seven because we would go to tuck we would request the second portion of the packet memo which allocates the funding yeah and authorizes us to hire to proceed with the consultant getting them on board be authorized otherwise we lose and then you can send it to you like we won't it just allows us to maintain the project timeline if we can get the funds so you need some of that motion made then yeah so it's the it's on page it's on page

[03:52:42] five it's the I move that the board of supervisors direct staff to execute a budget adjustment in the amount of two million and then within the rest of to a TLUC. Yes and I would just add to that language and authorized to proceed with getting the consultant or hiring the consultant and initializing the project. Okay that's okay can everyone go to that item so what so just to give a background what happened on this item because I think I'm not sure Mr. Kirshner you were here Mr. Sands you were not here we walked into the dais I'm looking at four or five motions on the transportation plan which is a lot to try to do on this dais tonight and supervisor said how about we don't do that anymore because it's just

[03:53:21] not helpful and so what we're going to do is send this whole item with the exception Mr. Dempsey just said to TLUC to be worked out and so any motions tonight on the transportation county transportation plan we're not going to take those motions we're going to make the I'm going to make the motion to send this entire item to TLUC with the exception of the budget adjustment in the amount of \$2,286,000 from the project management consulting services account and the capital funds to

[03:53:57] a newly created project account. So we're going to move that money. So that would be the motion. The TLUC meeting that this will go to would be the, Mr. Crony, the first, TLUC meeting in it won't be this no it wouldn't be December it wouldn't be December it could be it could be January though is that to look me in January and we will approve the consulting services amount tonight so that's the motions there second on the motion second on the motion yes the motion does the motion also include us initializing initializing the consulting services we just need to be able to get started I said that I thought

[03:54:35] I said that did I not say that the motion is just a budget adjustment so I Yeah, I read it. You did. Okay. But it doesn't authorize us to start the consulting services because that was included in the upper, the first part of the motion. Ah, okay. So we just want to initialize the consulting services. And to initialize the consulting services.

[03:54:51] Mr. Pimster did a friendly amendment on my motion. Thank you. So the motion made, and Mr. Crony, as chair of T. Luck, seconded the motion. Discussion on this motion, Mr. Letourneau. Thank you, Chair Randall. The only thing I was going to add, I don't know if I'll make the TLAP meeting in January, but I'd like to if I can.

[03:55:13] The overarching concern I had was the timeline on this. This is a 40-month process that we see here. That's like almost an entire board's term. It ain't going to be this board's. So I don't, you know, the first phase is 16 months. The second phase is, I think, 30 months, something like that.

[03:55:33] I don't know whatever my math was I got to 40 somehow um either way though you don't have to lay up too long well yeah that and I don't know if I would like to dive into that a little bit to figure out exactly what components are taking that long oh it's 24 months and 16 months yeah yeah that's that's yeah because that's an awfully long time it is I mean that's that's like as long as it took to do the whole comp plan so in theory we're doing this regularly and I know we we kind haven't but we did update this to some extent in 2019 so if it takes truly 40 months every single time we're gonna update the CTP then we're on a schedule

[03:56:12] and do this like once every 15 years and that's gonna be tough so he makes a point because the CTP was part of the comp plan yeah yeah so anyway I would like to have further discussion about that okay well then if you could make The T-Luck meeting, that'd be great. Yeah, but if I don't, you all can.

[03:56:28] Yeah, exactly. I got you. I got you. It's a very valid question. Ms. Bricks, do you have anything on this? No? No. No. Okay. Mr. Sains? Yes, thank you, Madam Chair. So how do we get our motions that we had, our questions?

[03:56:45] You have it? Okay, so I don't need to email anything to you? No, no, email something to us, because I'm not going to remember this. Okay, well, I'll email it to all the T-Luck and staff members. Tell me the day before. We will send it tonight to TILA members and staff at TILA.

[03:57:01] Thank you. But, Mr. Sains, to that question, is it possible that as we dive down in these, the motions that you have here may no longer be the motions you want to make later on? That's kind of my point. I think that's Mr. Letourneau's point, that we have to maybe dive into this more.

[03:57:16] So we don't know that the motions you have now would transfer after we have discussions. Well, reading the packet, if we are going to move forward tonight, The PAC was keeping these things in. There's things I want to take out. I don't think you're going to change my mind with the stuff that I'd like to take out.

[03:57:33] Okay, okay, okay. All right. Motion's made. All people say aye. Aye. Any opposed? That motion will pass unanimously. So number seven is taken care of. I'm getting this to 8 o'clock.

[03:57:49] I'm getting this to 8 o'clock. I've got six minutes. Item 13. Item 13. It's a BMI. This is going to take a lot longer. it is okay oh godly okay well i'm trying here yeah well i guess we don't because otherwise you want to do stuff with staff because the staff is going to start going where where where i mean not the staff but you all okay okay okay madam chair the direct power letter the power let the power letter yeah we can do that all right that's

[03:58:25] quick the power letter mr turner has a motion power letter let's do one more mr turner has a motion. And that's, Mr. Turner, it's on a blue piece of paper. Item 14. Item 14. Pardon me?

[03:58:54] Well, he wanted to do something different with it. That's why it was not on consent. Oh, yes. Change. So, hello, Mr. Kroboth. Good evening, Madam Chair and board members. So, this was actually something that was a candidate for consent until Mr. Turner had said that he wants to make a change.

[03:59:16] Do you think that you need to give any... You have it. You have it. Yes, it's just that. Do you have anything else you want to say before we get to a motion? No, ma'am. Okay. Just to deal with Supervisor Turner's... Okay. Who's now not sitting at his desk anymore?

[03:59:34] Point of clarification, Madam Chair? Yes. No, it's... Did you say that the motion that Supervisor Turner is making is different than the motion that's in the packet? yes that's why we that's why it's not that's why it was not on consent so i don't see a motion what did you not email did your email number because these motions were sent they were sent so yeah it was it they were sent i see a motion from item 11. i don't know miss brixman but i'm

[04:00:10] going to go on and have miss i'm going thank you mr saints i'm going to go out and have him check your check your yeah so you don't have it in front of you at all because you're not here Okay, Mr. Sainz, just send it to you. Mr. Turner, would you like to make your motion? - Thank you, Madam Chair. I move the Board of Supervisors approve the letter of support provided as attachment one to the December 2nd, 2025 Board of Supervisors business meeting action item 14.

[04:00:34] I'm sorry. - That's right. - I'm sorry, Madam Chair. County Attorney just advised me that because this was not on the agenda, we have to suspend the rules first before we can make the motion. - Oh, I didn't suspend the rules for this tonight, did I? Did I suspend the rules for this tonight?

[04:00:51] You can add it to the agenda, and then the board can take a motion to refer it to committee. I thought I did suspend the rules for this tonight. No, you can add it to the agenda. The rules for the other things. Yeah, so to take an action other than a referral to committee requires a suspension of rules. I thought, okay, I will make, well, you can do it.

[04:01:08] I move, Madam Chair, I move we suspend the rules. I'll second that. Discussion on suspension of the rules. Yes, sir? Well, I'm sorry, I don't mean to be a jerk over here, But the whole second part of this motion seems completely unrelated to the first part of the motion. Like, I don't get the nexus between these things.

[04:01:26] I'm not necessarily opposed to it. I think it's probably a good idea, but it sounds like it's a discussion we should have. Well, we can't have the discussion unless we suspend the rules. Well, I don't want us to suspend the rules until I know what's being proposed, because I don't necessarily want to vote on this yet. Take a vote. It'll pass. So, well, all right. Okay. Okay.

[04:01:41] I got your opinion. All right. This motion for the suspension of the rules. All right. Please say aye. Aye. Aye. Opposed? Nay. Okay, so that motion to spin the rules will pass, 7-2. Mr. Turner, would you like to read the full motion now?

[04:01:58] Thank you, Madam Chair. I move that the Board of Supervisors approve the letter of support provided as attachment 1 to the December 2, 2025 Board of Supervisors Business Meeting Action Item 14 and direct staff to send the signed letter to PJM Interconnect LLC and Dominion Energy, Virginia. And I further move that the Board of Supervisors direct staff to request a proposal from Loudoun County's current consulting engineering firm which provides support for electrical transmission system assessments and report back to the board at a future business meeting with a scope fee proposal and recommended funding source for board approval.

[04:02:30] The proposal should include an overview of high-voltage direct current HVDC transmission infrastructure applications, specifically focusing on the following aspects related to undergrounding, including ease of burial, typical duct bank configurations, and estimated costs, integration with renewable energy sources and battery energy storage systems, integration, I'm sorry, general benefits and requirements if applicable for extending HVDC infrastructure directly to the vicinity of the electrical load center known as data center alley, regulatory requirements associated with developing an hvdc system to support large electric load

[04:03:05] customers and the feasibility and practicality of large load customers converting their operations to dc power and what advantages and disadvantages such a conversion would create all right mr mr mr um mr turner i'm going to second that motion and then i'm going to divide the motion for the very reason mr mr leterno just said and then i'm going to make a suggestion okay so i'll second the the motion and I'm going to divide the motion and the first part of the motion will be the packet motion. So at this point we're going to have a discussion on the part of the motion that starts

[04:03:41] with I move to the ends with Dominion Energy Virginia. That's a discussion right now. Discussion on that part of the motion. Actually do I get an opening statement with that part of the motion?

[04:03:57] Sure. So the history of this, very briefly, just a week or two ago, Dominion reached out to me and asked if I could write a support letter. They have a project that's bringing in a 765 kV high voltage DC line from Heritage Substation, 185 miles to Mosby Substation, which is just inside the Loudoun County line.

[04:04:19] It's basically right on the southern border in Little River District. That's great news. I've been advocating for high-voltage DC in Loudoun County for two years now, and that's really good news. The problem I had when I asked the question is, okay, so now we get HVDC into Loudoun County, and then what?

[04:04:36] It's nowhere near Data Center Alley. How do you get it to Data Center Alley? And if you do get it there, what are they going to do with it? Is there a value? All the research I've done for two years is there are many projects around the world that are high-voltage DC lines. They're usually intended for underwater, long distances, but there aren't some underground actions that are being taken in Europe and elsewhere.

[04:04:59] The problem is, to my knowledge, there is no regional DC underground network to supply end users. So it moves large amounts of electricity to a terminus, but then that terminus kind of just stops and it goes into distribution lines.

[04:05:15] They've got to get the HVDC power down to data center alley. I don't know how to do that. And so I mentioned it to Mr. Hemstreet in our meeting the other day. And so the first part is Dominion called and said, will you send a letter of support personally for this HVDC line, which I did.

[04:05:33] I said I'm acting on my own behalf, not on behalf of the board. They needed it by December 1st, so I sent my personal support letter as a citizen. and then i said and the board will have an opportunity to send a support letter on december 2nd which is one day after your deadline i want you to be aware of that but they will they will send a letter of support if there's a majority that agree with that that's what this motion does it authorizes the letter of support from the board for the new hvdc line coming into mosby substation great um you can hold on miss um step was next all right oh thank you for the

[04:06:11] first part of the motion only all right thank you madam chair do we have would our support for this proposal be an endorsement of what we've been told by dominion about the cost of undergrounding which is seven to ten times more expensive than overhead and is then imposed on all rate payers are we running into that potential problem if we support this may i answer no it was that was that i don't know who she asked it to who are you asking if joe

[04:06:50] has a response that would be fine certainly uh so first of all this project proposal that is on the table from dominion to pgm the the organization that manages the grid On an annual basis, PGM opens the window for proposers to submit projects that will help PGM solve their constrained problems.

[04:07:19] And so Dominion Energy submitted this proposal, so it is just a proposal at this point in time. And the proposal is to completely construct that DC line underground from Heritage substation, which is down, I'll say, close to Lake Anna, from that point all the way to Mosby in Loudoun County.

[04:07:44] DC current is significantly different than AC current, which is what all our distribution and transmission systems are. and therefore it's much more conducive for constructing it in an underground configuration. But this project proposal is completely 100% underground.

[04:08:02] All right. Using existing right of way. I'm sorry for interrupting. Do you know what the cost implications are to the rate payers? I do not have that information. All right. Thank you. Madam Chair, I have a cost estimate.

[04:08:20] I understand that. You can talk about it in your closing because, with respect, the question was not directed at you. So in your closing, you can have that discussion. Mr. Sainz. Thank you, Madam Chair. Just throwing it out there, maybe these are just different lines, and I don't know the ins and outs of it and all the technology and the science behind it, but if you look at this from Google Maps, this is pretty much from our area, going all the way down darn near close to the border of the Commonwealth to North Carolina.

[04:08:48] Mr. Corbett just said this is all going to be underground. Very interesting to hear that this is going to be underground when we've had some other power lines that Dominion said they need to build and whatnot. Then we say, oh, can you build it underground at a very shorter distance than this, obviously?

[04:09:05] And they say, oh, no, we can't build these things underground. So it's a little interesting how we can build. I forget how many miles it is, but it's a lot of miles, more than 10 or 20 miles, definitely more than that. 185 miles. 185 miles, this is all going to be underground, but for power lines that are 5, 10 miles, or two miles, they can't do undergrounding.

[04:09:29] So, again, I don't know all the science and technology behind it. Hopefully, if Dominion's listening, they can give us some more detailed information on that. That'll be very good to hear and learn about. So I'll just leave it at that, but thank you. Mr. Crony?

[04:09:47] Okay, so I believe that substation is in my district, the Mosby one. What's the relation to Morrisville to Wishing Star? Because that's down there too. That's down near North Star and down in my district. And can we get that underground? Because I thought that was 186. I had heard that was about 186 miles long.

[04:10:17] I'm not aware of the mileage of that particular project other than it is a 500 kV alternating current and 230 kV alternating current circuits. And all I can say is the physics behind the difference between alternating current and direct current, DC versus AC, are significantly different, which allows them to be more conducive to undergrounding.

[04:10:47] So, again, there's essentially one 500 kV alternating current system in the country in Chino Hills, California. The physics behind that just simply doesn't make it practical. 230 kV can be buried.

[04:11:05] We have miles of it here just in Loudoun County alone. So the 500 kV, this would be a real innovation doing that, right, 186 miles? Because you're saying it's 500 kV and 230 kV. The high-voltage DC project? Yes. Yes. It would be an innovation.

[04:11:22] Okay. So how are we getting it from Mosby to Data Center Alley, to all the data centers? Because that's nowhere near the data centers. We don't have that information, but I suspect this will bring additional capacity to Mosby. From that point, it will follow the existing...

[04:11:40] Morrisville to Wishing Star. No, no, the existing 230 kV network that already exists in Loudoun that goes from Mosby to Data Center Island. Is there any way we could ask them to underground Morrisville to Wishing Star?

[04:11:56] Because it's right there, and I know my community would love that. We can make that request. I mean, that's the thing. Well, we're talking about, I mean, Supervisor Sains brought it up. I didn't say anything. It's right there. It's at the Mosby substation.

[04:12:13] It's a huge, huge structure there. It's a wreck and rebuild. You know that I don't think we can just say can we ask I think it has to be a motion or an addition to the motion or something. You can't just go because there's a motion on the table. So we can't just go. Can we ask them to do it? I mean, would you support the friendly amendment, Vice Chair Turner? Would you support? No, I know, but I want undergrounding. Okay, thank you. Thank you. Yeah, Mr. Brickspin, do you have a question?

[04:12:43] i have several questions um just on the just on the first part of the motion i just i on the even on just the first part i mean the meeting that they asked for a letter of support for was yesterday he said that already so i guess i don't understand why why we're doing this also the the substation

[04:13:18] is in to crony's district supervisor to crony's district so i guess why why was she not consulted on this sorry and i it's just i i don't know if i can support this because i don't really understand all the technology and what and what's happening um and sorry maybe drink a water um was this when we say i have never seen an item that says potential item number 14 so

[04:13:53] was this even properly advertised to the public maybe county was in addition to the agenda which did a suspension of the rules which is which is uh which is allowed so so let me be real clear that we are following the policy we've always followed to do in addition to the agenda including so it wasn't one of this board is done it wasn't advertised as part of our regular agenda though so it did go out in the supplement in the supplement okay it did go out in the supplement yes it did and i think it went out in the supplement before the weekend okay it's wednesday

[04:14:30] okay i yeah it went out in the supplement and went out in supplement before the weekend it it did it did so yeah if dominion's already agreeing to bury the power line why does it matter what loudon county says they've already agreed right mr mr krobath have they already agreed to bury the power line placing the lines underground is a component of the project that they proposed yes okay so they've already agreed to do it correct yes well okay so the reason for

[04:15:08] the request for the letter of support is the PGM process to actually convert the proposal to a real project. So on December 1st, yesterday, the PGM project team review team reviewed and shortlisted projects. The actual approval or acceptance of the proposal will not happen until the first quarter of calendar year 26 so that is why dominion communicated to us we okay we would

[04:15:44] love to have a letter from the county if supervisor turner is the only letter we can get before december 1st that would be wonderful but it would still be meaningful if the board could provide a letter even if it is after the december 1st meeting that helps thank you that has that all All that had been said already, I will say, Mr. Brixman, that's not the first thing.

[04:16:06] All the information Mr. Krobot just gave you, Mr. Turner, has said that just now. Well, I've been listening, and it wasn't clear to me until Mr. Krobot said it, but thank you. All right. Mr. Letourneau? So, forgive me if it's been said, but did the project actually get shortlisted yesterday?

[04:16:26] I saw in the item that it says it could be, but did it actually happen? I don't have any information. So no one knows if it actually happened yesterday? I'm happy to have Mr. Turner answer that

question to the chair. If you just answered that question. I received acknowledgement today from PGM thanking me for my letter, which the language of the letter was that they haven't made a decision yet.

[04:16:49] So they didn't yet. Okay. That's my guess based on the language of the letter. Well, but there's two different things happening. They're going to shortlist projects and then select projects. All right, so I guess my point with this is, so the meeting already happened, so we missed that deadline. I guess I'll ask the chair, do we have a second meeting in December?

[04:17:07] I assume we did. We have a second meeting in December, but we were not, but the second meeting in December was not for. I guess I'm just wondering, I mean, clearly people don't quite understand this and are feeling a little bit jammed up on it. I'm feeling jammed up on the second part of this. If they're not actually making a decision until the first quarter of 2026, then what is the urgency that we have to deal with this tonight rather than understanding what they did at the meeting yesterday and then I think have a proper, I know we're not talking about the second part, but a proper format and discussion of the second part of the motion. I can make that rhetorical unless somebody

[04:17:46] wants to answer it. All right, so before we go to a closing, this is what I would say. It is not unusual for us to endorse something that could happen or that we think might happen or that we want to happen. It's not unusual for us to endorse things that have already happened, and that we say we support something that we know is already in process just because we want to say we lend our support to it.

[04:18:14] None of that is unusual for us to do. This discussion is about whether or not we support burying power lines. That's what this discussion is about. Whether or not they put it on the short list and in the end say yes or no, we support it. I don't know when we've stopped supporting burying.

[04:18:30] We've had multiple, multiple hours of conversations with the public and everywhere saying we support Burying Power Lines. That's all this first part of the motion is saying. So even though the meetings happened, we understand that they said a letter of support would be good.

[04:18:47] As they're making decisions that might happen in January, they would have this from us already. So I don't know if it's urgent, but I think when you are trying to get something done, having all the information to them and others of support to them in advance is fine. I don't know that we need to wait to a later date to say we support what we support, period, the end.

[04:19:07] And if they haven't decided yet, maybe this letter will mean nothing at all, or maybe it could help. It probably certainly could not hurt. And with the exception of the question Supervisor Umstead asked, which I thought was a valid question, which Joe didn't know the answer to, I cannot think of any reason not to say that Loudoun County Board Supervisor supports underground during power lines.

[04:19:29] I just can't. I just can't. So we're only doing the first part right now, and it did go out correctly, and it wasn't a supplement, and people have seen it. And I would be surprised if we had a groundswell of people coming in here saying, we don't want to support underground in power lines.

[04:19:47] So, Mr. Turner, would you like a closing? Thank you, Madam Chair. A couple of things. It is infinitely easier to bury a high-voltage DC line than it is to bury a high-voltage AC line. As Mr. Krobos said, Chuna Hills is the only place it's been done.

[04:20:03] It took 10 years, 7 years of court battles, and 3 years to actually build the line. It's 3.7 miles long. It costs \$225 million. It requires a concrete bunker, a 15, 20-foot deep trench, gas-infused inside the

concrete bunker. It takes years to build.

[04:20:19] I've got a picture in my slide deck of a 2-gigawatt HVDC line that is laying in a 5-foot-deep dirt trench that will be covered over with dirt after they're finished and replanted. It is infinitely easier to have HVDC. The Dominion is trying to get more power into our grid, and the alternative to a high-voltage DC line coming into – I was ecstatic when I saw this.

[04:20:46] The alternative to bringing in a high-voltage DC line into Loudoun County is a whole lot more overhead high-voltage AC lines. That's the alternative. This line or multiple overhead HVAC lines. Dominion has submitted this project.

[04:21:02] They asked for a letter of support, and I agree completely with Chair Randall. Why in the world would we not support bringing more power into Loudoun County underground? A 765 kV line underground of D.C. is probably – a 500 kV line is about 2.1 gigawatts, depending on temperature and distance.

[04:21:21] This is probably 3 to 4 gigawatts of additional power. We're already at 5.33 gigawatts of demand in Loudoun County, and it's going up about a gigawatt a year. This is a huge infusion of power, and it's undergrounded in the existing rights-of-way and avoids more overhead transmission lines.

[04:21:38] Thank you. All right. Motion was made by Supervisor Turner. I second the motion. All in favor, please say aye. Aye. Opposed. That motion will pass. I'm going to abstain, Madam Chair. That motion will pass 8-0-1 with Ms. Brixburn abstaining. Now, to the second part of the motion. Mr. Turner. Thank you, Madam Chair. Do you want me to read it again? I do not. Thank you. Thank you. No, I do not. I'd be happy to explain where it came from.

[04:22:07] no i do not i want to ask you a question because i may make a motion to table the second part of this motion until the first meeting january and let me just ask a question because this is a lot for i won't speak to anybody else for me to take in not because it's a lot for me to take in and i don't like and it's a lot for me to take in is this something that if if it was passed in january would be, would cause any significant issues to give people time to ingest this?

[04:22:42] I don't know. I would like the opportunity to explain what this is and where it came from. So if we move to table it, then that won't happen until January. And it's a fairly easy explanation. But I don't know what the impact would be because I don't know.

[04:22:59] Obviously, the Dominion Project -- Okay, hold on. Could you answer my question? How about this? I've seconded the first part of the motion, I second the second part of the motion, I did divide the motion. How about you do the opening and explain what you want to explain?

[04:23:14] However, based on what, I might still make a motion to the table, but go on and do the motion. Fair enough. Thank you, Madam Chair. So this is your opening. Here's the evolution of this. So we saw the request for the support letter for the high-voltage DC line, and I immediately said, great, what happens when the HVDC power comes into Loudoun County and just sits there?

[04:23:35] How do we get it out to Data Center Alley? Well, the answer from Dominion could very well be we convert it and we turn it into high voltage AC and we build more power lines or add it to existing power lines to get it to Data Center Alley. And I don't think any of us want that to happen.

[04:23:51] So I said, okay, why don't I submit a BMI that asks a consultant and hires a consultant to look into what are the ways you can get high voltage DC line from Mosby substation to Data Center Alley? What exists? What's feasible? What's the engineering?

[04:24:08] And so I was going to introduce it as a BMI. Mr. Hemstreet kindly said, and Joe agreed, rather than do a BMI, we already have an existing consultant contract with Kim Lee Horn to investigate the grid and the various possibilities with the grid.

[04:24:23] It would be easier and simpler to just expand that contract a little bit and ask Kim Lee Horn, what are the possibilities of creating an underground regional high-voltage DC network? That's all it is. It expands that contract slightly and tells Kim Lee Horn, you're doing the work anyway.

[04:24:39] Come back and explain to us how you get D.C. power from Mosby out to the data centers. That could be a huge Rosetta Stone. It could be a one-of-a-kind regional D.C. grid that doesn't exist anywhere else in the world. Let's just have our consultant, who's already working on the project anyway, add it to their scope.

[04:24:56] Given that answer, I won't make a motion to the table. Let's have the discussion. Let's have the discussion. Mr. Imps, did you want to say something? Yeah, I was just going to thank you, Madam Chair. I was just going to add on to what the vice chair said. So we are, and Mr. Krobath can correct me if I'm too far straight, but the board has directed us to bring back product around potential corridors and potential alignments for high voltage AC lines as they come through the county because they're coming.

[04:25:29] The power requirement is here. They're going to come. They're going to transverse the county. So we already have that assignment. Vice Chair Turner is correct. When we talk to him about it, it makes sense for us to include the potential alignments of DC power, which can be easily underground. Vice Chair is absolutely correct. It is very difficult to underground 500 kV and above AC power lines. So allowing this section of the scope to proceed and add it to our existing effort

[04:26:04] around the CPAM that we're already working on would allow us to explore this because to the extent that power lines are coming, this allows, if the technology is there and it's viable, it allows us to underground a lot of these higher voltage transmission lines as opposed to above ground being the only solution. So that's, we did, so the staff does agree that this would be a viable motion. Thank you. Thank you very much for that. Mr. Letourneau. Yeah, I don't know. I'm not going to get into it. I still think it should have been a BMI,

[04:26:41] even if it's amending an existing contract, just because it's a really a separate issue, be that as it may. Can we ask Dominion, Mr. Krobath, what their plan would be first? Because they must have given it some thought if we've gone all the way through the trouble of the first project that we just discussed. Yes, we can certainly make that request. This is a very fast-moving item. We first learned about it Tuesday afternoon and the supplemental item went out on Wednesday. So my assessment of the second part of the motion is essentially to help educate

[04:27:19] the board on a technology that we're not familiar with. What is HVDC? Why is it different? How is it different? And help give us a white paper, just like we're doing this exact same thing on gas emissions from generators and micro grids and the BMI information that Supervisor Turner brought months ago. So I think it's more of an information to the board to help educate you and staff on this technology and how it might

[04:27:53] help us solve our problems. But if the if the first project doesn't come to fruition then this doesn't this isn't a viable option at this time could be in future, different project, different time. Correct. Okay. It's a concept plan. But we have some time though, right? I mean, I know the staff's doing the work, the contract exists, but let's just say they actually do move forward with the first project. I mean, that's going to be years, right, before this becomes an actual question that's relevant for Loudoun County in terms of how we

[04:28:26] get power from A to B, right? We expect that there will be a decision to move forward with the project in 20 early 2026 how long it takes to build it is okay let's just say they build that they're going to build that project regardless of how to of what the second stage is yes right so we would then need to figure that out and we probably would have a point of view on that different potentially different as supervisor turner said from dominions but i would like to understand what dominion's plan would be how they would actually distribute they may not be able to answer that

[04:29:01] question yet. And then I guess my point is that I still don't quite get the urgency of FSA having to do something like this immediately because it's going to be years before it's a really irrelevant question for us, but okay. Okay, we could certainly make that request to Dominion if that's the directive of the board. Mr. Kirshner. Yeah, I just have one quick question I and I appreciate actually I'm very much in favor of sending this. My question I guess to staff or to Supervisor Turner, we have a list here focusing on the following do we feel that that is a sufficient list of the things we need to focus on I would

[04:29:38] assume that kind of vetted it but perhaps can should we change it do you suggest we change it at all to provide a little more leeway for staff to expand what they might we need to look at or do you feel like that's sufficient direction so I think this is a initial list and as the motion reads for staff to work with the consultant to develop a scope, a fee proposal, and a schedule and bring that back to the board.

[04:30:07] So it is very likely that the consultant, when we, if the board directs us to proceed with this and we have a conversation with them, they may very well say, oh, you really should add this component or you should add this because you just didn't think of it.

[04:30:24] So that would come back to the board. We could present that scope, and then you can deliberate it at that time. All right. Thank you. Ms. Jimson, you thought this was going to be fast. Mr. Crony?

[04:30:43] Yeah, I'm just looking at this Mosby thing. It is far south. It's down near Prince William County. So my concern would be that we have Morrisville, the Wishing Star, coming. I would like to know what their plans are because, you know, does that mean there's going to be more power lines going up to Data Center Alley?

[04:31:06] I think it's I would like to see them underground, keeping them D.C., but, you know, they have been doing more of the overhead, the A.C. Can this can that I would want to make a statement that we will not accept more high, you know, overhead, high voltage power lines in this area because they are doing Morrisville to Wishing Star in that area.

[04:31:34] It's exactly that area. And it's a huge power line. They're doing a wreck and rebuild. So I am concerned. So I'd like to know what what they're doing, what their plans are, if they add this to the mix. So we have been to the board, and the board has taken a position on the Mooresville project.

[04:31:52] As you said, it is basically a removal of the existing towers that have exceeded their life expectancy and replacing those towers with monopoles. But bringing this in, this is new. I didn't know about this. This is a completely separate project.

[04:32:08] But the board can certainly tell us to communicate to Dominion that we're not going to allow or tolerate any additional power lines. But as you all know, we have zero level of authority or ability to stop that with the SEC.

[04:32:25] What I'm saying is there's already a plan, you know, so overhead, there's already overhead coming. So that's my point, is that adding another overhead line would be a big issue in that area.

[04:32:42] Is this motion part of phase two of the data center's uses and standards, or is this motion part of the electrical infrastructure CPAM? It's completely disconnected from any of the initiatives in planning and zoning associated with data centers.

[04:33:00] So what is this? Do you know? This scope of work that Supervisor Turner is referring to in the motion, that's your question? Yeah, the whole second part. That has nothing to do with the data center CPAM. This is completely exclusive of that. It's its own project.

[04:33:17] Okay, so is it going on the DPC? So it's not going on the DPC work plan at all? It's not going to delay anything? Well, the staff in planning and zoning, they are the contract manager for the electrical infrastructure consulting engineering consultant work.

[04:33:37] So they would pick up that. So adding this won't delay anything, though, that we have in the queue? I do not envision that, but Director Glenda would have to weigh in. All right. Thank you, Mr. Krobath. I appreciate it. Thank you, Mr. Crony. Ms. Brixman.

[04:33:56] Thank you, Madam Chair. Yeah, I did find the motion finally in my email. It came from Ms. Kahn at 1.53 this afternoon. I'm not comfortable with this. It came at 2 o'clock today, and it's a five-point description of a study that I agree with Supervisor Letourneau.

[04:34:17] I think it should have been a BMI. But with something this substantial, my practice is to at least call my colleagues and explain to them what i'm trying to do um and i i didn't get that call i don't know if anybody else got that call so um instead of voting no on this madam chair i would move to table this item to the second meeting in january motion's been made to table is there a second on the motion to table i'll second there's no discussion on the motion to table all have a motion table please say aye Aye.

[04:34:55] All opposed? No. Motion table will fail. Mr. Sains, would you like to have a comment? Yes. Supervisor Tricone clarified for me that this is going to be separate from the data center, CPAM, and all that stuff that we're working on.

[04:35:13] So that was my one question. Second question is, it was mentioned a few times that we would like to get clarity from Dominion on what they're going to do with the first part. the letter that we're doing going to the PGM and everything so do we need to add that in here or does staff feel that the conversations enough direction to to go and do that on their own I just want to get clarity I believe unless the board objects to not including that that I'm interpreting that is that we will

[04:35:50] contact Dominion and ask them to provide more detailed information about the project okay good that's good enough for me thank you so before I go to a closing, I would say that thank you, Mr. Mstreet, for your explanation. Thank you, Mr. Krobach. That helped a lot. We're basically saying that we're

going to ask the consulting firm to give us information. Now, whether or not phone calls should have been made and all that, I'm not going to speak on that. I think, you know, there's always a chance to have better communication amongst ourselves and with the staff. I will say that just in general. But I'm always looking for

[04:36:25] more understanding and communication when it comes to this item i am not as well versed in in all in all things data center and power lines and grids as mr turner is and some of my other colleagues are and so whenever i have a chance to get more information i i try to do that if we already have a consultant on board and that consultant can do a small amount of additional work to give me more information as we make decisions in the future that's great i don't see I don't really see a downside to that, and again, I'm always looking to have more information.

[04:37:00] I'm going to work harder to kind of just stay abreast of all these things and understand what the lingo is. I will work harder at that. I think that would just for myself help. But I don't see after Mr. Turner discussed it, after Mr. Hemstreet discussed it, after Mr. Krobach discussed it. I do not see any reason why I wouldn't say to our consultant that's already on board and that's already doing work, can you give us more information on a network to underground power lines, which is what we're asking for right here. More information on that. Why would I not ask

[04:37:38] for more information on that? It may be that it comes back and says, sorry, there's nothing else we can do. It may be, who knows what the answer is going to be, but have an information on it will will be will be helpful um and so um you know in the future let's talk more but but as of right now i will support this would you like a closing mr turner yeah very briefly um and i'll take supervisor brisbane's point on on timing and phone calls and that sort of thing um this was a serendipitous opportunity basically a target of opportunity that popped up when dominion said can you send a letter of support and i said i'm happy to send one personally

[04:38:16] And I'm happy to go to the board to see if the board will endorse a letter of support. And as Mr. Krobus said, that happened over the span of about a week, which included the Thanksgiving holiday. So all this was up until yesterday was basically a motion for the board to support the Dominion High Voltage DC project.

[04:38:39] It wasn't until the conversation with Mr. Hempstreet, when I originally intended to send this as a BMI, because we've been pushing hard to figure out a way to get the data centers off of the residential small commercial grid.

[04:38:57] This is a way to do it. And Mr. Hempstreet said, you know, we got this contract out anyway. This would be easy to just add. And so that's what happened. It happened very fast, very late in the game, and it evolved into, well, let's just ask the consultant. They're already working for us anyway. So that's what, but the trigger mechanism that caused it to kind of short sheet everybody was the fairly short notice.

[04:39:19] Dominion requested and sent a letter of support. And then we saw, like I said, this target of opportunity to ask the consultant to do a bit more research. So that's the explanation. Thank you. All right. Motion was made by Supervisor Turner. I second the motion. All of it, please say aye. Aye. opposed nay um okay so that's an 8-1 vote um that's a that's a 7-1-1 vote with mr mr letourneau with miss brixman saying no and mr letourneau abstaining mr turner i mean mr turner would you please reason the closed session i move the board of supervisors recesses public meeting and enter

[04:39:56] into closed session pursuant to sections 2.2 3711 a 819 of the code of virginia to consult with legal counsel employed or retained by a public body regarding a specific legal matter requiring the provision of legal advice by such counsel and to discuss reports or plans related to the security of a governmental facility building or structure or the safety of persons using such facility building or structure. Potions made and seconded by Supervisor Glass. I hear you say second.

[04:40:24] Discussion on the motion. Ms. Brisbane, are you joining us in closed session? I'm happy to do that i'm just wondering if i got a link um can we maybe maybe mr uh hempstreet could just give me a call so i'll send you i'll resend you the team's invite it should be separate he said okay i can search for it thank you okay all right all the people say aye aye any opposed that motion will

[04:40:50] pass um unanimously okay so we're back mr turner will you be out of closed session wait a second

[05:23:04] Ms. Rixman, can you hear us? I can. Thank you. Wonderful. Mr. Rewears, our closed session. Madam Chair, I've been asked by a county attorney to read a revised motion reading us into closed session for legal reasons. Okay. So the motion is changed, reading us into closed session.

[05:23:22] I move that the Board of Supervisors recess this public meeting and enter into the closed session pursuant to Section 2.23711A8 of the Code of Virginia to consult with legal counsel employed or retained by the county regarding legal constraints on an open public forum and public comment during business meetings.

[05:23:42] So that motion should have been read. I think the second of the motion was Ms. Glass. Does anyone have any issues with that motion? Can we now just adopt that motion? Would have been the correct motion to read in the closed session. Okay, thank you. Now will you please be just out of closed session. I move the closed session be adjourned, that the Board of Supervisors reconcedes this public meeting that the minutes of the public meeting should reflect that no formal action was taken in the closed session and further move that the resolution certifying the closed session be adopted and reflected in the minutes of this public meeting. Supervisors, when you affirm today, you're affirming that nothing else was discussed, but that the revised closed

[05:24:18] session motion was all that was discussed in closed session. That's what you're affirming today. So first of all, all in favor, please say aye. Aye. Aye. Aye. And now will you all affirm affirm affirm affirm affirm affirm affirm affirm miss brixman affirm and i affirm as well thank you very much okay so we are back and um let's go on and do um board comments right

[05:24:45] now and we will start board comments with miss brixman okay hang on just a second here we go um

[05:25:10] Thank you, Madam Chair. Yesterday was World AIDS Day, and shamefully for the first time since 1988, our country did not participate or recognize it officially or ceremonially. It is only one of 11 global public health campaigns marked by the World Health Organization.

[05:25:27] As of 2020, AIDS has killed between 27 and 47 million people, making it one of the most important public health issues in recorded history. I might be able to live without the symbolism if it weren't backed by harmful policies. The PEPFAR program, a global program to control the spread of AIDS, is credited with supporting treatment of more than 20 million people, has enabled the births of more than

5.5 million AIDS-free babies, provided care for 7 million orphans, and actually provided 32 million voluntary circumcisions.

[05:26:02] AIDS, while reauthorized by Congress in early 2024, the PEPFAR expired in March of this year, and this administration is underfunding it by \$1.9 billion in its 2026 budget request.

[05:26:21] We are global heroes in so many ways. This program made us global heroes, but right now we are a global joke for this and many other reasons. I had a great time at the Interfaith Thanksgiving Community Service event with Beth Chevron, Adam Center Ashburn, and the Toluga Christian Fellowship, where we assembled hospital packets for children who arrive at NOVA with a sick parent or guardian, so they have something to engage them while their guardians receive care.

[05:26:49] This event was a good reminder that we are one community and we are here and we can come together to serve our neighbors and enjoy time together despite perceived differences and negative outside pressures. According to the Gun Violence Archive, we enter the final month of 2025 with 13,507 total gun deaths, 381 mass shootings.

[05:27:12] The deaths include 210 children under the age of 12 and 936 children ages 12 to 17. Thank you, Madam Chair. I had no idea there was that many AIDS deaths. I never knew that number. Thank you for sharing that. Yes, ma'am.

[05:27:28] Okay, Ms. Umstead. Thank you, Madam Chair. I have no mandatory disclosures. And just like to remind people that the town of Leesburg Christmas tree lighting is this coming Saturday, December 6th at 6 p. m. on the town green and that the town's Christmas parade will be on Saturday, the 13th, the following weekend, again, starting at 6 p. m. at Idle Lee.

[05:28:07] thank you. Okay, Ms. Crony. Thank you, Chair Randall. I have no disclosures. So I do want to kind of reiterate, Chair, what you said at the beginning of the meeting when you said we need to show grace and kindness to one another. Leading with kindness is powerful because it creates trust, strengthens relationships, and sets a tone that brings out the best in others.

[05:28:36] Residents look to their local leaders, not just for decisions, but for a sense of fairness, respect, and understanding. Treating colleagues and staff with respect, even when you disagree, sets a powerful example that civility can coexist with strong convictions.

[05:28:53] Kindness helps diffuse tension in contentious moments and reminds everybody that public service is about people, not politics. Ultimately, leading with kindness isn't just the right thing to do. It's one of the most effective ways to inspire others and create a lasting impact.

[05:29:13] I will be participating in the upcoming Middleburg Christmas Parade this Saturday, December 6. Christmas in Middleburg begins with the iconic Middleburg Hunt Review at 11 o'clock a.m., followed by the Community Parade at 2 o'clock p.m.

[05:29:32] This tradition has been going on since the early 1970s, so it really is special if you can get out to Middleburg. The festivities include festive floats, marching bands, corgis, lots of dogs, vintage cars, community groups, and Santa Claus.

[05:29:51] And I hope that others will join the festivities, and I wish everyone a happy holiday season. Thank you. Thank you. Mr. Letourneau. Thank you, Madam Chair. I have no comments and no disclosures.

[05:30:09] Ms. Glass. Thank you, Madam Chair. I have one disclosure. On Friday, November 7th, I met with representatives from Prologis to discuss the Concord Industrial Park application. Also, I want to thank my colleagues for supporting the response to the BMI for Waxpool Area Traffic Studies.

[05:30:30] That was on consent. I just want to reiterate that I will not be moving forward with renaming Truville Paris Drive and a portion of Wexpool Road. I wanna thank my colleagues for allowing me to the time that I requested to hold the community meeting to obtain feedback from my constituents on the recommendations from the traffic study.

[05:30:55] And I want to also thank the Broad Run residents who attended the community meeting and or emailing me share your thoughts on the proposed renaming and I also want to thank staff, especially mapping and transportation staff for your work on these initiatives.

[05:31:17] I also wanted to talk about what happened yesterday. was a sadly a pedestrian fatality involved in involving a young lady who she was a resident of Percival she was I just want to express my deepest sympathy and extend my condolences to

[05:31:52] her friends and family please keep Miss Alyssa Cagle and her family in your thoughts and in your prayers thank you thank you and we will do that Mr. Kirshner thank you Madam Chair just Just in terms of disclosures, today my staff met with the applicant for the residence at Dulles Plaza, the application that we'll be hearing about here in a few minutes.

[05:32:20] There are a couple, just real quick, there are a couple holiday events coming up in the district of Catoctin. The towns of Hamilton and Percival have their traditional Christmas tree lighting this Friday, December 5th. Farmer John's Market and Bluemont Vineyard both have holiday markets starting this weekend.

[05:32:35] Bluemont Vineyard will have fire pits and Farmer John will have hot chocolate and schmores. I want to thank a lot of the folks who came out, all the folks actually, who came out from Lockett's to express their opinions and views on the bypass.

[05:32:52] I know they could have been somewhere else, as Mr. Saines often says, you could have been somewhere else, but you chose to be with us, and so we thank you for coming. As we can see, there are a variety of opinions, different sticking points, different issues for all of these residents, and I take them all very, very seriously.

[05:33:10] I want to thank the Lockett's Voice for forming. I think they are providing a very important role in this process, different residents with different perspectives in that area. This is obviously more than just a Lockett's transportation issue. This is a whole western region of that portion of Loudoun County issue.

[05:33:29] It impacts other villages like Waterford and the surrounding roads. Our dirt roads are getting significantly more travel because of the congestion that it currently experiences, And there's all kinds of issues that are in the current condition the road is causing. And I'm committed, and I think this board is committed to a very deliberative process, which we have gone through up to this point.

[05:33:50] This process started long before I was on the board back in, I think, 2018, when ultimately the decision was made to widen Route 15 up to Montessor. And then ultimately we made the decision during the last term on this board. was unanimous, I believe, to do a some sort of bypass on the western side. So now we are in the process, as a lot of the folks who are here tonight mentioned, on what the alignment of

that bypass is going to be. And I have been very active in my process and the process that I have taken to meeting with the residents. I'm going to the public meetings. We are looking at all viable options that

[05:34:27] we can possibly to impact as little of the neighborhoods and the residents there as we possibly can to obviously alleviate the danger of this road the congestion that it causes and the day-to-day commuting problems as some folks who are here mentioned so I want to thank everybody for coming out I would encourage all of those who have comments to email those to me in my office And I will answer them the best I can, and we will look forward to proceeding forward on a lot of this as we go forward.

[05:35:05] So thank you, Madam Chair. That is my comments for tonight. Thank you. Mr. Sainz. Thank you, Madam Chair. We'll start with disclosures. My staff spoke with Ben Wells, who's representing the folks at the residence of Douglas Plaza, which we'll be talking about here shortly.

[05:35:26] They spoke a couple of times last week, and yesterday I spoke with Molly Novotny, who's representing Concord for Prodlogis. I believe that's coming in January to us. Or no, sorry, the planning hearing coming up at the public hearing soon on the 10th.

[05:35:45] And that's disclosures, mandatory disclosures. And I'd like to remind folks that the Sterling Volunteer Fire Company is doing Operation Santa 2025 starting on well this weekend december 6th and 7th from 9 to 6 o'clock p.m you can take pictures with uh with santa so please make sure to go check out the sterling volunteer fire company's facebook page or their website to get more detailed information and also my facebook page and then starting on monday the 20 just september 8th the santa will be hitting the the various neighborhoods in Sterling.

[05:36:22] December 8th will be Sugar Land. December 9th will be Sterling North. December 10th and 11th Sterling East and Sterling South. December 12th, One Loudon. December 13th, Countryside. December 14th, Cascades. December 15th, Great Falls. And we'll also, Santa will be visiting the mall at the Dulles Town Center.

[05:36:42] So again, make sure to check out the Sterling Volunteer Fire Company's Facebook page, website for more detailed information in my Facebook page as well. get everybody in the in the holiday spirit and santa will be people you can do letters at the cloud more rec center this friday on december 5th and that's it thank you mr turner thank you madam chair i have no disclosures i was not going to make any comments and events the last week really kind of require that i do so um about a week and a half ago six members of congress

[05:37:18] stood up on national television and said you have an obligation under the uniform code of military justice not to obey an illegal order. That is not an option. If you are a member of the U.S. military wearing a uniform or not wearing a uniform, and you are given an illegal order, you are obligated legally to disobey that order. That is a statement of fact. I find it ironic that a week later, A week later, the president of the United States and or the secretary of defense ordered a U.S. Navy admiral to commit a war crime, murder.

[05:37:55] You do not kill survivors of an attack who are helpless. You do not do it. And we know for a fact that that was done. Now, one of the three things happened. The president ordered it, the secretary of defense ordered it, or the admiral did it of his own accord.

[05:38:14] My bet is the best that this admiral can hope for now is to be forced to retire. The worst is he can be court-martialed, he can be jailed, he can be given a dishonorable discharge which strips him of all

of his military benefits for the rest of his life and his family.

[05:38:31] Those are the repercussions. And the reason I bring this up, we have fathers and mothers all through Loudoun County with sons and daughters wearing this country's uniform who are now being placed in a position where they could be asked to obey, demanded to obey an illegal order.

[05:38:50] One week before Sarah Beckstrom was shot and killed in downtown D.C., a federal judge ruled that that activation of the National Guard and deployment to D.C. on political grounds was an illegal deployment. The National Guard in D.C. right now is engaged in an illegal operation according to a federal judge. Does that make the president of the United States culpable with Sarah Beckstrom's death? I believe it does. The reason I'm mentioning this now is because this affects families in Loudoun County. Thousands and thousands of either active duty military men and women in

[05:39:27] this county or fathers and mothers or sisters and brothers of active duty military members right now are facing a situation whereby their command authority could demand that they commit an illegal act and it puts them in an absolutely untenable position we have to pay attention to this we have to get members of Congress to stand up and do their constitutional duty and stop this because this will not be the first it's probably only the tip of the iceberg and we are putting our military men and women in serious serious trouble thank you thank you mr. say I mean mr. Turner I have no disclosures either.

[05:40:06] I actually am going to, even though I know it's not going to really make a difference, I do want to discuss something that happened this week with our president. In fact, a couple of things. This week our president has called a reporter on his plane, Piggy, a female reporter, when she asked a question, whether it was a valid question or not, and I think it was a valid question, he put his finger in her face said in a very menacing way, quiet piggy. He has also called another reporter asked a woman, asked a question, and he called her stupid, and he said, "Are you stupid? Are you a stupid person?"

[05:40:46] The President of the United States says things that if our kids said it to another child, they would be punished. If our kid had it said to them, we would talk to those parents because it would be inappropriate. When I talk about the coarsening of our interactions, this is actually what I mean.

[05:41:08] I've had presidents who were not in my party who I did not agree with their policies. But this is not a policy issue. There's a difference between not agreeing with someone's policies and believing that person is really a bad example for our nation and our children.

[05:41:26] And yes, everyone's first example should be their parents. Sure, that is true. But I want to meet the person today who says they want their son to grow up and act like President Trump. I want to meet the person that says today, I want my daughter to grow up and marry someone who treats people like President Trump.

[05:41:45] It is deplorable how our president acts. Whether I agree with his policies, don't agree with his policies or not, it is deplorable. And the way he treats women, it's unfathomable, the way he treats women in public spaces.

[05:42:02] And I know my voice, one or two things could happen. Either Loudoun County will be punished, I could be punished in some way, or my voice goes into a black hole. And that's okay if it goes into a black hole, because sometimes you have to say what you have to say no matter what.

[05:42:19] And I was so disturbed by the quiet piggy moment. Of all the things he's done, and he's done a lot, that just took my breath away. And the fact that nobody, nobody said to him, sir, that's not okay.

[05:42:35] That is not appropriate. Everyone just keeps going because we have gotten used to this behavior. And the truth is, human beings can get used to anything incrementally if it happens over time. And we're getting used to an abusive person who is running our country, and that is not good for any of us.

[05:42:55] so let me say what I said earlier let's try not to be him let's try not to be as coarse as him and let's try to keep treat other others with some grace and kindness okay we're gonna go on okay what who's still in the room okay we're going to do the air the airport overlay not airport overlay the airport runway item because we do now have the motion in front of us and so if staff can come to the table so we can get this item done, I, at the beginning of the meeting, made a motion to reconsider this item, so that the motion's already been made, actually to reconsider

[05:43:32] the third motion that we took that night, not all of it, but just the third motion, and so that motion was made, and it should now be, Mr. Turner, did your staff give us the, here it is, here it is, and so I made the motion to reconsider the item, and so So now I'm going to ask Mr. Turner to make the actual motion for the item.

[05:43:56] And then we can have discussion on the motion. Mr. Turner. Thank you, Madam Chair. Just to reiterate and clarify, the board passed recommendations A and B at the last meeting. They denied recommendation C. We voted tonight to reconsider recommendation C.

[05:44:11] And so I'm proposing this motion as related to recommendation C. I move that the Board of Supervisors endorse the design group recommendation C to modify runway transitions, comma, but for only the northwest flight track, comma, for runway 30 area navigation standard instrument departures as provided in attachment one to the November 18th, 2025 business meeting action item, leaving the southwest tracks unchanged.

[05:44:40] Motion to main segment to Supervisor Lecroni. Supervisor, Vice Chair, I would like to make an opening. Thank you, Madam Chair. I hope I don't catch him off guard. Supervisor Luterno called me and said, hey, how would you feel about, and we discussed it, and I thought, yeah, I can live with that.

[05:44:57] The difference between the condensing of the tracks, the northwest tracks and the southwest tracks, and we discussed this, is essentially by condensing the northwest tracks, you're moving a spray of tracks that are basically following area navigation as soon as the wheel's in the well at the end of the runway and turning north over thousands of houses.

[05:45:17] If we accept this motion, what it will do is it will condense those tracks, but it will condense those tracks over the Broad Run Stream Valley and an industrial area for at least a mile and a half before they're allowed to go area nav on course. And so this will substantially reduce the number of houses that are being overflowed.

[05:45:37] Letourneau and I disagree with him on this respectfully but I disagree with me he's convinced that condensing the southwest tracks will cause more over flights of houses than are currently taking place now we can disagree with that but in any event the easy answer was to simply address just the northwest suggestion for the recommendation C which is what this motion does again it will condense the tracks if you look at the remember the white spray the northwest white spray. It was all over the place. This will

condense that down into a steady stream down that broad run stream valley and the industrial area that we already have there

[05:46:13] where we're not going to build any houses. And then allow them to proceed on course. Thank you. Thank you. Mr. Letourneau. Yeah. Thank you, Madam Chair. Yeah. So when I was when we were discussing this at the last meeting, I think I even said in my comments that I really didn't object to the the northwest changes that address the concerns um in Brambleton my concern was about consolidating uh everything on the south side over a couple of neighborhoods we have had some additional feedback from constituents in those neighborhoods who as I suspected do have concerns

[05:46:49] about it I will also say that we did were able to investigate a little further and and only four of the design group members actually voted on this recommendation a lot of them were missing The representative for this particular area was not from one of those affected neighborhoods and also did not attend the meeting.

[05:47:07] So this was really something that I think caught them by surprise. So I did reach out to Mr. Turner to offer that my intention was not to completely stop the entire process if there was a solution there was consensus on, but rather to express that I believe there is not consensus on the other part of this motion.

[05:47:30] So I am comfortable with this motion. I will support it. Do I think this process had some less than ideal circumstances from kind of the beginning? Yes, we don't need to relitigate all of that.

[05:47:45] But even I will say for the record, I haven't been too thrilled with some of the behavior from the consultant at the board meeting last time in terms of being somewhat argumentative with board members. And also I think violating some protocols in that period and also misrepresenting my communications with staff and others and members of my community to other members of the community.

[05:48:05] So I will put that on the record, but I'm not gonna let that get in the way of what is something I think that does have consensus. And so I'll support this item. - Great, Mr. Crony. - Thank you, Chair Randall. So I think this is a compromise.

[05:48:21] It will provide relief to thousands of residents. And so I'm happy to support this because it will provide relief. And as was mentioned, this is the northern departure procedure that's in the recommendation would be over non-residential areas.

[05:48:45] So it would be over the broad run floodplain and industrial. And the group did reach consensus. You know, I know that all participants were reached out to and given a chance to participate in the design group. And these are just recommendations.

[05:49:05] They're proposals. So it will go to the FAA. Proposal 1 and 2 can be done immediately. And Proposal 3, I guess it's called C now, will have to go to the FAA. And it could take four years to study it.

[05:49:21] but I'm very happy that we're forwarding at least the northern route to the FAA and I want to thank staff and the consultants and all the residents who participated in the design group for their hard work. This was a long process and it did have significant public input so I appreciate everybody's effort and I look forward to getting at least some of the recommendations implemented as soon as possible thank you miss brixman thank you madam chair um i i still have concerns about

[05:49:59] this so i probably am not going to be supporting for the same reasons i cited at the last meeting thank you thank you um i will i will the i i will associate myself with some of mr turner's i mean mr latourneau's comments on the consultant and some of the things i thought were beyond advice and have moved to advocacy and i don't think that's the role of a consultant however i will say that everyone including our staff said the same thing that nobody who is not experiencing no one will experience more airport noise everyone will experience either the same or more or more than that less airport nor

[05:50:36] airport airplane noise than they're experiencing right now so I happy I was happy to support it last time based on that I'm happy to support this new revised motion as well mr. Turner would you like a closing no close all right Mr. Turner made the motion. Mr. Crony seconds the motion. All of the people who say aye. Aye. Opposed? Opposed? Nay.

[05:51:00] That motion will pass 8 to 1. Thank you. I can't make this next motion because, Mr. Crony, this is not what we discussed, and so I can't do this. We have to have this discussion before I do this, because that's not what we discussed.

[05:51:20] can't do that so let's go on and do the residents at Dulles Plaza item while we're doing that mr. Turner retake the meeting while we do the residents of Dulles Plaza items the county can I see you in the back for just a second the residents of Dulles Plaza item is item number five and I will watch it from the back if you take the meeting for just a second okay if staff will come to the table I appreciate that board members I do not have any updates to the item I am standing in for Wadow. Oh, then, you know, I can do the item. If he has no updates, I can do the

[05:51:55] item. I'm sorry, Mr. Turner. There are no updates to the item, so there's nothing else to add. This is an item in Sterling. Mr. Sains, that you have questions? No, ma'am. I'm ready to make a motion if I'm allowed. You have no questions. You're ready to make a motion. Okay, Mr. Sains, would you like to make a motion? Thank you, Madam Chair. Yes, I move that the Board of Supervisors approve leji-2023-0029 residents at dulles plaza zmap-2022-0002 subject to the proffer statement dated october 29th excuse me 2025 and based on the planning commission findings for approval provided as attachments one and five to the december 2nd 2025 board of supervisors

[05:52:35] business act meeting action item wonderful um motion is made i will second the motion discussion on the motion Mr. Sains. Thank you Madam Chair. This proposal represents a rare opportunity to bring 100% affordable housing to a prime location in the Sterling District near employment centers, transit, and community services. The applicant Fairfield residential brings strong credentials and is backed by a national affordable housing fund. They're planned for 325 units with 285 units at an average affordability of 60% will make a real difference for working families and residents who otherwise might be

[05:53:14] priced out of Loudoun County. Thank you, Ms. Umstad. Thank you, Madam Chair. This was this was a more complicated decision for me than I anticipated. In the end I decided I cannot support it however it does add to the annual operational budget for the schools over three million dollars every year and almost five million dollars in required capital

[05:53:49] structures to support the the students that will be likely generated by this but normally that would be my major concern and it is a major concern but i have other concerns i supported the revana project which was larger and would have more of an impact on the schools because it was within easy

[05:54:19] walking distance of a metro station this is not and the developer was very kind to go over all of with me but there is no safe way no safe way for anybody to walk from this project to the metro station furthermore the fact that the developer is reliant on waterside being built out to provide the amenities for these proposed

[05:54:53] residents rather than providing those amenities on site is problematic because I believe construction has not yet started on Waterside. And, you know, we don't know with the shrinking of the federal workforce what's going to happen with Waterside.

[05:55:14] I believe Mr. Kuhn has bought it and is proposing more residential perhaps, which would then lessen the amenities that this project claims to rely on to service the people who live there.

[05:55:30] I do appreciate that this developer has, I believe, not asked for a reduction in parking on the project, but I think especially if we're going 100% affordable, we need to know that people can either bike or walk safely to Metro, and that is not the case.

[05:55:52] So despite the fact that the developer did a very nice job was very candid. I cannot support it. Thank you. Mr. Crony? Thank you, Chair Randall. I just want to thank the applicant for revising the proffers to state that scenario one will become the selected development scenario with the awarding of funding by the county and Virginia housing.

[05:56:20] So that was my concern, and I want to just thank you for putting that in the proffer statement and being responsive and I'm happy to support the application. Thank you. What school district is this in? High school district? Do we know? Parkview? It'll be Parkview right now until... Do we have room in Parkview School? We're building a brand new facility. Building a brand new facility. Is it anywhere near capacity? Not right now. It won't be when it's open. Madam Chair? Oh I'm sorry Ms.

[05:56:53] Bricksman. I'm sorry I can't see you. I forgot. Yes Ms. Bricksman. Stop it. Oh right because they have um thank you i i am 100 behind this i appreciate the applicants work on this and actually supervisor uh sane's work on this i know that he worked really hard on this so happy to support thank you mr kirschner thank you madam chair i'm glad you saw me over here i know it's hard um so i'm going to support this and for two reasons one i was a little concerned about the cash in lieu, I think that's the one thing that staff was having issues with.

[05:57:30] My staff met with the applicant today. I think I'm satisfied with their explanation as to why they came in at a lower number than staff was recommending. I hope they're right and I hope because I am going to follow up on that and to see if what they're suggesting in terms of the true cost is going to be what it is because I think that's going to be important for future applications like that.

[05:57:52] But the second reason is, this is obviously in the Sterling District. Supervisor Sainz is the one that represents these constituents. He feels like this is a needed development there and is proper in its place.

[05:58:08] I trust him with that. He's been elected to represent the folks there. Obviously if the traffic and the density of this becomes a problem, that would be with him and the Sterling constituents to deal with.

[05:58:23] So for those reasons, I'm going to support it. I do continue to have concerns with the high level of density that a project like this causes. But I know that this board's policy statements are that we need to

supply this affordable housing throughout the county. And this is obviously a big chunk of that for our goals as we have set as policy.

[05:58:43] So thank you, Madam Chair. Thank you. I had said that I was concerned that the General Assembly will start dropping legislation that usurps the power of local governments so that they can have more housing.

[05:58:59] Well, my concern has sadly been verified. The first bill has already dropped, and it doesn't specify where it's at. When I've talked to General Assembly members, their rationale and their reason is that local bodies come up with all kinds of reasons not to support housing and they need housing and if we won't, they will.

[05:59:22] And the bill's already dropped for that. I have been told with pretty good detail that it's very possibly going to pass. I have led an effort and I'm leading an effort in VACO.

[05:59:39] I talked to, as soon as that bill dropped, I called the CEO of EcoDean, and I had the discussion with him, and we are putting together a group of local elected officials to go down and talk to the General Assembly members about what we're already doing in some locations to take care of getting especially attainable housing on the ground, what we've done in Fairfax, what we've done in Loudon.

[06:00:04] When I had that discussion with the initial person, he said, well, but Loudon can do that because you have a great staff and you have money. Other places can't, so we have to force them. And I said, but you cannot force homes where we don't have infrastructure. And their response was, kind of, we can do anything we want to do.

[06:00:21] If we have an attainable housing project where it can go, where you do have infrastructure, it is a good project overall, we are going to put ourselves in a place if we do not start approving attainable housing. Well, the General Assembly is going to come in and say, put it wherever, And there's not going to be any roads, any water, any schools, anything.

[06:00:45] And that first bill that's out can do just that. And I think, you know, if we're lucky, maybe we can talk to some senators who've had local elected experience and know the importance of local bodies. But I am telling you, and they've been warning us for three, four years now that it was coming, We are going to lose or lose some of our local land use and zoning control because of finding reasons to say no to attainable homes.

[06:01:17] And we're going to start this battle, we started this battle right now, right now. So we can look for reasons to say no, and they're not looking at Western Loudoun County in those places. We can look for reasons to say no, and it's going to be hoisted upon us.

[06:01:36] So we are kind of in charge of our own fate, maybe, and so we better start figuring out ways to work with developers, especially when the good developers who are bringing valid projects who want to work with us are things that are going to be done to us, not with us.

[06:01:54] Mr. Sainz, would you like a closing? Madam Chair. Yes. Supervisor Sainz, if I could address the motion, which should reference November 17th, which is a proper statement in the packet. I apologize about the Scrivener's error. You had read October. should be November 17th. You had said October 29th should be November 17th.

[06:02:15] That's what it says in the packet also. Correct, that was incorrect. The proper statements, the proper statement attached to the report is correct, dated November 17th. This is the motion needs to correct. Okay, so strike out October 29th and say November 17th. Yes sir. Okay. Sorry that happened. Alright, thank you for the correction. Everybody get that, and I seconded that motion so I'm Thank you.

[06:02:35] All right. Yeah. Well, I'll just continue in my closing. There are plenty of reasons to say yes to this application. As we mentioned earlier, this is 100% attainable, affordable housing. We know we need it. We've talked about this at length. We talked about it earlier today in our meeting regarding the informational item on tiny homes.

[06:02:55] This will be one building with close to 285, well, almost 325 units, 325 to 285 units of affordable units, 60% of AMI. That is definitely needed in Loudoun County, definitely needed in Sterling.

[06:03:14] This location is close to transit, it's close to Route 28. The applicant has proffered a bus shelter, so staff will work with them, obviously, to get that up and running. We can redirect our Loudoun Transit to go and pick folks up at this location.

[06:03:32] They can go down the street and they can get to the Innovation Station or even cross over the 28 on 606 and get to Loudoun Gateway to take folks to two metro locations. So this is a good location.

[06:03:50] We have the infrastructure here. This is also just one piece of a very complex puzzle. that will it's going to bring some more housing in a transit district that again our policies say we want to have more density in our transit area. We have another application that's coming to us in the new year I believe that's going to answer a lot of questions regarding infrastructure and transportation that's going to have a little bit more density and have a lot of different options to complement this. Then we know we have Irvana. Yes we have Waterside. There's some things to work out with Waterside.

[06:04:27] Mr. Kuhn actually has not 100% bought the property. There's still talks, and we'll continue to have talks with Mr. Kuhn and the Waterside folks to figure that out. But anyway, this is a good application overall when you do the plus and minuses.

[06:04:43] This is a good application to vote for. So I hope my colleagues can support this. It's going to be part of our attainable housing loan program, as well as they're going to go and get funding you know from the Virginia Housing Development Authority have all good good faith that this applicant will do just that because these folks know what they're doing they've done it nationwide and they're gladly came to Loudoun County to do do do what they've been doing for years nationwide here so why not and hopefully they'll bring some more projects to our doorstep so again thank you for consideration of this application and your support on this motion

[06:05:20] thank you sorry mr sands with the motion i second the motion i don't feel to say aye aye opposed that motion will pass 8-1 um supervisors let's do um item 11 and for this one mr turner i am going to hand you this item for just a second while i talk to mr crony item 11 is the amendment to the codified ordinance for um elderly or

[06:05:48] a duly permanently disabled. Mr. Crony, can you see me please? Good evening. Good evening, Mr. Chair.

[06:06:03] How are you? I'm great. Mr. Wirtz, do you have anything you'd like to say? You've kind of seen the email trail back and forth between us. Yes, I'll summarize the situation. Okay. This is an ordinance

amendment that was brought forward as a result of your initiative. In March, the board heard an item and supported changes to the local ordinance that would provide for an automatic adjustment to income and net worth criteria for the tax relief program based on the changes in CPI

[06:06:40] in September. There was a public hearing last month, and then recently there were questions relative to what would be the cost of these changes, and there was some email traffic today regarding changing the language in the ordinance to provide for not adjusting on

[06:07:14] an annual basis automatically based on CPI and not reviewing on a four-year schedule the criteria, but changing that. So that's where we are right now.

[06:07:44] I think the board as a whole needs to decide, do you want to adjust the criteria for income and net worth based on CPI on an annual basis, and should it be automatic, and do you want to review the criteria on a two-year basis or a four-year basis? I think those are the outstanding issues that I think the board needs to answer.

[06:07:59] Thank you very much. Let me clarify, because this thrash kind of went out over the last couple of days. So I've got a motion by Supervisor Sainz in front of me. As I read this motion, and this was my intent, I just want to provide these clarifying statements, and then we'll open it for questions.

[06:08:21] Supervisor Sainz, I don't want to put words in your mouth, so by all means. But Supervisor Sainz reached out to me, and he said, would you be okay, this is verbally with me, would you be okay if I asked for a provision to review the CPI adjustments and the qualifying income and net worth provisions every two years? And I said yes. My intent in saying yes was to adopt the main motion, which is change the ordinance exactly the way you propose to change the ordinance, which is an automatic CPI adjustment every year. One thing done. Second,

[06:09:00] come back to the board every two years and review what the CPI has, how it has changed those rates over the prior two years and what that impact is on the budget. But the intent, my intent was never to not adopt the change to the ordinance and not do an automatic CPI adjustment every year. That is still my intent. Supervisor Sainz has proposed this motion here, which he can read here in a second and as I read this motion this motion's words match my intent adopt the change in the ordinance and every two years come back to us and tell us what effect that has had on the

[06:09:39] income limits and the net worth limits so with that that's my intent that's what what what my intent was and we will get to supervisor Sainz's motion and you can describe if you want if I can you can do it right now sure I think we should actually ask Mr. Worts and his staff is that how you interpreted Mr. Turner's intentions. Well, I think we felt it was conflicting. The second paragraph in Supervisor Sainz's motion appeared to conflict with the way the ordinance reads right

[06:10:12] now is to review it every four years. So if you adopt the first section and the way that it's drafted, it still includes the four years and then the second paragraph says two years. So your conflict was how many years versus versus what we have to reassess who still get who still gets the benefit right okay can I ask a clarifying question uh yes and then it's the same so that's what that's what I thought yeah if that's your interpretation that's not my intent I absolutely agree so you're saying the first paragraph changes the ordinance which means it's an automatic change

[06:10:50] every year and the second paragraph as you read it says no we're going to change it every two years The board's going to change it every two years, which is in direct conflict with the first paragraph.

No, I think there's a misunderstanding. One is when we're going to review it, and the other is when it's going to be changed.

[06:11:08] Well, maybe the question then is what's your definition of review? Because to me that means just look at it and tell us what it is. Absolutely. Review means look at it. It doesn't mean change it. It doesn't mean change it. Automatic adjustment. Okay. So the issue is the two versus four years, not anything. That's really the only discrepancy.

[06:11:24] It sounds like it. Okay. Mr. Sainz. everyone's on the same page yeah yes my intent is to because i think four years was too long for me and also at least review it i think two years is a good medium and have it be automatic that's fine but at least we're reviewing the information knowing the numbers and then it can do what it needs to do but you're saying and because i talked to mr hemstreet earlier and i thought the the first part of the motion was was fine so if we need do we need to change that any language or

[06:12:00] I want to get clarity on that if you're saying the top motion is not correct. Right, it's the second part I think that we've got an issue with relative to the way that the ordinance was drafted in the item, it already includes the four-year period.

[06:12:19] So we just need to change that to a two-year review to come to the board every two years to review the information. And with respect, I think if that's the only change, I think this should be Mr. Turner's motion. Oh, that's fine. That's fine. Mr. Turner can make the motion. That is perfectly fine with me.

[06:12:38] I just wanted to get the medium, the meat in the middle, and have the compromise. Mr. Turner, would you like to make... Well, let me just clarify one last time. So I read this motion to mean that the first paragraph is the base motion that you proposed, which is an automatic CPI adjustment every year.

[06:13:01] That's what's in the drafted ordinance. And the second paragraph says that the ordinance currently calls for a four-year review. Instead, if we adopt the second paragraph, we're asking for a two-year review. Correct. But the automatic CPI adjustment every year still stands. Yes.

[06:13:17] Would you please move the motion? I'll make the motion. I move that the Board of Supervisors approve the amendments to Chapter 872 of the Codified Ordinance of Loudoun County Real Estate Tax Relief for Elderly or Totally and Permanently disabled provided as attachment one to the december 2nd 2025 board of supervisors business meeting action item i further move that the board of supervisors review the cpi adjustments and the qualifying income and net worth provisions of this chapter beginning in calendar year 2027 and every two years after second do we need to have discussion on the motion no no clarification

[06:13:55] and make amendments to the ordinance that reflect that two-year review period as well, or rescind the four-year review because the language is already in the ordinance that way. Okay.

[06:14:10] All right. So I'm more than happy to come back every two years, four years, whatever. I'll accept that as a friendly. Let me see if I can make the friendly second motion. I'll make that motion. Are you serious? Can he make a motion? No. I was just asking.

[06:14:28] I saw an easy way out, and I thought I'd try it. I think we can say, you know, we will accept, the staff will accept the motion as...

[06:14:45] I think I've got it. So tell me if this works, Commissioner Wurz. I further move to amend the ordinance such that the Board of Supervisors will review the CPI adjustments and the qualifying income and net worth provisions of this chapter beginning in calendar year 2027 and every two years thereafter.

[06:15:07] I think that's fine. Okay. Thank you. Discussion on the motion. So you said you're good. Mr. The Turner. All right. So I think, yeah, you're right, Mike. My issue, as you know, was with the automatic. So to my colleagues, I don't think that the compromise actually, I mean, this motion only got three votes in the last meeting.

[06:15:30] It was like 3-2-3 or something. The concern that I had with it was that it was an automatic increase. I would be, to me, the compromise would be not to make it automatic, but that we review it every two years and consider it at that time, and that way we would know what the actual economic impact was over the previous two years.

[06:15:50] So if I thought the chair would allow me to make an amendment to that motion, I might do it, but you probably wouldn't. Am I right in that? I would not, and I was a second to the motion. So if for some reason this motion fails, I guess I can try. But anyway, my concern is we are now committing the county regardless to an automatic increase.

[06:16:08] And I believe the only way for us to not have that is to amend the code to take it out. Correct? Amend the ordinance. Correct. So we can't just vote, no, we're not going to do it. We have to go through an actual amendment ordinance process to not do it.

[06:16:24] So if we find ourselves in a recession in two years or four years, we're going to have to amend the ordinance to not allow greater tax relief and reduce revenue. Now, it was referred to as this being your proposal. It was not actually your proposal, right? You were directed to, by the board, write language that did what Mr. Turner wanted.

[06:16:43] That's correct. It's not your recommendation. You're not making one, correct? Okay. Just wanted to clarify that. All right. So you all know where I stand. I don't think the automatic is a good idea for any situation that we're in. I wouldn't say that for our budget either. Automatic tax increase, no, bad. So, you know, I would prefer to do this two years at a time.

[06:17:01] Let's look at it. If it makes sense, if we can afford it, fine. Like this time, I would have supported it. But, you know, it's the automatic part that's problematic. So I will still not support the motion, I suppose. Okay. Mr. Crony? Thank you, Chair Randall, and thank you, Mr. Warts.

[06:17:18] So what is the foregone revenue for real property tax relief for the elderly and disabled? Well, 9.9 is what I saw. Is that correct? I saw that in the item. Based on the 13 years.

[06:17:36] 9.9? I think so. Well, let's see what he says. But that's 13 years. 9.9? Yeah, the FY25 budget includes 9.9 million. Okay, do you see that increasing a lot, the foregone revenue, if we do this every year?

[06:17:52] We have no way to gauge that, and that's part of the discussion that we had when this last came to the board. I know Supervisor Glass had a concern with that. Okay. It would just be a shot in the dark. And the CPI, what do you anticipate?

[06:18:08] How much do you anticipate that going up? Because right now it's, what is it now, 13.4? Over the next year? 13.4, yeah. No, I do not know. I would be projecting what gas prices will be a year from now.

[06:18:24] Okay. Well, I'm fine changing it. I do think we should provide relief. And I can't see it going up that much, more than 9.9. And we've been doing that for a while, right, since 21? What's your question, Supervisor?

[06:18:40] 2021, we've been giving that 13.4%. No, that's the calculation of the change in CPI during the period that we're reviewing. Right, but it's been about 9.9 that we've been, as far as the relief. 9.9 million for this 25 fiscal year.

[06:18:59] Okay. Correct. Okay. Okay, thank you. Ms. Bricksman? Ms. Bricksman, did you want to speak? i i don't have any questions thank you thank you um miss glass thank you madam chair i don't have any questions but i i'm a little concerned um about our ability not to to say at a certain time

[06:19:26] if we are you know if we're in not as good of an economic um upturn that you know if there's a downturn that that we would have to go through this process to change things instead of that's what i was thinking that that every two years would be an opportunity if we needed to to say hey we're not going to do this at this time so you're saying that there is a another process

[06:20:05] that we would have to go through if there is if that happens we have to adjust the yeah let's adjust the ordinance i'm sorry we have to adjust we have to change the ordinance yes so then is that the question yeah yes basically then we'd have to do something like this again just for that one time if how would that happen let's say that something occurs and we're not able to

[06:20:39] make that we'd have to change if we if we were to change this in the future we would have no choice we'd have to change the ordinance we can change the ordinance as many times we want to but it would have to be done. You can't, you can't talk about, you're not, you're not, yeah, yeah, okay.

[06:21:07] Was that your question? Okay, okay. Mr. Kirshner? Thank you, Madam Chair. I'm very much in favor of this. I will tell you, when was the last time we made this adjustment? How many years ago? Do we know? It's been a number of years, if that. It's been a number of years, yes. And that's kind of one of the problems, and I think why we need to go to an automatic adjustment. That's why we're making such a big adjustment at this point, because it's been a number of years since we've made this adjustment i will tell you i've heard from many different constituents who would get it one year and the next year they wouldn't and you know and and we're not talking about you know your normal household we're talking about the elderly and the permanently disabled so if we can't find it

[06:21:47] in our i don't want to say hearts i mean this is the christmas season budget budget to help those who are the most needy among us quite frankly who are on a significantly low income to even meet this threshold to begin with to give them this kind of relief and we can't do that automatically especially when we are going to visit it every two years and we could change it if we wanted to quite frankly you know and I and I understand the fiscal the being fiscal hawks and that sort of thing but guys this is the elderly and the permanently disabled with very low

[06:22:25] incomes I think we need to really consider making this a permanent thing with a regular adjustment, which is what we hadn't done and we hadn't reviewed it on a regular basis and why we're making this big jump at this time. But I would just encourage everybody to support this motion. It's a good motion.

[06:22:40] It's the right thing to do for our residents and our citizens. Thanks. Ms. Umstead. Thank you, Madam Chair. I mean, I have had quite a few elderly residents in Leesburg who but for this program would

not have been able to afford to stay in their homes.

[06:23:03] These are people who retired from the U.S. Postal Service or teachers or retired police officers. And this is the program that allowed them to stay in the family home. So I appreciate the work that other board members have put into this, and I will be supporting it.

[06:23:26] Thank you. Just out of curiosity, what do we consider elderly? 65 years of age and older, and the last change was made in 2021. Okay, 65, 65. I only, yeah, I only, yeah, okay. So, I think we have more than one, actually.

[06:23:45] I only asked because the date I was reverse carded for the first time. So, I was. It was like she, it was a senior discount, and I said, well, I'm over 55, and she said, prove it. And I'm like, this is really weird. Prove I'm older, right? And then I thought, am I going to save some money? Cool, cool. Here's my card. So I proved I was, you know, it was a really weird moment to prove you're old, right, to prove the opposite direction.

[06:24:11] In my opinion, to the question Mr. Letourneau asked, what if we have a recession? If we have a recession, it's when these people need this break the most. If we have a downturn, it's when they need it the most. Our economy getting bad or something happening like a recession again would not be the time I think, well, let's go to the elderly and permanently disabled to make up that money.

[06:24:32] It would be just the opposite. And so I will support this. I will support it especially because we all know what the economy is. I will support it especially because we could have a downturn one day, And we need to make sure that our elderly and permanently disabled, who are some of our most vulnerable people, are taken care of.

[06:24:52] And so it's not whether we will, it's assuming we will have a downturn, let's make sure this is in place and safe. I, as long as I'm here, would never vote to change this ordinance back the other way. I will support this as it is.

[06:25:10] Second closing. Thank you, Madam Chair. I appreciate Supervisor Alverno's concern about locking in added expenses year over year. I understand that concept theoretically. The context is different, however. You're looking at a population of elderly disabled who are probably on fixed incomes, who are probably living off their net worth, which is decreasing every year.

[06:25:34] And whether we acknowledge it or not, their purchasing power in the way they live decreases exactly by the CPI every year, over which they have no control. So all this does is said we have decided that the elderly and disabled deserve a tax relief based on these criteria of their current quality of life.

[06:25:59] and through circumstances completely out of their control, that quality of life has decreased functionally by exactly the CPI year over year. And so what this does is acknowledge that through no fault of their own, they now have 3.5, 4.2 percent less purchasing power than they did last year, and yet we made a conscious decision to say here is the threshold for this group of people that we want to give this tax benefit to. And that threshold hasn't changed qualitatively. It's simply changed by the amount of CPI.

[06:26:31] I think there's a prima facie case to tie this program to the CPI and ease the burden of us having to go through this periodic thrash of do we raise it this year or don't we and going multiple years and then having to raise it in a big lump sum.

[06:26:47] So I think this makes perfect sense. I appreciate my colleagues' support. Thank you. All right. Mr. Turner made the motion and I second the motion. All the people who say aye. Aye. Any opposed? Aye. That motion will pass. eight to one. Thank you very much. Thank you very much. Good evening. Good luck with the seal item. All right. We are going to do the flag item now, which is actually a BMI, my BMI. If everyone can go to that item, I would appreciate it. If I can go to that item, I'd

[06:27:21] appreciate it um all right so this is a thing our county flag is is unique and beautiful and i understand everything on it because i've done a lot of studying of our county flag in fact i studied our county flag in great detail in 2015 when i was running for office expecting that i'd be asked about it in a debate no one behold no one asked me one thing about my county flag in that debate nor has anyone ever asked me about it before but i think it's a really cool county flag and i can

[06:27:56] explain every parts of it. I think the one drawback to the county flag is if you don't know whose flag you're looking at, you have no idea whose flag you're looking at. So a couple things have happened that made me say I want to add our county seal to our county flag. And for any media that's here, I'm happy to send you the picture so you can see the difference with the seal added and not added. Nothing else on the flag would change, but I would add the county seal. The first thing that happened is when we go to the Virginia Association of Counties, all the flags are up there, as is in the picture on this. And all the flags, most of them are just their

[06:28:33] county seal on a blank background, which I think that looks terrible. But they're all up there, and you know whose flag it is. But with ours, you don't. The second thing is we do have sister cities. One of our sister cities put in their case in their country All of the county flags, all of the flags from their sister cities, ours was up there.

[06:28:57] They had no idea whose flag this sister city was. And I think that was when we were in Sochi Japan for the Olympics. Our flag's in there, and it did not identify. And we did that for the purpose of we were at the Olympics and everyone would be attracted to Lauderdale, knowing whose flag it was.

[06:29:14] And then the third thing is a couple of months ago, I was watching television, and there's a show on, And the commercial comes on, and it's about Virginia's wineries and Virginia's wine areas. And it said, and these areas have a great wine culture.

[06:29:31] And all it put up was the flags of the three areas. So they put up Charlottesville's flag, another flag, and ours. But they didn't say the name of the county. So you're watching it, and you have no idea what county that is. So I know that there are some very noticeable flags that do not have words on them or seals.

[06:29:50] Obviously, the most noticeable is the flag of the United States of America. Another very noticeable and very cool flag is the flag of Maryland. But almost every state has their name or seal on their flag because you're not going to know. And every single county in Virginia has their name or seal on the flag.

[06:30:10] I understand that vexologists, who are people who do flags, I have a vexologist in my office, do not think you should ever write on a flag. I get that. But I do believe I want people to know who we are, both for commercial reasons, for marketing reasons, and for obvious reasons.

[06:30:28] And our flag, as unique as it is with the milk droplets, with the wheat, and all the things on our flags right now, you don't know whose flag it is. And that, to me, is not logical. So I want to add the county seal to the county flag, and we'll send you all pictures so you can see the difference.

[06:30:46] Discussion. I'll make a motion. I move the 4 Supervisors direct staff to determine the time frame and cost associated with adding the Loudoun County seal to the official Loudoun County flag for the purpose of making the flag more easily identifiable for official uses and return to the Board of Future Business meeting with recommendations.

[06:31:06] That should say with information versus with recommendations. I'm sorry. I further move the board of supervisors' direct staff to seek the opinion of the Loudoun County Heritage Commission about the addition of the county seal to the official county flag.

[06:31:24] This is not the right motion. My God loves you guys, my staff. This is not. This should actually say return to a public hearing. This should actually say, I move the Board of Supervisors direct staff to determine the time frame and cost for adding the county seal to the official county flag for the purpose of making the flag more identifiable for office uses and return to a public hearing of the Board of Supervisors with information.

[06:32:01] I want this to come to a public hearing. I want the community to be able to speak on this. I further moved the Board of Supervisors and direct staff to seek the opinion of the Loudoun County Heritage Commission about the addition of the Loudoun County seal to the official flag. So that should have been the motion. I am sorry. The motion is incorrect in front of you, but that should be the motion.

[06:32:23] And what? You're making the second part. I did. I did. I did. I did. Motion has been made and seconded by Supervisor Turner. Thank you. So I gave my reasons why, and again, you can see that I put the picture in your package, and the picture on the bottom is the picture of the vacant wall of all the flags on it.

[06:32:50] Now, again, I don't want their flag to look like that because those flags are boring, but you can see that every county is identifiable. If you look at page three of the item, Mr. Kirsten, you can't see page three of the item. Oh, I see. If you look at page three of the item. I want you to see that every county is identifiable, and I have been asked many, many times, why isn't Loudoun County's flag here?

[06:33:12] And I have to say we are here, and I think we should have an identifiable flag, so that's why. All right, discussion on the motion, Mr. Sainz. Thank you, Madam Chair, and I'm assuming your staff is going to do this when they come back, of course as you noted we have yes milk droplets we have uh images to depict wheat um and if you count the the wheat where is it there's nine on each one nine on each pane which is four panes so

[06:33:46] that's 36 wheat um there's 52 milk drops all the way around if you go around and count them count them all up 11 on two sides 15 on two sides um yes you yeah in your image you did add in the seal but to me it's a little small so if we're going to do it to me let's do it right and make the seal a little bit bigger so then when it's on there you don't have to go literally right on top of it or grab your magnifying glass or do like I just did now pull out your glasses be like what is that on there oh it says Loudoun County okay so if we're going to do it like I said let's do it right make make the seal a little bit bigger but my question is with staff doing their

[06:34:24] homework, do the number of wheat on each of those four panes, which is nine, does that have any significance? I did not. We did, we have been studying this and going back and forth and doing all the research for about seven months now, and we could not find any significance to the number of wheat bales on the flag. Obviously, there's a significance to the wheat, but not to the number of wheat bales so if

we can put it on there make it a little bit larger and we can cover up a couple of the wheat since if there's no significance and then the other thing also is as we all know this

[06:35:02] was uh the seal and everything was approved by the loudon london coat of arms school or whatever have you so do we i'm assuming they're going to do research to see do we have to get approval to make these changes so it wasn't approved it was sanctioned by them and so it's not not it's still sanctioned by them. So the seal was sanctioned. The seal doesn't change because it goes on the flag. It's still sanctioned. So basically they said this is the right seal for going back historically. This is the right seal. So they didn't approve the flag. They sanctioned the seal. The seal doesn't change. Nothing changes. I mean, it's in addition

[06:35:42] to not a change of. So the seal is sanctioned no matter what. Yeah, right, but those would be my concerns that I thought of, and I'm glad that this will, you added the change to do a public hearing so we can at least hear from...

[06:35:58] Sure, that should have been in the motion. I'm sorry, that wasn't in the motion. From folks. That was supposed to be in the motion. Thank you. I don't know how that did not get in the motion correctly, but I apologize for that. Ms. Glass? Thank you, Madam Chair, and my question is similar to Supervisor Sainz.

[06:36:14] when you had the wheat stalks and then when when the seal had was in the center it had covered one section one stalk on one side and one stalk on the opposite side so i wasn't sure if that mattered that was eight eight nine and nine we can the i the number we could not find anywhere And we've been studying this for some time now, where the number of wheat bales was significant as to why that number was there.

[06:36:52] We found the reason for all the colors. We found the reason, obviously, we were dairy, and then we found the reason for the wheat. But we could not find a significant reason for the number of milk droplets or the number of wheat. Now, that's why I want the Heritage Commission to look at it, because maybe they can find something that I didn't find, because that's what they do.

[06:37:09] and we can have that discussion if they find something but we we've done some i had i had my staff looking at this for i mean like really really researching it we couldn't find anything okay thank you mr letourneau yeah i'm gonna get yelled at again um first of all the question though are we bringing a proposal to the public hearing or just the general topic did you know that's because the motion is not correct and so i didn't read it very eloquently i want the i want the I want the public to speak on the general topic okay and are we instructing somebody to

[06:37:47] actually make or come up with proposals for it or no no no no no no I'm not doing that I'm not asking for people because I've heard that a lot like let's change all the milk droplets no no but I mean wine droplets so no is this the actual flag proposal that we're going with unless it's just a little larger unless the sales a little larger yeah I mean I don't want to change this at all but if I did this is not going to be visible like you still won't see Loudoun County Virginia that's what Mr. Sainz just said make it larger yeah but then you ruin the flag so anyway look I I appreciate the sentiment here but I mean to me this is just a solution in search of a

[06:38:26] problem I really am not concerned that people at Vaco don't know which flag is ours I guess it's the one that doesn't have the name on it I mean you think about all every school has multiple flags the

county buildings all the yeah the schools have flags loud and flags so every one of them would have to be replaced and eventually i'm sorry eventually they probably would you're right but nevertheless like of all the things that i want to spend time and effort on it's not this like we've got plenty of other stuff to do so i'm not i don't see a reason to change it i like the flag it's unique it's it's bright it's colorful it's something that's you know uniquely loud and i

[06:39:06] want to be like all these other places and also I don't think the loud if we're gonna like do something and you really want to say loud and I should probably just say loud at the top or something rather than the seal because it's gonna be so small so okay all right thank you mr. Carson thank you madam chair I'm gonna support the motion for a couple reasons not because I'm a huge fan of it excuse me but and because every bone in my body the vexology in me grates against putting the seal on a flag, which violates all the rules of vexelgraphy, I believe it is.

[06:39:42] I know. Yes, I have one of those in my office. And I don't even know if I'll support it when it comes back. However, with that said, staff doesn't clearly have enough to do. They need to research this. And on top of that, I think that the fact that we're having the Heritage Commission review it, I think I would really like to hear what their opinion is on it.

[06:40:02] And if they come back and they say, listen, this violates the principles of flags design, we take away too many milk drops or wheat, what are we calling them, wheat bales, and that has this significance, then that would obviously be maybe a no starter for us.

[06:40:22] I'm just a little concerned this is going to be a little too busy, but I appreciate what the chair is trying to do, and I think it's worth looking at. So that's where I stand. Thank you. Mr. Turner? Thank you, Madam Chair. I'm inclined to be in the opposite direction. I can't believe. Madam Chair. I'm sorry, Ms. Brickspin. Oh, God.

[06:40:44] Ms. Brickspin. Sorry to interrupt you. So I'm generally supportive, but in addition to the Heritage Commission, I really would like to see like professional vexologists bring us a couple different concepts here.

[06:41:06] we i'm not a graphic designer i'm not a vexologist i don't think anybody on the board is um and so i think it would behoove us to have i you know hey this is the framework we think we want the seal on it to identify loud and there may be some better ideas out there or a better way to design it than than what we're doing here i'm generally supportive um but i that's what i would like to see uh and i don't know if you would accept a friendly to have vexologists do that for us before the public hearing um i will offer that as a friendly i won't and i'll and i'll tell

[06:41:45] you tell you why when i close okay um my other question was when um when was this flag created in its current form 1968 this was 1968 okay okay all right yeah i mean believe it or not when i when i worked for the international city county management association i wrote an entire article on um jurisdictions and states changing their flags and that there was a ted talk about it and all this stuff so um i think that we would be well advised to get some other professional opinions

[06:42:23] i like the i like the heritage commission um looking at it but again i that this is that's what i would prefer before i would be able to make a decision thank you okay thank you mr turner thank you madam chair if the definition of a vexologist is somebody who vexes me there are millions of vexologists in the world today millions um even some in this room yeah i i i am at the opposite extreme i can't believe

we've even spent so much time our flag doesn't have the county seal on it put the county seal on it and let's move on i mean it's

[06:43:02] just that simple i would recommend in the strongest possible terms that we not simply introduce at a public hearing gee what do you think about changing the loudon county flag because it'll be a 99 to 1 percent no don't change the flag i think we have to give them something to react to and i'm all for going to the loudon heritage commission and the millions of vexologists that apparently live in the world today to figure out what to do.

[06:43:27] But this to me is a very good idea, long overdue. I fully support it, and let's do it. So what I should say is, when this was done in 1968, there wasn't all this back -- it was basically done by the Board of Supervisors in 1968. There was some talking to about the John Campbell, the Perth Earl Loudon, and the design does reflect that history.

[06:43:53] But we should not act like there was some deep, deep stuff going on in 1968 when this was decided by the board supervisor. Because it wasn't. It really wasn't. It wasn't. Secondly, I am not going to call on all the vexologists in here to get different opinions about the flag. To Mr. Letourneau's point, the flag will still be colorful.

[06:44:11] It will still be a really cool flag. And it's not just about VACO. I didn't say that. I gave many reasons. If you want to focus on one, I gave many reasons. And I think it does make sense to have an identifiable flag. I don't think it makes it, no matter how pretty and cool the flag is. I mean, Maryland, yeah, they have a flag.

[06:44:28] But Maryland's flag is really the only flag besides the United States flag. If there's not a name on it, I can identify as being their flag. What is the point? Yeah, well, I'm from Colorado. It's a big C on the Colorado flag. In fact, I would just say you shouldn't put any letters on the Colorado flags at all. Like the loser flag.

[06:44:47] It's a bad idea. It's a very bad idea. There are very few flags in the country, or maybe even in the world, that are not identifiable. It makes sense to have a flag that is identifiable to where it's from. I'm sorry it just does.

[06:45:04] And so the vexologists may be vexologists, but probably 90% of the flags in the world go against what the vexologists recommend, and it's not like a law. It's just some wonderful people who like flags. It's like a whole lot of Sheldon Coopers, right?

[06:45:20] Do you guys know who Sheldon Cooper is? You all don't watch the Big Bang Theory? No? Okay, my gosh. Yes, I know who he is. Okay, it's, I mean, Sheldon Cooper, yeah. Sheldon Cooper, yeah. So I just think to make our flag identifiable for a lot of reasons around the country and even around the globe, makes sense to have an identifiable flag.

[06:45:45] I am absolutely not calling vexologists in to give a different flag. designs that makes no sense to me we'll be here forever as far as changing them out eventually all the flags are going to get changed out eventually anyway as they get changed out the new flag comes in it goes up it's not that deep not that deep they're not they're going to all get changed out eventually so when we change them change them that it's not that hard it's not it's not a major change you're just adding the seal to the flag that's it there'll be non-performing flags. All right, I make the motion second by Supervisor Turner. All in favor say aye.

[06:46:24] Aye. Opposed? That motion will pass 8 to 1. One more item that I can, oh, one more item and then appointments and confirmations. Okay, I'm going to move that we forward the intersection improvement program round four to a future TLUC meeting for the purposes of an information item to explain how the staff does their modeling and analysis of how they score and how they score items in the intersection improvement program all right this is a request from mr crony and i'm

[06:47:03] fine with the request what she said is that when she reads the item she's not trying to do anything different not trying to take it out of um finance she she well she can speak for herself she'd like to better understand how the scoring is done. I don't think that it is a unreasonable request for a member to say they like to understand the scoring. It doesn't make the staff create anything new that's that's already there. It's already somewhere. It's not it's just an information I'm to get that to find out that and I'm happy to support her in that in that effort. Mr. Crony. Yeah thank - Thank you, Chair Randall.

[06:47:42] I would have done that on November 18th, but I didn't get a chance to do that. But I agree, this is for a deeper dive on the analysis and modeling used in round four. Just to remind everybody, the IIP comes back to the board every three years, so it doesn't come back that often, and new methodologies were used in this update, in this particular update of 2025.

[06:48:09] So the goal is not to change staff's recommendations, but discuss the new modeling. And actually, one idea would be to potentially create an interim process for review of intersections that become problematic in the interim.

[06:48:25] So with a review occurring every three years, what happens when an intersection, when there's issues at an intersection that doesn't have any improvements, when there's a spike in accidents and God forbid pedestrian fatalities.

[06:48:45] So in a committee, I think that's where we can discuss it, where we can just look at how things were modeled and TLUC is a good place to do it. So I would appreciate support on this.

[06:49:00] And as Chair Randall said, we made a motion to endorse the 36 Rank 5 intersections at the November 18th Board of Supervisors meeting. I am not changing that. So I'm not changing the funding of the 36 Rank 5 intersections, just so everybody knows.

[06:49:21] Thank you. - You are not, but Chair Randall didn't say that. - No, I didn't say that. - Chair Randall didn't say that. You said, as Chair Randall said, I didn't say that. - I apologize, Chair Randall did not say that. - Chair Randall did not. Mr. Sainz.

[06:49:37] I'm trying to follow. Which board item is this? Or is this a reconsideration of a vote? Reconsideration. Oh, okay. So I missed the part where you did the reconsideration in the meeting. Okay, because I'm like, where is this in our board item?

[06:49:52] Okay, only question is, will that delay staff's work on the 36 and everything else that's part of that package? No. Can I answer that?

[06:50:11] No. Who are you asking? You're asking me? Staff, well, there's no staff to answer the question, but yeah. You're asking the security person? Come on up here. Who are you asking? Oh, she walked up so slowly like, really?

[06:50:31] Good evening, I'm Heather Dietz with DTCL. No, it will not delay any work on the IIP. Okay, and then forgive me for asking, but could this have been staff meeting with individual supervisors to give that

briefing.

[06:50:50] Yes. I'll just leave it at that. Okay, okay, okay. All right. Ms. Dietz, I cannot believe you waited to 1045 to say 15 words. We really do appreciate you very much. Thank you. Thank you very much. Anybody else?

[06:51:07] All right. I don't have a closing. All of it, please say aye. Aye. Any opposed? That motion will be 801 with Mr. Sainz abstaining. Okay, do you have nominations? Put your lights on, please. You have nominations?

[06:51:25] Yes, sir. I do. I do. I nominate Dr. John Farrell for reappointment as the Dulles District Representative on the Loudoun Health Commission. And I join you with that nomination. He's so wonderful. He is so wonderful. You have a nomination? No? Any other nominations? Ms. Bricksman, nomination? None.

[06:51:42] Supervisors at 1048, I think we're done. Can the media come look at my flag? Come look at my flag. I think we're done. Thanks, everyone.



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